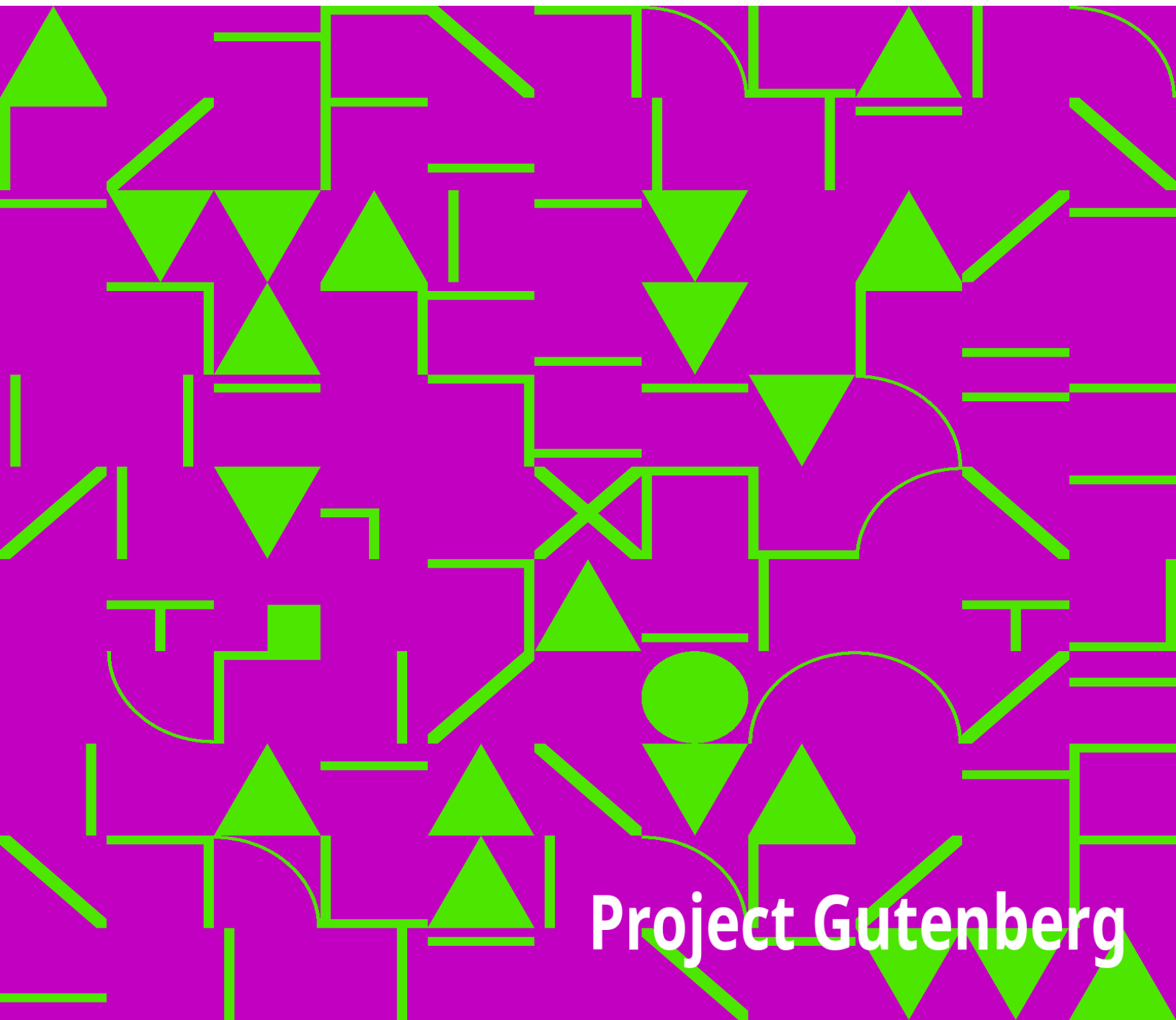


A Compilation of the Messages and Papers of the Presidents. Volume 2, part 2: John Quincy Adams

James D. Richardson



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AND PAPERS OF THE PRESIDENTS. VOLUME 2, PART 2: JOHN QUINCY ADAMS ***

John Quincy Adams

March 4, 1828, to March 4, 1829

JOHN QUINCY ADAMS

John Quincy Adams, sixth President of the United States, eldest son of John Adams, second President, was born at Braintree, Mass., July 11, 1767. He enjoyed peculiar and rare advantages for education. In childhood he was instructed by his mother, a granddaughter of Colonel John Quincy, and a woman of superior talents. In 1778, when only 11 years old, he accompanied his father to France; attended a school in Paris, and returned home in August, 1779. Having been taken again to Europe by his father in 1780, he pursued his studies at the University of Leyden, where he learned Latin and Greek. In July, 1781, at the age of 14, he was appointed private secretary to Francis Dana, minister to Russia. He remained at St. Petersburg until October, 1782, after which he resumed his studies at The Hague. Was present at the signing of the definitive treaty of peace in Paris, September 3, 1783. He passed some months with his father in London, and returned to the United States to complete his education, entering Harvard College in 1786 and graduating in 1788. He studied law with the celebrated Theophilus Parsons, of Newburyport; was admitted to the bar in 1791, and began to practice in Boston. In 1791 he published in the Boston Centinel, under the signature of "Publicola," a series of able essays, in which he exposed the fallacies and vagaries of the French political reformers. These papers attracted much attention in Europe and the United States. Under the signature of "Marcellus" he wrote, in 1793, several articles, in which he argued that the United States should observe strict neutrality in the war between the French and the British. These writings commended him to the favor of Washington, and he was appointed minister to Holland in May, 1794. In July,

1797, he married Louisa Catherine Johnson, a daughter of Joshua Johnson, of Maryland, who was then American consul at London. In a letter dated February 20, 1797, Washington commended him highly to the elder Adams, and advised the President elect not to withhold promotion from him because he was his son. He was accordingly appointed minister to Berlin in 1797. He negotiated a treaty of amity and commerce with the Prussian Government, and was recalled about February, 1801. He was elected a Senator of the United States by the Federalists of Massachusetts for the term beginning March, 1803. In 1805 he was appointed professor of rhetoric and belles-lettres at Harvard College, and accepted on condition that he should be permitted to attend to his Senatorial duties. He offended the Federalists by supporting Jefferson's embargo act, which was passed in December, 1807, and thus became connected with the Democratic party. He resigned his seat in the Senate in March, 1808, declining to serve for the remainder of the term rather than obey the instructions of the Federalists. In March, 1809, he was appointed by President Madison minister to Russia. During his residence in that country he was nominated to be an associate justice of the Supreme Court of the United States, and confirmed February, 1811; but he declined the appointment. In 1813 Adams, Bayard, Clay, Russell, and Gallatin were appointed commissioners to negotiate a treaty of peace with Great Britain. They met the British diplomatists at Ghent, and after a protracted negotiation of six months signed a treaty of peace December 24, 1814. In the spring of 1815 he was appointed minister to the Court of St. James, remaining there until he was appointed by Mr. Monroe Secretary of State in 1817. In 1824 Adams, Jackson, Crawford, and Clay were candidates for the Presidency. Neither of the candidates having received a majority in the electoral colleges, the election devolved on the House of Representatives. Aided by the influence of Henry Clay, Mr. Adams received the votes of thirteen States, and was

elected. He was defeated for reelection in 1828 by General Andrew Jackson. On the 4th of March, 1829, he retired to his estate at Quincy. In 1830 he was elected to Congress, and took his seat in December, 1831. He continued to represent his native district for seventeen years, during which time he was constantly at his post. On the 21st of February, 1848, while in his seat at the Capitol, he was stricken with paralysis, and died on the 23d of that month. He was buried at Quincy, Mass.

NOTIFICATION OF ELECTION.

Mr. Webster, from the committee appointed for that purpose yesterday, reported that the committee had waited on John Quincy Adams, of Massachusetts, and had notified him that in the recent election of a President of the United States, no person having received a majority of the votes of all the electors appointed, and the choice having consequently devolved upon the House of Representatives, that House, proceeding in the manner prescribed by the Constitution, did yesterday choose him to be President of the United States for four years, commencing on the 4th day of March next, and that the committee had received a written answer, which he presented to the House. Mr. Webster also reported that in further performance of its duty the committee had given the information of this election to the President.

February 10, 1825.

Reply of the President Elect.

Washington,
February 10, 1825.

Gentlemen:

In receiving this testimonial from the Representatives of the people and States of this Union I am deeply sensible to the circumstances under which it has been given. All my predecessors in the high station to which the favor of the House now calls me have been honored with majorities of the electoral voices in their primary colleges. It has been my fortune to be placed by the divisions of sentiment prevailing among our countrymen on this occasion in competition, friendly and honorable, with three of my fellow-citizens, all justly enjoying in eminent degrees the public favor, and of whose worth, talents, and services no one entertains a higher and more respectful sense than myself. The names of two of them were, in the fulfillment of the provisions of the Constitution, presented to the selection of the House in concurrence with my own-names closely associated with the glory of the nation, and one of them further recommended by a larger minority of the primary electoral suffrages than mine.

In this state of things, could my refusal to accept the trust thus delegated to me give an immediate opportunity to the people to form and to express with a nearer approach to unanimity the object of their preference, I should not hesitate to decline the acceptance of this eminent charge and to submit the decision of this momentous question again to their determination. But the Constitution itself has not so disposed of the contingency which would arise in the

event of my refusal. I shall therefore repair to the post assigned me by the call of my country, signified through her constitutional organs, oppressed with the magnitude of the task before me, but cheered with the hope of that generous support from my fellow-citizens which, in the vicissitudes of a life devoted to their service, has never failed to sustain me, confident in the trust that the wisdom of the legislative councils will guide and direct me in the path of my official duty, and relying above all upon the superintending providence of that Being in whose hands our breath is and whose are all our ways.

Gentlemen, I pray you to make acceptable to the House the assurance of my profound gratitude for their confidence, and to accept yourselves my thanks for the friendly terms in which you have communicated to me their decision.

John Quincy Adams.

Letter from the President Elect.

City of Washington,
March 1, 1825

The President of the Senate of the United States.

Sir:

I ask the favor of you to inform the honorable Senate of the United States that I propose to take the oath prescribed by the Constitution to the President of the United States before he enters on the execution of his office, on Friday, the 4th instant, at 12 o'clock, in the Hall of the House of Representatives.

I have the honor to be, with the highest respect, sir, your very humble and obedient servant,

John Quincy Adams.

INAUGURAL ADDRESS.

In compliance with an usage coeval with the existence of our Federal Constitution, and sanctioned by the example of my predecessors in the career upon which I am about to enter, I appear, my fellow-citizens, in your presence and in that of Heaven to bind myself by the solemnities of religious obligation to the faithful performance of the duties allotted to me in the station to which I have been called.

In unfolding to my countrymen the principles by which I shall be governed in the fulfillment of those duties my first resort will be to that Constitution which I shall swear to the best of my ability to preserve, protect, and defend. That revered instrument enumerates the powers and prescribes the duties of the Executive Magistrate, and in its first words declares the purposes to which these and the whole action of the Government instituted by it should be invariably and sacredly devoted-to form a more perfect union, establish justice, insure domestic tranquillity, provide for the common defense, promote the general welfare, and secure the blessings of liberty to the people of this Union in their successive generations. Since the adoption of this social compact one of these generations has passed away. It is the work of our forefathers. Administered by some of the most eminent men who contributed to its formation, through a most eventful period in the annals of the world, and through all the vicissitudes of peace and war incidental to the condition of associated man, it has not disappointed the hopes and aspirations of those illustrious benefactors of their age and nation. It has promoted the lasting welfare of that country so dear to us all; it has to an extent far beyond the ordinary lot of humanity secured the freedom and

happiness of this people. We now receive it as a precious inheritance from those to whom we are indebted for its establishment, doubly bound by the examples which they have left us and by the blessings which we have enjoyed as the fruits of their labors to transmit the same unimpaired to the succeeding generation.

In the compass of thirty-six years since this great national covenant was instituted a body of laws enacted under its authority and in conformity with its provisions has unfolded its powers and carried into practical operation its effective energies. Subordinate departments have distributed the executive functions in their various relations to foreign affairs, to the revenue and expenditures, and to the military force of the Union by land and sea. A coordinate department of the judiciary has expounded the Constitution and the laws, settling in harmonious coincidence with the legislative will numerous weighty questions of construction which the imperfection of human language had rendered unavoidable. The year of jubilee since the first formation of our Union has just elapsed; that of the declaration of our independence is at hand. The consummation of both was effected by this Constitution.

Since that period a population of four millions has multiplied to twelve. A territory bounded by the Mississippi has been extended from sea to sea. New States have been admitted to the Union in numbers nearly equal to those of the first Confederation. Treaties of peace, amity, and commerce have been concluded with the principal dominions of the earth. The people of other nations, inhabitants of regions acquired not by conquest, but by compact, have been united with us in the participation of our rights and duties, of our burdens and blessings. The forest has fallen by the ax of our woodsmen; the soil has been made to teem by the tillage of our farmers; our commerce has whitened every ocean. The dominion of man over physical nature has been extended by the invention of

our artists. Liberty and law have marched hand in hand. All the purposes of human association have been accomplished as effectively as under any other government on the globe, and at a cost little exceeding in a whole generation the expenditure of other nations in a single year.

Such is the unexaggerated picture of our condition under a Constitution founded upon the republican principle of equal rights. To admit that this picture has its shades is but to say that it is still the condition of men upon earth. From evil-physical, moral, and political-it is not our claim to be exempt. We have suffered sometimes by the visitation of Heaven through disease; often by the wrongs and injustice of other nations, even to the extremities of war; and, lastly, by dissensions among ourselves-dissensions perhaps inseparable from the enjoyment of freedom, but which have more than once appeared to threaten the dissolution of the Union, and with it the overthrow of all the enjoyments of our present lot and all our earthly hopes of the future. The causes of these dissensions have been various, founded upon differences of speculation in the theory of republican government; upon conflicting views of policy in our relations with foreign nations; upon jealousies of partial and sectional interests, aggravated by prejudices and prepossessions which strangers to each other are ever apt to entertain.

It is a source of gratification and of encouragement to me to observe that the great result of this experiment upon the theory of human rights has at the close of that generation by which it was formed been crowned with success equal to the most sanguine expectations of its founders. Union, justice, tranquillity, the common defense, the general welfare, and the blessings of liberty-all have been promoted by the Government under which we have lived. Standing at this point of time, looking back to that generation which has gone by and forward to that which is advancing, we may at once indulge in grateful exultation and in cheering hope.

From the experience of the past we derive instructive lessons for the future. Of the two great political parties which have divided the opinions and feelings of our country, the candid and the just will now admit that both have contributed splendid talents, spotless integrity, ardent patriotism, and disinterested sacrifices to the formation and administration of this Government, and that both have required a liberal indulgence for a portion of human infirmity and error. The revolutionary wars of Europe, commencing precisely at the moment when the Government of the United States first went into operation under this Constitution, excited a collision of sentiments and of sympathies which kindled all the passions and imbittered the conflict of parties till the nation was involved in war and the Union was shaken to its center. This time of trial embraced a period of five and twenty years, during which the policy of the Union in its relations with Europe constituted the principal basis of our political divisions and the most arduous part of the action of our Federal Government. With the catastrophe in which the wars of the French Revolution terminated, and our own subsequent peace with Great Britain, this baneful weed of party strife was uprooted. From that time no difference of principle, connected either with the theory of government or with our intercourse with foreign nations, has existed or been called forth in force sufficient to sustain a continued combination of parties or to give more than wholesome animation to public sentiment or legislative debate. Our political creed is, without a dissenting voice that can be heard, that the will of the people is the source and the happiness of the people the end of all legitimate government upon earth; that the best security for the beneficence and the best guaranty against the abuse of power consists in the freedom, the purity, and the frequency of popular elections; that the General Government of the Union and the separate governments of the States are all sovereignties of limited powers, fellow-servants of the same masters, uncontrolled within their

respective spheres, uncontrollable by encroachments upon each other; that the firmest security of peace is the preparation during peace of the defenses of war; that a rigorous economy and accountability of public expenditures should guard against the aggravation and alleviate when possible the burden of taxation; that the military should be kept in strict subordination to the civil power; that the freedom of the press and of religious opinion should be inviolate; that the policy of our country is peace and the ark of our salvation union are articles of faith upon which we are all now agreed. If there have been those who doubted whether a confederated representative democracy were a government competent to the wise and orderly management of the common concerns of a mighty nation, those doubts have been dispelled; if there have been projects of partial confederacies to be erected upon the ruins of the Union, they have been scattered to the winds; if there have been dangerous attachments to one foreign nation and antipathies against another, they have been extinguished. Ten years of peace, at home and abroad, have assuaged the animosities of political contention and blended into harmony the most discordant elements of public opinion. There still remains one effort of magnanimity, one sacrifice of prejudice and passion, to be made by the individuals throughout the nation who have heretofore followed the standards of political party. It is that of discarding every remnant of rancor against each other, of embracing as countrymen and friends, and of yielding to talents and virtue alone that confidence which in times of contention for principle was bestowed only upon those who bore the badge of party communion.

The collisions of party spirit which originate in speculative opinions or in different views of administrative policy are in their nature transitory. Those which are founded on geographical divisions, adverse interests of soil, climate, and modes of domestic life are more permanent,

and therefore, perhaps, more dangerous. It is this which gives inestimable value to the character of our Government, at once federal and national. It holds out to us a perpetual admonition to preserve alike and with equal anxiety the rights of each individual State in its own government and the rights of the whole nation in that of the Union. Whatsoever is of domestic concernment, unconnected with the other members of the Union or with foreign lands, belongs exclusively to the administration of the State governments. Whatsoever directly involves the rights and interests of the federative fraternity or of foreign powers is of the resort of this General Government. The duties of both are obvious in the general principle, though sometimes perplexed with difficulties in the detail. To respect the rights of the State governments is the inviolable duty of that of the Union; the government of every State will feel its own obligation to respect and preserve the rights of the whole. The prejudices everywhere too commonly entertained against distant strangers are worn away, and the jealousies of jarring interests are allayed by the composition and functions of the great national councils annually assembled from all quarters of the Union at this place. Here the distinguished men from every section of our country, while meeting to deliberate upon the great interests of those by whom they are deputed, learn to estimate the talents and do justice to the virtues of each other. The harmony of the nation is promoted and the whole Union is knit together by the sentiments of mutual respect, the habits of social intercourse, and the ties of personal friendship formed between the representatives of its several parts in the performance of their service at this metropolis.

Passing from this general review of the purposes and injunctions of the Federal Constitution and their results as indicating the first traces of the path of duty in the discharge of my public trust, I turn to the administration of my immediate predecessor as the second. It has passed away in

a period of profound peace, how much to the satisfaction of our country and to the honor of our country's name is known to you all. The great features of its policy, in general concurrence with the will of the Legislature, have been to cherish peace while preparing for defensive war; to yield exact justice to other nations and maintain the rights of our own; to cherish the principles of freedom and of equal rights wherever they were proclaimed; to discharge with all possible promptitude the national debt; to reduce within the narrowest limits of efficiency the military force; to improve the organization and discipline of the Army; to provide and sustain a school of military science; to extend equal protection to all the great interests of the nation; to promote the civilization of the Indian tribes, and to proceed in the great system of internal improvements within the limits of the constitutional power of the Union. Under the pledge of these promises, made by that eminent citizen at the time of his first induction to this office, in his career of eight years the internal taxes have been repealed; sixty millions of the public debt have been discharged; provision has been made for the comfort and relief of the aged and indigent among the surviving warriors of the Revolution; the regular armed force has been reduced and its constitution revised and perfected; the accountability for the expenditure of public moneys has been made more effective; the Floridas have been peaceably acquired, and our boundary has been extended to the Pacific Ocean; the independence of the southern nations of this hemisphere has been recognized, and recommended by example and by counsel to the potentates of Europe; progress has been made in the defense of the country by fortifications and the increase of the Navy, toward the effectual suppression of the African traffic in slaves, in alluring the aboriginal hunters of our land to the cultivation of the soil and of the mind, in exploring the interior regions of the Union, and in preparing by scientific researches and surveys for the further application of our

national resources to the internal improvement of our country.

In this brief outline of the promise and performance of my immediate predecessor the line of duty for his successor is clearly delineated. To pursue to their consummation those purposes of improvement in our common condition instituted or recommended by him will embrace the whole sphere of my obligations. To the topic of internal improvement, emphatically urged by him at his inauguration, I recur with peculiar satisfaction. It is that from which I am convinced that the unborn millions of our posterity who are in future ages to people this continent will derive their most fervent gratitude to the founders of the Union; that in which the beneficent action of its Government will be most deeply felt and acknowledged. The magnificence and splendor of their public works are among the imperishable glories of the ancient republics. The roads and aqueducts of Rome have been the admiration of all after ages, and have survived thousands of years after all her conquests have been swallowed up in despotism or become the spoil of barbarians. Some diversity of opinion has prevailed with regard to the powers of Congress for legislation upon objects of this nature. The most respectful deference is due to doubts originating in pure patriotism and sustained by venerated authority. But nearly twenty years have passed since the construction of the first national road was commenced. The authority for its construction was then unquestioned. To how many thousands of our countrymen has it proved a benefit? To what single individual has it ever proved an injury? Repeated, liberal, and candid discussions in the Legislature have conciliated the sentiments and approximated the opinions of enlightened minds upon the question of constitutional power. I can not but hope that by the same process of friendly, patient, and persevering deliberation all constitutional objections will ultimately be removed. The extent and limitation of the powers of the

General Government in relation to this transcendently important interest will be settled and acknowledged to the common satisfaction of all, and every speculative scruple will be solved by a practical public blessing.

Fellow-citizens, you are acquainted with the peculiar circumstances of the recent election, which have resulted in affording me the opportunity of addressing you at this time. You have heard the exposition of the principles which will direct me in the fulfillment of the high and solemn trust imposed upon me in this station. Less possessed of your confidence in advance than any of my predecessors, I am deeply conscious of the prospect that I shall stand more and oftener in heed of your indulgence. Intentions upright and pure, a heart devoted to the welfare of our country, and the unceasing application of all the faculties allotted to me to her service are all the pledges that I can give for the faithful performance of the arduous duties I am to undertake. To the guidance of the legislative councils, to the assistance of the executive and subordinate departments, to the friendly cooperation of the respective State governments, to the candid and liberal support of the people so far as it may be deserved by honest industry and zeal, I shall look for whatever success may attend my public service; and knowing that "except the Lord keep the city the watchman waketh but in vain," with fervent supplications for His favor, to His overruling providence I commit with humble but fearless confidence my own fate and the future destinies of my country.

March 4, 1825.

FIRST ANNUAL MESSAGE.

Washington,
December 6, 1825.

Fellow-Citizens of the Senate and of the House of Representatives:

In taking a general survey of the concerns of our beloved country, with reference to subjects interesting to the common welfare, the first sentiment which impresses itself upon the mind is of gratitude to the Omnipotent Disposer of All Good for the continuance of the signal blessings of His providence, and especially for that health which to an unusual extent has prevailed within our borders, and for that abundance which in the vicissitudes of the seasons has been scattered with profusion over our land. Nor ought we less to ascribe to Him the glory that we are permitted to enjoy the bounties of His hand in peace and tranquillity-in peace with all the other nations of the earth, in tranquillity among ourselves. There has, indeed, rarely been a period in the history of civilized man in which the general condition of the Christian nations has been marked so extensively by peace and prosperity.

Europe, with a few partial and unhappy exceptions, has enjoyed ten years of peace, during which all her Governments, whatever the theory of their constitutions may have been, are successively taught to feel that the end of their institution is the happiness of the people, and that the exercise of power among men can be justified only by the blessings it confers upon those over whom it is extended.

During the same period our intercourse with all those nations has been pacific and friendly; it so continues. Since the close of your last session no material variation has occurred in our relations with any one of them. In the commercial and navigation system of Great Britain important changes of municipal regulation have recently been sanctioned by acts of Parliament, the effect of which upon the interests of other nations, and particularly upon ours, has not yet been fully developed. In the recent renewal of the diplomatic missions on both sides between the two Governments assurances have been given and received of the continuance and increase of the mutual confidence and cordiality by which the adjustment of many points of difference had already been effected, and which affords the surest pledge for the ultimate satisfactory adjustment of those which still remain open or may hereafter arise.

The policy of the United States in their commercial intercourse with other nations has always been of the most liberal character. In the mutual exchange of their respective productions they have abstained altogether from prohibitions; they have interdicted themselves the power of laying taxes upon exports, and whenever they have favored their own shipping by special preferences or exclusive privileges in their own ports it has been only with a view to countervail similar favors and exclusions granted by the nations with whom we have been engaged in traffic to their own people or shipping, and to the disadvantage of ours. Immediately after the close of the last war a proposal was fairly made by the act of Congress of the 3d of March, 1815, to all the maritime nations to lay aside the system of retaliating restrictions and exclusions, and to place the shipping of both parties to the common trade on a footing of equality in respect to the duties of tonnage and impost. This offer was partially and successively accepted by Great Britain, Sweden, the Netherlands, the Hanseatic cities, Prussia, Sardinia, the Duke of Oldenburg, and Russia. It

was also adopted, under certain modifications, in our late commercial convention with France, and by the act of Congress of the 8th January, 1824, it has received a new confirmation with all the nations who had acceded to it, and has been offered again to all those who are or may hereafter be willing to abide in reciprocity by it. But all these regulations, whether established by treaty or by municipal enactments, are still subject to one important restriction.

The removal of discriminating duties of tonnage and of impost is limited to articles of the growth, produce, or manufacture of the country to which the vessel belongs or to such articles as are most usually first shipped from her ports. It will deserve the serious consideration of Congress whether even this remnant of restriction may not be safely abandoned, and whether the general tender of equal competition made in the act of 8th January, 1824, may not be extended to include all articles of merchandise not prohibited, of what country soever they may be the produce or manufacture. Propositions to this effect have already been made to us by more than one European Government, and it is probable that if once established by legislation or compact with any distinguished maritime state it would recommend itself by the experience of its advantages to the general accession of all.

The convention of commerce and navigation between the United States and France, concluded on the 24th of June, 1822, was, in the understanding and intent of both parties, as appears upon its face, only a temporary arrangement of the points of difference between them of the most immediate and pressing urgency. It was limited in the first instance to two years from the 1st of October, 1822, but with a proviso that it should further continue in force till the conclusion of a general and definitive treaty of commerce, unless terminated by a notice, six months in advance, of either of the parties to the other. Its operation so far as it extended has been mutually advantageous, and it still

continues in force by common consent. But it left unadjusted several objects of great interest to the citizens and subjects of both countries, and particularly a mass of claims to considerable amount of citizens of the United States upon the Government of France of indemnity for property taken or destroyed under circumstances of the most aggravated and outrageous character. In the long period during which continual and earnest appeals have been made to the equity and magnanimity of France in behalf of these claims their justice has not been, as it could not be, denied. It was hoped that the accession of a new Sovereign to the throne would have afforded a favorable opportunity for presenting them to the consideration of his Government. They have been presented and urged hitherto without effect. The repeated and earnest representations of our minister at the Court of France remain as yet even without an answer. Were the demands of nations upon the justice of each other susceptible of adjudication by the sentence of an impartial tribunal, those to which I now refer would long since have been settled and adequate indemnity would have been obtained. There are large amounts of similar claims upon the Netherlands, Naples and Denmark. For those upon Spain prior to 1819 indemnity was, after many years of patient forbearance, obtained; and those upon Sweden have been lately compromised by a private settlement, in which the claimants themselves have acquiesced. The Governments of Denmark and of Naples have been recently reminded of those yet existing against them, nor will any of them be forgotten while a hope may be indulged of obtaining justice by the means within the constitutional power of the Executive, and without resorting to those means of self-redress which, as well as the time, circumstances, and occasion which may require them, are within the exclusive competency of the Legislature.

It is with great satisfaction that I am enabled to bear witness to the liberal spirit with which the Republic of

Colombia has made satisfaction for well-established claims of a similar character, and among the documents now communicated to Congress will be distinguished a treaty of commerce and navigation with that Republic, the ratifications of which have been exchanged since the last recess of the Legislature. The negotiation of similar treaties with all the independent South American States has been contemplated and may yet be accomplished. The basis of them all, as proposed by the United States, has been laid in two principles-the one of entire and unqualified reciprocity, the other the mutual obligation of the parties to place each other permanently upon the footing of the most favored nation. These principles are, indeed, indispensable to the effectual emancipation of the American hemisphere from the thralldom of colonizing monopolies and exclusions, an event rapidly realizing in the progress of human affairs, and which the resistance still opposed in certain parts of Europe to the acknowledgment of the Southern American Republics as independent States will, it is believed, contribute more effectually to accomplish. The time has been, and that not remote, when some of those States might, in their anxious desire to obtain a nominal recognition, have accepted of a nominal independence, clogged with burdensome conditions, and exclusive commercial privileges granted to the nation from which they have separated to the disadvantage of all others. They are all now aware that such concessions to any European nation would be incompatible with that independence which they have declared and maintained.

Among the measures which have been suggested to them by the new relations with one another, resulting from the recent changes in their condition, is that of assembling at the Isthmus of Panama a congress, at which each of them should be represented, to deliberate upon objects important to the welfare of all. The Republics of Colombia, of Mexico, and of Central America have already deputed

plenipotentiaries to such a meeting, and they have invited the United States to be also represented there by their ministers. The invitation has been accepted, and ministers on the part of the United States will be commissioned to attend at those deliberations, and to take part in them so far as may be compatible with that neutrality from which it is neither our intention nor the desire of the other American States that we should depart.

The commissioners under the seventh article of the treaty of Ghent have so nearly completed their arduous labors that, by the report recently received from the agent on the part of the United States, there is reason to expect that the commission will be closed at their next session, appointed for the 22d of May of the ensuing year.

The other commission, appointed to ascertain the indemnities due for slaves carried away from the United States after the close of the late war, have met with some difficulty, which has delayed their progress in the inquiry. A reference has been made to the British Government on the subject, which, it may be hoped, will tend to hasten the decision of the commissioners, or serve as a substitute for it.

Among the powers specifically granted to Congress by the Constitution are those of establishing uniform laws on the subject of bankruptcies throughout the United States and of providing for organizing, arming, and disciplining the militia and for governing such part of them as may be employed in the service of the United States. The magnitude and complexity of the interests affected by legislation upon these subjects may account for the fact that, long and often as both of them have occupied the attention and animated the debates of Congress, no systems have yet been devised for fulfilling to the satisfaction of the community the duties prescribed by these grants of power. To conciliate the claim of the individual citizen to the

enjoyment of personal liberty, with the effective obligation of private contracts, is the difficult problem to be solved by a law of bankruptcy. These are objects of the deepest interest to society, affecting all that is precious in the existence of multitudes of persons, many of them in the classes essentially dependent and helpless, of the age requiring nurture, and of the sex entitled to protection from the free agency of the parent and the husband. The organization of the militia is yet more indispensable to the liberties of the country. It is only by an effective militia that we can at once enjoy the repose of peace and bid defiance to foreign aggression; it is by the militia that we are constituted an armed nation, standing in perpetual panoply of defense in the presence of all the other nations of the earth. To this end it would be necessary, if possible, so to shape its organization as to give it a more united and active energy. There are laws for establishing an uniform militia throughout the United States and for arming and equipping its whole body. But it is a body of dislocated members, without the vigor of unity and having little of uniformity but the name. To infuse into this most important institution the power of which it is susceptible and to make it available for the defense of the Union at the shortest notice and at the smallest expense possible of time, of life, and of treasure are among the benefits to be expected from the persevering deliberations of Congress.

Among the unequivocal indications of our national prosperity is the flourishing state of our finances. The revenues of the present year, from all their principal sources, will exceed the anticipations of the last. The balance in the Treasury on the 1st of January last was a little short of \$2,000,000, exclusive of two millions and a half, being the moiety of the loan of five millions authorized by the act of 26th of May, 1824. The receipts into the Treasury from the 1st of January to the 30th of September, exclusive of the other moiety of the same loan, are estimated at

\$16,500,000, and it is expected that those of the current quarter will exceed \$5,000,000, forming an aggregate of receipts of nearly twenty-two millions, independent of the loan. The expenditures of the year will not exceed that sum more than two millions. By those expenditures nearly eight millions of the principal of the public debt have been discharged. More than a million and a half has been devoted to the debt of gratitude to the warriors of the Revolution; a nearly equal sum to the construction of fortifications and the acquisition of ordnance and other permanent preparations of national defense; half a million to the gradual increase of the Navy; an equal sum for purchases of territory from the Indians and payment of annuities to them; and upward of a million for objects of internal improvement authorized by special acts of the last Congress. If we add to these \$4,000,000 for payment of interest upon the public debt, there remains a sum of about seven millions, which have defrayed the whole expense of the administration of Government in its legislative, executive, and judiciary departments, including the support of the military and naval establishments and all the occasional contingencies of a government coextensive with the Union.

The amount of duties secured on merchandise imported since the commencement of the year is about twenty-five millions and a half, and that which will accrue during the current quarter is estimated at five millions and a half; from these thirty-one millions, deducting the drawbacks, estimated at less than seven millions, a sum exceeding twenty-four millions will constitute the revenue of the year, and will exceed the whole expenditures of the year. The entire amount of the public debt remaining due on the 1st of January next will be short of \$81,000,000.

By an act of Congress of the 3d of March last a loan of \$12,000,000 was authorized at 4-1/2 per cent, or an exchange of stock to that amount of 4-1/2 per cent for a stock of 6 per cent, to create a fund for extinguishing an

equal amount of the public debt, bearing an interest of 6 per cent, redeemable in 1826. An account of the measures taken to give effect to this act will be laid before you by the Secretary of the Treasury. As the object which it had in view has been but partially accomplished, it will be for the consideration of Congress whether the power with which it clothed the Executive should not be renewed at an early day of the present session, and under what modifications.

The act of Congress of the 3d of March last, directing the Secretary of the Treasury to subscribe, in the name and for the use of the United States, for 1,500 shares of the capital stock of the Chesapeake and Delaware Canal Company, has been executed by the actual subscription for the amount specified; and such other measures have been adopted by that officer, under the act, as the fulfillment of its intentions requires. The latest accounts received of this important undertaking authorize the belief that it is in successful progress.

The payments into the Treasury from the proceeds of the sales of the public lands during the present year were estimated at \$1,000,000. The actual receipts of the first two quarters have fallen very little short of that sum; it is not expected that the second half of the year will be equally productive, but the income of the year from that source may now be safely estimated at a million and a half. The act of Congress of 18th May, 1824, to provide for the extinguishment of the debt due to the United States by the purchasers of public lands, was limited in its operation of relief to the purchaser to the 10th of April last. Its effect at the end of the quarter during which it expired was to reduce that debt from ten to seven millions. By the operation of similar prior laws of relief, from and since that of 2d March, 1821, the debt had been reduced from upward of twenty-two millions to ten. It is exceedingly desirable that it should be extinguished altogether; and to facilitate that consummation I recommend to Congress the revival for one

year more of the act of 18th May, 1824, with such provisional modification as may be necessary to guard the public interests against fraudulent practices in the resale of the relinquished land. The purchasers of public lands are among the most useful of our fellow-citizens, and since the system of sales for cash alone has been introduced great indulgence has been justly extended to those who had previously purchased upon credit. The debt which had been contracted under the credit sales had become unwieldy, and its extinction was alike advantageous to the purchaser and to the public. Under the system of sales, matured as it has been by experience, and adapted to the exigencies of the times, the lands will continue as they have become, an abundant source of revenue; and when the pledge of them to the public creditor shall have been redeemed by the entire discharge of the national debt, the swelling tide of wealth with which they replenish the common Treasury may be made to reflow in unfailing streams of improvement from the Atlantic to the Pacific Ocean.

The condition of the various branches of the public service resorting from the Department of War, and their administration during the current year, will be exhibited in the report of the Secretary of War and the accompanying documents herewith communicated. The organization and discipline of the Army are effective and satisfactory. To counteract the prevalence of desertion among the troops it has been suggested to withhold from the men a small portion of their monthly pay until the period of their discharge; and some expedient appears to be necessary to preserve and maintain among the officers so much of the art of horsemanship as could scarcely fail to be found wanting on the possible sudden eruption of a war, which should take us unprovided with a single corps of cavalry. The Military Academy at West Point, under the restrictions of a severe but paternal superintendence, recommends itself more and more to the patronage of the nation, and the numbers of

meritorious officers which it forms and introduces to the public service furnishes the means of multiplying the undertakings of public improvements to which their acquirements at that institution are peculiarly adapted. The school of artillery practice established at Fortress Monroe is well suited to the same purpose, and may heed the aid of further legislative provision to the same end. The reports of the various officers at the head of the administrative branches of the military service, connected with the quartering, clothing, subsistence, health, and pay of the Army, exhibit the assiduous vigilance of those officers in the performance of their respective duties, and the faithful accountability which has pervaded every part of the system.

Our relations with the numerous tribes of aboriginal natives of this country, scattered over its extensive surface and so dependent even for their existence upon our power, have been during the present year highly interesting. An act of Congress of 25th of May, 1824, made an appropriation to defray the expenses of making treaties of trade and friendship with the Indian tribes beyond the Mississippi. An act of 3d of March, 1825, authorized treaties to be made with the Indians for their consent to the making of a road from the frontier of Missouri to that of New Mexico, and another act of the same date provided for defraying the expenses of holding treaties with the Sioux, Chippeways, Menomenees, Sauks, Foxes, etc., for the purpose of establishing boundaries and promoting peace between said tribes. The first and the last objects of these acts have been accomplished, and the second is yet in a process of execution. The treaties which since the last session of Congress have been concluded with the several tribes will be laid before the Senate for their consideration conformably to the Constitution. They comprise large and valuable acquisitions of territory, and they secure an adjustment of boundaries and give pledges of permanent

peace between several tribes which had been long waging bloody wars against each other.

On the 12th of February last a treaty was signed at the Indian Springs between commissioners appointed on the part of the United States and certain chiefs and individuals of the Creek Nation of Indians, which was received at the seat of Government only a very few days before the close of the last session of Congress and of the late administration. The advice and consent of the Senate was given to it on the 3d of March, too late for it to receive the ratification of the then President of the United States; it was ratified on the 7th of March, under the unsuspecting impression that it had been negotiated in good faith and in the confidence inspired by the recommendation of the Senate. The subsequent transactions in relation to this treaty will form the subject of a separate communication.

The appropriations made by Congress for public works, as well in the construction of fortifications as for purposes of internal improvement, so far as they have been expended, have been faithfully applied. Their progress has been delayed by the want of suitable officers for superintending them. An increase of both the corps of engineers, military and topographical, was recommended by my predecessor at the last session of Congress. The reasons upon which that recommendation was founded subsist in all their force and have acquired additional urgency since that time. It may also be expedient to organize the topographical engineers into a corps similar to the present establishment of the Corps of Engineers. The Military Academy at West Point will furnish from the cadets annually graduated there officers well qualified for carrying this measure into effect.

The Board of Engineers for Internal Improvement, appointed for carrying into execution the act of Congress of 30th of April, 1824, "to procure the necessary surveys, plans, and estimates on the subject of roads and canals,"

have been actively engaged in that service from the close of the last session of Congress. They have completed the surveys necessary for ascertaining the practicability of a canal from the Chesapeake Bay to the Ohio River, and are preparing a full report on that subject, which, when completed, will be laid before you. The same observation is to be made with regard to the two other objects of national importance upon which the Board have been occupied, namely, the accomplishment of a national road from this city to New Orleans, and the practicability of uniting the waters of Lake Memphramagog with Connecticut River and the improvement of the navigation of that river. The surveys have been made and are nearly completed. The report may be expected at an early period during the present session of Congress.

The acts of Congress of the last session relative to the surveying, marking, or laying out roads in the Territories of Florida, Arkansas, and Michigan, from Missouri to Mexico, and for the continuation of the Cumberland road, are, some of them, fully executed, and others in the process of execution. Those for completing or commencing fortifications have been delayed only so far as the Corps of Engineers has been inadequate to furnish officers for the necessary superintendence of the works. Under the act confirming the statutes of Virginia and Maryland incorporating the Chesapeake and Ohio Canal Company, three commissioners on the part of the United States have been appointed for opening books and receiving subscriptions, in concert with a like number of commissioners appointed on the part of each of those States. A meeting of the commissioners has been postponed, to await the definitive report of the board of engineers. The light-houses and monuments for the safety of our commerce and mariners, the works for the security of Plymouth Beach and for the preservation of the islands in Boston Harbor, have received the attention required by the laws relating to

those objects respectively. The continuation of the Cumberland road, the most important of them all, after surmounting no inconsiderable difficulty in fixing upon the direction of the road, has commenced under the most promising auspices, with the improvements of recent invention in the mode of construction, and with the advantage of a great reduction in the comparative cost of the work.

The operation of the laws relating to the Revolutionary pensioners may deserve the renewed consideration of Congress. The act of the 18th of March, 1818, while it made provision for many meritorious and indigent citizens who had served in the War of Independence, opened a door to numerous abuses and impositions. To remedy this the act of 1st May, 1820, exacted proofs of absolute indigence, which many really in want were unable and all susceptible of that delicacy which is allied to many virtues must be deeply reluctant to give. The result has been that some among the least deserving have been retained, and some in whom the requisites both of worth and want were combined have been stricken from the list. As the numbers of these venerable relics of an age gone by diminish; as the decays of body, mind, and estate of those that survive must in the common course of nature increase, should not a more liberal portion of indulgence be dealt out to them? May not the want in most instances be inferred from the demand when the service can be proved, and may not the last days of human infirmity be spared the mortification of purchasing a pittance of relief only by the exposure of its own necessities? I submit to Congress the expediency of providing for individual cases of this description by special enactment, or of revising the act of the 1st of May, 1820, with a view to mitigate the rigor of its exclusions in favor of persons to whom charity now bestowed can scarcely discharge the debt of justice.

The portion of the naval force of the Union in actual service has been chiefly employed on three stations-the Mediterranean, the coasts of South America bordering on the Pacific Ocean, and the West Indies. An occasional cruiser has been sent to range along the African shores most polluted by the traffic of slaves; one armed vessel has been stationed on the coast of our eastern boundary, to cruise along the fishing grounds in Hudsons Bay and on the coast of Labrador, and the first service of a new frigate has been performed in restoring to his native soil and domestic enjoyments the veteran hero whose youthful blood and treasure had freely flowed in the cause of our country's independence, and whose whole life has been a series of services and sacrifices to the improvement of his fellow-men. The visit of General Lafayette, alike honorable to himself and to our country, closed, as it had commenced, with the most affecting testimonials of devoted attachment on his part, and of unbounded gratitude of this people to him in return. It will form hereafter a pleasing incident in the annals of our Union, giving to real history the intense interest of romance and signally marking the unpurchasable tribute of a great nation's social affections to the disinterested champion of the liberties of human-kind.

The constant maintenance of a small squadron in the Mediterranean is a necessary substitute for the humiliating alternative of paying tribute for the security of our commerce in that sea, and for a precarious peace, at the mercy of every caprice of four Barbary States, by whom it was liable to be violated. An additional motive for keeping a respectable force stationed there at this time is found in the maritime war raging between the Greeks and the Turks, and in which the neutral navigation of this Union is always in danger of outrage and depredation. A few instances have occurred of such depredations upon our merchant vessels by privateers or pirates wearing the Grecian flag, but without real authority from the Greek or any other

Government. The heroic struggles of the Greeks themselves, in which our warmest sympathies as freemen and Christians have been engaged, have continued to be maintained with vicissitudes of success adverse and favorable.

Similar motives have rendered expedient the keeping of a like force on the coasts of Peru and Chile on the Pacific. The irregular and convulsive character of the war upon the shores has been extended to the conflicts upon the ocean. An active warfare has been kept up for years with alternate success, though generally to the advantage of the American patriots. But their naval forces have not always been under the control of their own Governments. Blockades, unjustifiable upon any acknowledged principles of international law, have been proclaimed by officers in command, and though disavowed by the supreme authorities, the protection of our own commerce against them has been made cause of complaint and erroneous imputations against some of the most gallant officers of our Navy. Complaints equally groundless have been made by the commanders of the Spanish royal forces in those seas; but the most effective protection to our commerce has been the flag and the firmness of our own commanding officers. The cessation of the war by the complete triumph of the patriot cause has removed, it is hoped, all cause of dissension with one party and all vestige of force of the other. But an unsettled coast of many degrees of latitude forming a part of our own territory and a flourishing commerce and fishery extending to the islands of the Pacific and to China still require that the protecting power of the Union should be displayed under its flag as well upon the ocean as upon the land.

The objects of the West India Squadron have been to carry into execution the laws for the suppression of the African slave trade; for the protection of our commerce against vessels of piratical character, though bearing

commissions from either of the belligerent parties; for its protection against open and unequivocal pirates. These objects during the present year have been accomplished more effectually than at any former period. The African slave trade has long been excluded from the use of our flag, and if some few citizens of our country have continued to set the laws of the Union as well as those of nature and humanity at defiance by persevering in that abominable traffic, it has been only by sheltering themselves under the banners of other nations less earnest for the total extinction of the trade than ours. The irregular privateers have within the last year been in a great measure banished from those seas, and the pirates for months past appear to have been almost entirely swept away from the borders and the shores of the two Spanish islands in those regions. The active, persevering, and unremitted energy of Captain Warrington and of the officers and men under his command on that trying and perilous service have been crowned with signal success, and are entitled to the approbation of their country. But experience has shown that not even a temporary suspension or relaxation from assiduity can be indulged on that station without reproducing piracy and murder in all their horrors; nor is it probable that for years to come our immensely valuable commerce in those seas can navigate in security without the steady continuance of an armed force devoted to its protection.

It were, indeed, a vain and dangerous illusion to believe that in the present or probable condition of human society a commerce so extensive and so rich as ours could exist and be pursued in safety without the continual support of a military marine-the only arm by which the power of this Confederacy can be estimated or felt by foreign nations, and the only standing military force which can never be dangerous to our own liberties at home. A permanent naval peace establishment, therefore, adapted to our present condition, and adaptable to that gigantic growth with which

the nation is advancing in its career, is among the subjects which have already occupied the foresight of the last Congress, and which will deserve your serious deliberations. Our Navy, commenced at an early period of our present political organization upon a scale commensurate with the incipient energies, the scanty resources, and the comparative indigence of our infancy, was even then found adequate to cope with all the powers of Barbary, save the first, and with one of the principal maritime powers of Europe.

At a period of further advancement, but with little accession of strength, it not only sustained with honor the most unequal of conflicts, but covered itself and our country with unfading glory. But it is only since the close of the late war that by the numbers and force of the ships of which it was composed it could deserve the name of a navy. Yet it retains nearly the same organization as when it consisted only of five frigates. The rules and regulations by which it is governed earnestly call for revision, and the want of a naval school of instruction, corresponding with the Military Academy at West Point, for the formation of scientific and accomplished officers, is felt with daily increasing aggravation.

The act of Congress of 26th of May, 1824, authorizing an examination and survey of the harbor of Charleston, in South Carolina, of St. Marys, in Georgia, and of the coast of Florida, and for other purposes, has been executed so far as the appropriation would admit. Those of the 3d of March last, authorizing the establishment of a navy-yard and depot on the coast of Florida, in the Gulf of Mexico, and authorizing the building of ten sloops of war, and for other purposes, are in the course of execution, for the particulars of which and other objects connected with this Department I refer to the report of the Secretary of the Navy, herewith communicated.

A report from the Postmaster-General is also submitted, exhibiting the present flourishing condition of that Department. For the first time for many years the receipts for the year ending on the 1st of July last exceeded the expenditures during the same period to the amount of more than \$45,000. Other facts equally creditable to the administration of this Department are that in two years from the 1st of July, 1823, an improvement of more than \$185,000 in its pecuniary affairs has been realized; that in the same interval the increase of the transportation of the mail has exceeded 1,500,000 miles annually, and that 1,040 new post-offices have been established. It hence appears that under judicious management the income from this establishment may be relied on as fully adequate to defray its expenses, and that by the discontinuance of post-roads altogether unproductive others of more useful character may be opened, till the circulation of the mail shall keep pace with the spread of our population, and the comforts of friendly correspondence, the exchanges of internal traffic, and the lights of the periodical press shall be distributed to the remotest corners of the Union, at a charge scarcely perceptible to any individual, and without the cost of a dollar to the public Treasury.

Upon this first occasion of addressing the Legislature of the Union, with which I have been honored, in presenting to their view the execution so far as it has been effected of the measures sanctioned by them for promoting the internal improvement of our country, I can not close the communication without recommending to their calm and persevering consideration the general principle in a more enlarged extent. The great object of the institution of civil government is the improvement of the condition of those who are parties to the social compact, and no government, in whatever form constituted, can accomplish the lawful ends of its institution but in proportion as it improves the condition of those over whom it is established. Roads and

canals, by multiplying and facilitating the communications and intercourse between distant regions and multitudes of men, are among the most important means of improvement. But moral, political, intellectual improvement are duties assigned by the Author of Our existence to social no less than to individual man. For the fulfillment of those duties governments are invested with power, and to the attainment of the end-the progressive improvement of the condition of the governed-the exercise of delegated powers is a duty as sacred and indispensable as the usurpation of powers not granted is criminal and odious. Among the first, perhaps the very first, instrument for the improvement of the condition of men is knowledge, and to the acquisition of much of the knowledge adapted to the wants, the comforts, and enjoyments of human life public institutions and seminaries of learning are essential. So convinced of this was the first of my predecessors in this office, now first in the memory, as, living, he was first in the hearts, of our countrymen, that once and again in his addresses to the Congresses with whom he cooperated in the public service he earnestly recommended the establishment of seminaries of learning, to prepare for all the emergencies of peace and war-a national university and a military academy. With respect to the latter, had he lived to the present day, in turning his eyes to the institution at West Point he would have enjoyed the gratification of his most earnest wishes; but in surveying the city which has been honored with his name he would have seen the spot of earth which he had destined and bequeathed to the use and benefit of his country as the site for an university still bare and barren.

In assuming her station among the civilized nations of the earth it would seem that our country had contracted the engagement to contribute her share of mind, of labor, and of expense to the improvement of those parts of knowledge which lie beyond the reach of individual acquisition, and particularly to geographical and astronomical science.

Looking back to the history only of the half century since the declaration of our independence, and observing the generous emulation with which the Governments of France, Great Britain, and Russia have devoted the genius, the intelligence, the treasures of their respective nations to the common improvement of the species in these branches of science, is it not incumbent upon us to inquire whether we are not bound by obligations of a high and honorable character to contribute our portion of energy and exertion to the common stock? The voyages of discovery prosecuted in the course of that time at the expense of those nations have not only redounded to their glory, but to the improvement of human knowledge. We have been partakers of that improvement and owe for it a sacred debt, not only of gratitude, but of equal or proportional exertion in the same common cause. Of the cost of these undertakings, if the mere expenditures of outfit, equipment, and completion of the expeditions were to be considered the only charges, it would be unworthy of a great and generous nation to take a second thought. One hundred expeditions of circumnavigation like those of Cook and La Pérouse would not burden the exchequer of the nation fitting them out so much as the ways and means of defraying a single campaign in war. But if we take into the account the lives of those benefactors of mankind of which their services in the cause of their species were the purchase, how shall the cost of those heroic enterprises be estimated, and what compensation can be made to them or to their countries for them? Is it not by bearing them in affectionate remembrance? Is it not still more by imitating their example-by enabling countrymen of our own to pursue the same career and to hazard their lives in the same cause?

In inviting the attention of Congress to the subject of internal improvements upon a view thus enlarged it is not my design to recommend the equipment of an expedition for circumnavigating the globe for purposes of scientific

research and inquiry. We have objects of useful investigation nearer home, and to which our cares may be more beneficially applied. The interior of our own territories has yet been very imperfectly explored. Our coasts along many degrees of latitude upon the shores of the Pacific Ocean, though much frequented by our spirited commercial navigators, have been barely visited by our public ships. The River of the West, first fully discovered and navigated by a countryman of our own, still bears the name of the ship in which he ascended its waters, and claims the protection of our armed national flag at its mouth. With the establishment of a military post there or at some other point of that coast, recommended by my predecessor and already matured in the deliberations of the last Congress, I would suggest the expediency of connecting the equipment of a public ship for the exploration of the whole northwest coast of this continent.

The establishment of an uniform standard of weights and measures was one of the specific objects contemplated in the formation of our Constitution, and to fix that standard was one of the powers delegated by express terms in that instrument to Congress. The Governments of Great Britain and France have scarcely ceased to be occupied with inquiries and speculations on the same subject since the existence of our Constitution, and with them it has expanded into profound, laborious, and expensive researches into the figure of the earth and the comparative length of the pendulum vibrating seconds in various latitudes from the equator to the pole. These researches have resulted in the composition and publication of several works highly interesting to the cause of science. The experiments are yet in the process of performance. Some of them have recently been made on our own shores, within the walls of one of our own colleges, and partly by one of our own fellow-citizens. It would be honorable to our country if the sequel of the same experiments should be

countenanced by the patronage of our Government, as they have hitherto been by those of France and Britain.

Connected with the establishment of an university, or separate from it, might be undertaken the erection of an astronomical observatory, with provision for the support of an astronomer, to be in constant attendance of observation upon the phenomena of the heavens, and for the periodical publication of his observations. It is with no feeling of pride as an American that the remark may be made that on the comparatively small territorial surface of Europe there are existing upward of 130 of these light-houses of the skies, while throughout the whole American hemisphere there is not one. If we reflect a moment upon the discoveries which in the last four centuries have been made in the physical constitution of the universe by the means of these buildings and of observers stationed in them, shall we doubt of their usefulness to every nation? And while scarcely a year passes over our heads without bringing some new astronomical discovery to light, which we must fain receive at second hand from Europe, are we not cutting ourselves off from the means of returning light for light while we have neither observatory nor observer upon our half of the globe and the earth revolves in perpetual darkness to our unsearching eyes?

When, on the 25th of October, 1791, the first President of the United States announced to Congress the result of the first enumeration of the inhabitants of this Union, he informed them that the returns gave the pleasing assurance that the population of the United States bordered on 4,000,000 persons. At the distance of thirty years from that time the last enumeration, five years since completed, presented a population bordering upon 10,000,000. Perhaps of all the evidences of a prosperous and happy condition of human society the rapidity of the increase of population is the most unequivocal. But the demonstration of our prosperity rests not alone upon this indication. Our

commerce, our wealth, and the extent of our territories have increased in corresponding proportions, and the number of independent communities associated in our Federal Union has since that time nearly doubled. The legislative representation of the States and people in the two Houses of Congress has grown with the growth of their constituent bodies. The House, which then consisted of 65 members, now numbers upward of 200. The Senate, which consisted of 26 members, has now 48. But the executive and, still more, the judiciary departments are yet in a great measure confined to their primitive organization, and are now not adequate to the urgent wants of a still growing community.

The naval armaments, which at an early period forced themselves upon the necessities of the Union, soon led to the establishment of a Department of the Navy. But the Departments of Foreign Affairs and of the Interior, which early after the formation of the Government had been united in one, continue so united to this time, to the unquestionable detriment of the public service. The multiplication of our relations with the nations and Governments of the Old World has kept pace with that of our population and commerce, while within the last ten years a new family of nations in our own hemisphere has arisen among the inhabitants of the earth, with whom our intercourse, commercial and political, would of itself furnish occupation to an active and industrious department. The constitution of the judiciary, experimental and imperfect as it was even in the infancy of our existing Government, is yet more inadequate to the administration of national justice at our present maturity. Nine years have elapsed since a predecessor in this office, now not the last, the citizen who, perhaps, of all others throughout the Union contributed most to the formation and establishment of our Constitution, in his valedictory address to Congress, immediately preceding his retirement from public life, urgently recommended the revision of the judiciary and the

establishment of an additional executive department. The exigencies of the public service and its unavoidable deficiencies, as now in exercise, have added yearly cumulative weight to the considerations presented by him as persuasive to the measure, and in recommending it to your deliberations I am happy to have the influence of his high authority in aid of the undoubting convictions of my own experience.

The laws relating to the administration of the Patent Office are deserving of much consideration and perhaps susceptible of some improvement. The grant of power to regulate the action of Congress upon this subject has specified both the end to be obtained and the means by which it is to be effected, "to promote the progress of science and useful arts by securing for limited times to authors and inventors the exclusive right to their respective writings and discoveries." If an honest pride might be indulged in the reflection that on the records of that office are already found inventions the usefulness of which has scarcely been transcended in the annals of human ingenuity, would not its exultation be allayed by the inquiry whether the laws have effectively insured to the inventors the reward destined to them by the Constitution-even a limited term of exclusive right to their discoveries?

On the 24th of December, 1799, it was resolved by Congress that a marble monument should be erected by the United States in the Capitol at the city of Washington; that the family of General Washington should be requested to permit his body to be deposited under it, and that the monument be so designed as to commemorate the great events of his military and political life. In reminding Congress of this resolution and that the monument contemplated by it remains yet without execution, I shall indulge only the remarks that the works at the Capitol are approaching to completion; that the consent of the family, desired by the resolution, was requested and obtained; that a

monument has been recently erected in this city over the remains of another distinguished patriot of the Revolution, and that a spot has been reserved within the walls where you are deliberating for the benefit of this and future ages, in which the mortal remains may be deposited of him whose spirit hovers over you and listens with delight to every act of the representatives of his nation which can tend to exalt and adorn his and their country.

The Constitution under which you are assembled is a charter of limited powers. After full and solemn deliberation upon all or any of the objects which, urged by an irresistible sense of my own duty, I have recommended to your attention should you come to the conclusion that, however desirable in themselves, the enactment of laws for effecting them would transcend the powers committed to you by that venerable instrument which we are all bound to support, let no consideration induce you to assume the exercise of powers not granted to you by the people. But if the power to exercise exclusive legislation in all cases whatsoever over the district of Columbia; if the power to lay and collect taxes, duties, imposts, and excises, to pay the debts and provide for the common defense and general welfare of the United States; if the power to regulate commerce with foreign nations and among the several States and with the Indian tribes, to fix the standard of weights and measures, to establish post-offices and post-roads, to declare war, to raise and support armies, to provide and maintain a navy, to dispose of and make all heedful rules and regulations respecting the territory or other property belonging to the United States, and to make all laws which shall be necessary and proper for carrying these powers into execution-if these powers and others enumerated in the Constitution may be effectually brought into action by laws promoting the improvement of agriculture, commerce, and manufactures, the cultivation and encouragement of the mechanic and of the elegant arts, the advancement of

literature, and the progress of the sciences, ornamental and profound, to refrain from exercising them for the benefit of the people themselves would be to hide in the earth the talent committed to our charge-would be treachery to the most sacred of trusts.

The spirit of improvement is abroad upon the earth. It stimulates the hearts and sharpens the faculties not of our fellow-citizens alone, but of the nations of Europe and of their rulers. While dwelling with pleasing satisfaction upon the superior excellence of our political institutions, let us not be unmindful that liberty is power; that the nation blessed with the largest portion of liberty must in proportion to its numbers be the most powerful nation upon earth, and that the tenure of power by man is, in the moral purposes of his Creator, upon condition that it shall be exercised to ends of beneficence, to improve the condition of himself and his fellow-men. While foreign nations less blessed with that freedom which is power than ourselves are advancing with gigantic strides in the career of public improvement, were we to slumber in indolence or fold up our arms and proclaim to the world that we are palsied by the will of our constituents, would it not be to cast away the bounties of Providence and doom ourselves to perpetual inferiority? In the course of the year now drawing to its close we have beheld, under the auspices and at the expense of one State of this Union, a new university unfolding its portals to the sons of science and holding up the torch of human improvement to eyes that seek the light. We have seen under the persevering and enlightened enterprise of another State the waters of our Western lakes mingle with those of the ocean. If undertakings like these have been accomplished in the compass of a few years by the authority of single members of our Confederation, can we, the representative authorities of the whole Union, fall behind our fellow-servants in the exercise of the trust committed to us for the benefit of our common sovereign

by the accomplishment of works important to the whole and to which neither the authority nor the resources of any one State can be adequate?

Finally, fellow-citizens, I shall await with cheering hope and faithful cooperation the result of your deliberations, assured that, without encroaching upon the powers reserved to the authorities of the respective States or to the people, you will, with a due sense of your obligations to your country and of the high responsibilities weighing upon yourselves, give efficacy to the means committed to you for the common good. And may He who searches the hearts of the children of men prosper your exertions to secure the blessings of peace and promote the highest welfare of our country.

John Quincy Adams.

SPECIAL MESSAGES.

Washington,
December 14, 1825.

To the Senate of the United States:

I transmit to the Senate, for their consideration and advice with regard to their ratification, the following treaties:

1. A treaty between the United States and the Great and Little Osage tribes of Indians, concluded at St. Louis, in the State of Missouri, on the 2d day of June last, by William Clark, Superintendent of Indian Affairs, commissioner on the part of the United States, and the chiefs, headmen, and warriors of the same tribes, duly authorized and empowered by their respective tribes or nations.

2. A treaty between the United States and the Kansas Nation of Indians, concluded at St. Louis, in the State of Missouri, on the 3d day of June last, by William Clark, Superintendent of Indian Affairs, commissioner on the part of the United States, and the chiefs, headmen, and warriors of the said nation, duly authorized and empowered by the same.

3. A convention between the United States and the Shawnee Nation of Indians residing within the State of Missouri, signed at St. Louis, in the State of Missouri, on the 7th day of November last, by William Clark, Superintendent of Indian Affairs, and the chiefs and headmen of the said nation, duly authorized and empowered by the same.

John Quincy Adams.

Washington,
December 15, 1825.

To the Senate of the United States:

I transmit herewith to the Senate, for their consideration in reference to its ratification, a general convention of peace, amity, commerce, and navigation between the United States of America and the Federation of the Centre of America, signed at this place on the 5th instant by the Secretary of State and the minister plenipotentiary from the Republic of Central America to the United States.

John Quincy Adams.

Washington,
December 26, 1825

To the Senate of the United States:

In the message to both Houses of Congress at the commencement of the session it was mentioned that the Governments of the Republics of Colombia, of Mexico, and of Central America had severally invited the Government of the United States to be represented at the Congress of American nations to be assembled at Panama to deliberate upon objects of peculiar concernment to this hemisphere, and that this invitation had been accepted.

Although this measure was deemed to be within the constitutional competency of the Executive, I have not thought proper to take any step in it before ascertaining that my opinion of its expediency will concur with that of both branches of the Legislature, first, by the decision of the Senate upon the nominations to be laid before them, and, secondly, by the sanction of both Houses to the

appropriations, without which it can not be carried into effect.

A report from the Secretary of State and copies of the correspondence with the South American Governments on this subject since the invitation given by them are herewith transmitted to the Senate. They will disclose the objects of importance which are expected to form a subject of discussion at this meeting, in which interests of high importance to this Union are involved. It will be seen that the United States neither intend nor are expected to take part in any deliberations of a belligerent character; that the motive of their attendance is neither to contract alliances nor to engage in any undertaking or project importing hostility to any other nation.

But the Southern American nations, in the infancy of their independence, often find themselves in positions with reference to other countries with the principles applicable to which, derivable from the state of independence itself, they have not been familiarized by experience. The result of this has been that sometimes in their intercourse with the United States they have manifested dispositions to reserve a right of granting special favors and privileges to the Spanish nation as the price of their recognition. At others they have actually established duties and impositions operating unfavorably to the United States to the advantage of other European powers, and sometimes they have appeared to consider that they might interchange among themselves mutual concessions of exclusive favor, to which neither European powers nor the United States should be admitted. In most of these cases their regulations unfavorable to us have yielded to friendly expostulation and remonstrance. But it is believed to be of infinite moment that the principles of a liberal commercial intercourse should be exhibited to them, and urged with disinterested and friendly persuasion upon them when all assembled for the avowed purpose of consulting together upon the establishment of

such principles as may have an important bearing upon their future welfare.

The consentaneous adoption of principles of maritime neutrality, and favorable to the navigation of peace, and commerce in time of war, will also form a subject of consideration to this Congress. The doctrine that free ships make free goods and the restrictions of reason upon the extent of blockades may be established by general agreement with far more ease, and perhaps with less danger, by the general engagement to adhere to them concerted at such a meeting, than by partial treaties or conventions with each of the nations separately. An agreement between all the parties represented at the meeting that each will guard by its own means against the establishment of any future European colony within its borders may be found advisable. This was more than two years since announced by my predecessor to the world as a principle resulting from the emancipation of both the American continents. It may be so developed to the new southern nations that they will all feel it as an essential appendage to their independence.

There is yet another subject upon which, without entering into any treaty, the moral influence of the United States may perhaps be exerted with beneficial consequences at such a meeting-the advancement of religious liberty. Some of the southern nations are even yet so far under the dominion of prejudice that they have incorporated with their political constitutions an exclusive church, without toleration of any other than the dominant sect. The abandonment of this last badge of religious bigotry and oppression may be pressed more effectually by the united exertions of those who concur in the principles of freedom of conscience upon those who are yet to be convinced of their justice and wisdom than by the solitary efforts of a minister to any one of the separate Governments.

The indirect influence which the United States may exercise upon any projects or purposes originating in the war in which the southern Republics are still engaged, which might seriously affect the interests of this Union, and the good offices by which the United States may ultimately contribute to bring that war to a speedier termination, though among the motives which have convinced me of the propriety of complying with this invitation, are so far contingent and eventual that it would be improper to dwell upon them more at large.

In fine, a decisive inducement with me for acceding to the measure is to show by this token of respect to the southern Republics the interest that we take in their welfare and our disposition to comply with their wishes. Having been the first to recognize their independence, and sympathized with them so far as was compatible with our neutral duties in all their struggles and sufferings to acquire it, we have laid the foundation of our future intercourse with them in the broadest principles of reciprocity and the most cordial feelings of fraternal friendship. To extend those principles to all our commercial relations with them and to hand down that friendship to future ages is congenial to the highest policy of the Union, as it will be to that of all those nations and their posterity. In the confidence that these sentiments will meet the approbation of the Senate, I nominate Richard C. Anderson, of Kentucky, and John Sergeant, of Pennsylvania, to be envoys extraordinary and ministers plenipotentiary to the assembly of American nations at Panama, and William B. Rochester, of New York, to be secretary to the mission.

John Quincy Adams.

Washington,
December 27, 1825

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 20th instant, I now transmit a copy of the message of President Jefferson to both Houses of Congress on the 18th of January, 1803, recommending an exploring expedition across this continent.[\[001\]](#) It will be perceived on the perusal of this message that it was confidential, for which reason the copy of it is now communicated in the same manner, leaving to the judgment of the House to determine whether any adequate reason yet remains for withholding it from publication. I possess no other document or information in relation to the same subject which I consider as coming within the scope of the resolution of the House.

John Quincy Adams.

Washington,

December 27, 1825 To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 20th instant, I transmit herewith a report from the Secretary of State, with copies of such portions of the correspondence between the United States and Great Britain on the subject of the convention for suppressing the slave trade as have not heretofore been, and which can be communicated without detriment to the public interest.

John Quincy Adams.

Washington,

December 27, 1825

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 23d instant, I transmit herewith a report from the Secretary of War, with the correspondence between the Department of War and Generals Pinckney and Jackson, and all the instructions given to the said Generals Pinckney and Jackson relating to the treaty with the Creek Indians, afterwards made at Fort Jackson, so far as the same can be communicated without prejudice to the public interest.

John Quincy Adams.

Washington,
January 3, 1826

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 23d of last month, I communicate herewith a report from the Secretary of War, with the documents touching the treaty with the Cherokee Indians, ratified in 1819, by which the Cherokee title to a portion of lands within the limits of North Carolina was extinguished.

John Quincy Adams.

Washington,
January 9, 1826

To the Senate of the United States:

In compliance with a resolution of the Senate of the 3d instant, I communicate herewith, in confidence, a report [\[002\]](#) from the Secretary of State, with translations of the conventions and documents, containing information of the nature referred to in the said resolution.

John Quincy Adams.

Washington,
January 9, 1826

To the Senate of the United States:

I transmit to the Senate, for their consideration and advice with regard to the ratification, the following treaties:

1. A treaty signed at the Poncar village at the mouth of White Point Creek, the first below the Qui Carre River, on the 9th of June, 1825, by Brigadier-General Henry Atkinson and Major Benjamin O'Fallon, commissioners on the part of the United States, and certain chiefs, headmen, and warriors of the Poncar tribe of Indians on the part of said tribe.

2. A treaty signed at Fort Look-out, near the Three Rivers of the Sioux Pass, on the 22d June, 1825, by the same commissioners on the part of the United States and certain chiefs, headmen, and warriors of the Teton, Yancton, and Yanctonies bands of the Sioux tribe of Indians on the part of the said bands.

3. A treaty signed at the mouth of the Teton River on the 5th of July, 1825, by the same commissioners on the part of the United States and by certain chiefs, headmen, and warriors of the Sione and Ogalla bands of Sioux Indians, and on the 12th of July, 1825, at Camp Hidden Creek, by chiefs and warriors of the Siounes of the Fireheart's band on the part of their respective bands.

4. A treaty signed at the mouth of the Teton River on the 6th of July, 1825, by the same commissioners on the part of the United States and by certain chiefs, headmen, and warriors of the Chayenne tribe of Indians on the part of said tribe.

5. A treaty signed at the Auricara village on the 16th July, 1825, by the same commissioners on the part of the United

States and by certain chiefs, headmen, and warriors of the Hunkpapas band of the Sioux tribe of Indians on the part of said band.

6. A treaty signed at the Ricara village on the 18th July, 1825, by the same commissioners on the part of the United States and by certain chiefs, headmen, and warriors of the Ricara tribe of Indians on the part of said tribe.

7. A treaty signed at the Mandan village on the 30th of July, 1825, by the same commissioners on the part of the United States and by certain chiefs and warriors of the Mandan tribe of Indians on the part of said tribe.

8. A treaty signed at the lower Mandan village on the 30th of July, 1825, by the same commissioners on the part of the United States and by certain chiefs and warriors of the Belantse Etea, or Minnetaree, tribe of Indians on the part of said tribe.

9. A treaty signed at the Mandan village on the 4th of August, 1825, by the same commissioners on the part of the United States and by certain chiefs and warriors of the Crow tribe of Indians on the part of said tribe.

10. A treaty signed at Fort Atkinson, Council Bluffs, on the 25th of September, 1825, by the same commissioners on the part of the United States and by certain chiefs, headmen, and warriors of the Otoe and Missouri tribe of Indians on the part of said tribe.

11. A treaty signed at Fort Atkinson, Council Bluffs, on the 30th of September, 1825, by the same commissioners on the part of the United States and by certain chiefs, headmen, and warriors of the Pawnee tribe of Indians on the part of said tribe.

12. A treaty signed at Fort Atkinson, Council Bluffs, on the 6th of October, 1825, by the same commissioners on the part of the United States and by certain chiefs, headmen,

and warriors of the Maha tribe of Indians on the part of said tribe.

John Quincy Adams.

Washington,
January 10, 1826

To the Senate of the United States:

I transmit to the Senate a treaty signed at Prairie des Chiens, in the Territory of Michigan, on the 19th of August, 1825, by William Clark and Lewis Cass, commissioners on the part of the United States, and certain chiefs and warriors of the Sioux, Chippeways, Socs, Foxes, Winnebagoes, Menominies, Ottoways, Potawatamies, and Ioway tribes of Indians on the part of said tribes, and I request the advice of the Senate with regard to its ratification.

John Quincy Adams.

Washington,
January 20, 1826

To the House of Representatives of the United States:

In compliance with the resolution of the House of Representatives of the 23d ultimo, I transmit herewith reports[\[003\]](#) from the Secretary of War and the Commissioner of the General Land Office, with the statements desired by the resolution.

John Quincy Adams.

Washington,
January 23, 1826

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 27th December last, requesting a statement of moneys paid out of the public Treasury to the late President of the United States as compensation for his services in various other offices which he has filled under the Government of the United States, and on other accounts, and also of claims for allowances made by him upon the Government which have been disallowed, I transmit herewith a report from the Secretary of the Treasury, with documents, containing the information desired by the resolution.

John Quincy Adams.

Washington,
January 24, 1826

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 12th December last, I transmit herewith a report from the Secretary of the Navy, with the documents and proceedings of the naval courts-martial in the cases of Captain Charles Stewart and of Lieutenants Joshua R. Sands and William M. Hunter.

John Quincy Adams.

Washington,
January 30, 1826

To the Senate of the United States:

I transmit herewith to the Senate, for their consideration and advice with regard to their ratification-

1. A treaty concluded on the 10th day of August, 1825, at Council Grove by Benjamin H. Reeves, George C. Sibley, and Thomas Mather, commissioners on the part of the United States, and certain chiefs and headmen of the Great and Little Osage tribes of Indians on the part of the said tribe.

2. A treaty concluded on the 16th day of August, 1825, at the Sora Kansas Creek by the same commissioners on the part of the United States and certain chiefs and headmen of the Kansas tribe or nation of Indians on the part of said tribe.

John Quincy Adams.

Washington,
January 31, 1826

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 18th instant, I transmit a report from the Secretary of State, with the correspondence with the British Government, relating to the boundary of the United States on the Pacific Ocean, desired by the resolution.

John Quincy Adams.

Washington,
January 31, 1826

To the Senate of the United States:

I transmit herewith to the Senate, for their consideration and advice with regard to its ratification, a treaty concluded by the Secretary of War, duly authorized thereto, with the chiefs and headmen of the Creek Nation, deputed by them, and now in this city.

It has been agreed upon, and is presented to the consideration of the Senate as a substitute for the treaty signed at the Indian Springs on the 12th of February last. The circumstances under which this received on the 3d of March last your advice and consent to its ratification are known to you. It was transmitted to me from the Senate on the 5th of March, and ratified in full confidence yielded to the advice and consent of the Senate, under a firm belief, founded on the journal of the commissioners of the United States and on the express statements in the letter of one of them of the 16th of February to the then Secretary of War, that it had been concluded with a large majority of the chiefs of the Creek Nation and with a reasonable prospect of immediate acquiescence by the remainder.

This expectation has not merely been disappointed. The first measures for carrying the treaty into execution had scarcely been taken when the two principal chiefs who had signed it fell victims to the exasperation of the great mass of the nation, and their families and dependents, far from being able to execute the engagements on their part, fled for life, safety, and subsistence from the territories which they had assumed to cede, to our own. Yet, in this fugitive condition, and while subsisting on the bounty of the United States, they have been found advancing pretensions to receive exclusively to themselves the whole of the sums stipulated by the commissioners of the United States in payment *for all* the lands of the Creek Nation which were ceded by the terms of the treaty. And they have claimed the stipulation of the eighth article, that the United States would "*protect* the emigrating party against the encroachments, hostilities, and impositions of the whites and of all others," as an engagement by which the United States were bound to become the instruments of their vengeance and to inflict upon the majority of the Creek Nation the punishment of Indian retribution to gratify the vindictive fury of an impotent and helpless minority of their own tribe.

In this state of things the question is not whether the treaty of the 12th of February last shall or shall not be executed. So far as the United States were or could be bound by it I have been anxiously desirous of carrying it into execution. But, like other treaties, its fulfillment depends upon the will not of one but of both the parties to it. The parties on the face of the treaty are the United States and the Creek Nation, and however desirous one of them may be to give it effect, this wish must prove abortive while the other party refuses to perform its stipulations and disavows its obligations. By the refusal of the Creek Nation to perform their part of the treaty the United States are absolved from all its engagements on their part, and the alternative left them is either to resort to measures of war to secure by force the advantages stipulated to them in the treaty or to attempt the adjustment of the interest by a new compact. In the preference dictated by the nature of our institutions and by the sentiments of justice and humanity which the occasion requires for measures of peace the treaty herewith transmitted has been concluded, and is submitted to the decision of the Senate. After exhausting every effort in our power to obtain the acquiescence of the Creek Nation to the treaty of the 12th of February, I entertained for some time the hope that their assent might at least have been given to a new treaty, by which all their lands within the State of Georgia should have been ceded. This has also proved impracticable, and although the excepted portion is of comparatively small amount and importance, I have assented to its exception so far as to place it before the Senate only from a conviction that between it and a resort to the forcible expulsion of the Creeks from their habitations and lands within the State of Georgia there was no middle term.

The deputation with which this treaty has been concluded consists of the principal chiefs of the nation-able not only to negotiate but to carry into effect the stipulations to which

they have agreed. There is a deputation also here from the small party which undertook to contract for the whole nation at the treaty of the 12th of February, but the number of which, according to the information collected by General Gaines, does not exceed 400. They represent themselves, indeed, to be far more numerous, but whatever their number may be their interests have been provided for in the treaty now submitted. Their subscriptions to it would also have been received but for unreasonable pretensions raised by them after all the arrangements of the treaty had been agreed upon and it was actually signed. Whatever their merits may have been in the facility with which they ceded all the lands of their nation within the State of Georgia, their utter inability to perform the engagements which they so readily contracted and the exorbitancy of their demands when compared with the inefficiency of their own means of performance leave them with no claims upon the United States other than of impartial and rigorous justice.

In referring to the impressions under which I ratified the treaty of the 12th of February last, I do not deem it necessary to decide upon the propriety of the manner in which it was negotiated. Deeply regretting the recriminations and recriminations to which these events have given rise, I believe the public interest will best be consulted by discarding them altogether from the discussion of the subject. The great body of the Creek Nation inflexibly refuse to acknowledge or to execute that treaty. Upon this ground it will be set aside, should the Senate advise and consent to the ratification of that now communicated, without looking back to the means by which the other was effected. And in the adjustment of the terms of the present treaty I have been peculiarly anxious to dispense a measure of great liberality to both parties of the Creek Nation, rather than to extort from them a bargain of which the advantages on our part could only be purchased by hardship on theirs.

John Quincy Adams.

Washington,
February 1, 1826

To the Senate of the United States:

In compliance with a resolution of the Senate of the 50th ultimo, I communicate herewith, in confidence, a report [\[004\]](#) from the Secretary of State, with the documents, containing the information desired by the resolution.

John Quincy Adams.

Washington,
February 7, 1826.

To the Senate of the United States:

In compliance with a resolution of the Senate of the 15th of December last, I communicate herewith reports from the Secretaries of the Treasury and War and from the Commissioner of the General Land Office, with documents, relating to the lead mines and salt springs, containing the information desired by the resolution.

John Quincy Adams.

Washington,
February 14, 1826

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 12th ultimo, I transmit herewith a report from the Secretary of the Navy, with the statements

relating to naval courts of inquiry and courts-martial since the 1st January, 1824, requested by the resolution.

John Quincy Adams.

Washington,
February 15, 1826

To the House of Representatives of the United States:

I transmit to the House of Representatives a report from the late Secretary of War to the late President of the United States, with documents, containing information requested by a resolution of the House of April 10, 1824, relating to the purchases of real estate in behalf of the United States within the territorial limits of any State since the 4th July, 1776.

These papers were prepared during the last session of Congress, but by some accident were not then communicated to the House.

John Quincy Adams.

Washington,
February 16, 1826

To the Senate of the United States:

In answer to the two resolutions of the Senate of the 15th instant, marked executive, and which I have received, I state respectfully that all the communications from me to the Senate relating to the congress at Panama have been made, like all other communications upon executive business, *in confidence*. and most of them in compliance with a resolution of the Senate requesting them confidentially. Believing that the established usage of free confidential communication between the Executive and the

Senate ought for the public interest to be preserved unimpaired, I deem it my indispensable duty to leave to the Senate itself the decision of a question involving a departure hitherto, so far as I am informed, without example from that usage, and upon the motives for which, not being informed of them, I do not feel myself competent to decide.

John Quincy Adams.

Washington,
February 17, 1826

To the House of Representatives of the United States:

I transmit herewith a report from the Secretary of the Navy, with a further document, prepared in compliance with a resolution of the House of the 10th of April, 1824, and containing information relating to purchasers of real estate in behalf of the United States within the territorial limits of any State since the 4th of July, 1776.

John Quincy Adams.

Washington,
February 17, 1826

To the Senate and House of Representatives of the United States:

I transmit herewith to both Houses of Congress a letter from the Secretary of War, with a report from the Ordnance Department, relating to the site of the arsenal of the United States at Augusta, in Georgia, and with regard to which the interposition of the legislative authority is submitted to your consideration as desirable.

John Quincy Adams.

Washington,
March 1, 1826

To the Senate and House of Representatives of the United States:

I communicate to Congress a letter from the Secretary of War, together with a representation from Colonel Brooke, relating to the present condition of the Indians in Florida, and which I recommend to the favorable consideration of Congress.

John Quincy Adams.

Washington,
March 1, 1826

To the House of Representatives of the United States:

A resolution of the House of Representatives adopted at the first session of the Eighteenth Congress, and bearing date the 6th of May, 1824, requested the President of the United States to lay before the House at their then next session a detailed report of the system and plan of fortifications then contemplated and recommended by the Board of Engineers, with various particulars specified in the resolution; and on the 5th of January last a further resolution was adopted requesting similar information. I transmit herewith a report from the Secretary of War, with a letter from the Chief Engineer, and documents, containing, so far as it has been found practicable to obtain and compile it, the information requested by these resolutions.

John Quincy Adams.

Washington,
March 5, 1826.

To the Senate and House of Representatives of the United States:

I now submit to the consideration of Congress the propriety of making the appropriation for carrying into effect the appointment of a mission to the congress at Panama.

John Quincy Adams.

Washington,
March 7, 1826.

To the Senate and House of Representatives of the United States:

I communicate to both Houses of Congress a letter from the Secretary of War, together with copies of one to him from the Senators of the State of Maryland, and several other documents, relating to a claim of that State upon the Government of the United States for interest upon certain expenditures during the late war, which I the more readily recommend to the favorable and early consideration of Congress inasmuch as the principle upon which the claim is advanced appears to have been settled by the act of Congress of 3d March, 1825, authorizing the payment of interest due to the State of Virginia.

John Quincy Adams.

Washington,
March 8, 1826.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report from the Secretary of State, with the proceedings of the court and marshal of the United States for the district of Alabama, and

other documents, in relation to the cargoes of certain slave ships, the *Constitution*, *Louisa*. and *Marino*. containing the information requested by a resolution of the House of February 16, 1825.

John Quincy Adams.

Washington,
March 8, 1826.

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 10th ultimo, requesting information relating to the proceedings of the joint commission of indemnities due under the award of the Emperor of Russia for slaves and other private property carried away by the British forces in violation of the treaty of Ghent, I transmit herewith a report from the Secretary of State and documents containing the information desired by the resolution.

John Quincy Adams.

Washington,
March 15, 1826.

To the Senate and House of Representatives of the United States:

I communicate to Congress a letter from the Secretary of War and copies of a resolution of that legislature of the State of Georgia, with a correspondence of the governor of that State, relating to the running and establishing of the line between that State and Florida, which I recommend to the favorable consideration of Congress.

John Quincy Adams.

Washington,

March 15, 1826. To the House of Representatives of the United States:

In compliance with the resolution of the House of the 5th ultimo, requesting me to cause to be laid before the House so much of the correspondence between the Government of the United States and the new States of America, or their ministers, respecting the proposed congress or meeting of diplomatic agents at Panama, and such information respecting the general character of that expected congress as may be in my possession and as may, in my opinion, be communicated without prejudice to the public interest, and also to inform the House, so far as in my opinion the public interest may allow, in regard to what objects the agents of the United States are expected to take part in the deliberations of that congress, I now transmit to the House a report from the Secretary of State, with the correspondence and information requested by the resolution.

With regard to the objects in which the agents of the United States are expected to take part in the deliberations of that congress, I deem it proper to premise that these objects did not form the only, nor even the principal, motive for my acceptance of the invitation. My first and greatest inducement was to meet in the spirit of kindness and friendship an overture made in that spirit by three sister Republics of this hemisphere.

The great revolution in human affairs which has brought into existence, nearly at the same time, eight sovereign and independent nations in our own quarter of the globe has placed the United States in a situation not less novel and scarcely less interesting than that in which they had found themselves by their own transition from a cluster of colonies to a nation of sovereign States. The deliverance of the Southern American Republics from the oppression

under which they had been so long afflicted was hailed with great unanimity by the people of this Union as among the most auspicious events of the age. On the 4th of May, 1822, an act of Congress made an appropriation of \$100,000 "for such missions to the independent nations on the American continent as the President of the United States might deem proper." In exercising the authority recognized by this act my predecessor, by and with the advice and consent of the Senate appointed successively ministers plenipotentiary to the Republics of Colombia, Buenos Ayres, Chili, and Mexico. Unwilling to raise among the fraternity of freedom questions of precedency and etiquette, which even the European monarchs had of late found it necessary in a great measure to discard, he dispatched these ministers to Colombia, Buenos Ayres, and Chili without exacting from those Republics, as by the ancient principles of political primogeniture he might have done, that the compliment of a plenipotentiary mission should have been paid *first* by them to the United States. The instructions, prepared under his direction, to Mr. Anderson, the first of our ministers to the southern continent, contain at much length the general principles upon which he thought it desirable that our relations, political and commercial, with these our new neighbors should be established for their benefit and ours and that of the future ages of our posterity. A copy of so much of these instructions as relates to these general subjects is among the papers now transmitted to the House. Similar instructions were furnished to the ministers appointed to Buenos Ayres, Chili, and Mexico, and the system of social intercourse which it was the purpose of those missions to establish from the first opening of our diplomatic relations with those rising nations is the most effective exposition of the principles upon which the invitation to the congress at Panama has been accepted by me, as well as of the objects of negotiation at that meeting, in which, it was that our plenipotentiaries should take part.

The House will perceive that even at the date of these instructions the first treaties between some of the southern Republics had been concluded, by which they had stipulated among themselves this diplomatic assembly at Panama. And it will be seen with what caution, so far as it might concern the policy of the United States, and at the same time with what frankness and good will toward those nations, he gave countenance to their design of inviting the United States to this high assembly for consultation upon *American interests*. It was not considered a conclusive reason for declining this invitation that the proposal for assembling such a Congress had not first been made by ourselves. It had sprung from the urgent, immediate, and momentous common interests of the great communities struggling for independence, and, as it were, quickening into life. From them the proposition to us appeared respectful and friendly; from us to them it could scarcely have been made without exposing ourselves to suspicions of purposes of ambition, if not of domination, more suited to rouse resistance and excite distrust than to conciliate favor and friendship. The first and paramount principle upon which it was deemed wise and just to lay the corner stone of all our future relations with them was *disinterestedness*; the next was cordial good will to them; the third was a claim of fair and equal reciprocity. Under these impressions when the invitation was formally and earnestly given, had it even been doubtful whether *any* of the objects proposed for consideration and discussion at the Congress were such as that immediate and important interests of the United States would be affected by the issue, I should, nevertheless, have determined so far as it depended upon me to have accepted the invitation and to have appointed ministers to attend the meeting. The proposal itself implied that the Republics by whom it was made *believed* that important interests of ours or of theirs rendered our attendance there desirable. They had given us notice that in the novelty of their situation and in the spirit

of deference to our experience they would be pleased to have the benefit of our friendly counsel. To meet the temper with which this proposal was made with a cold repulse was not thought congenial to that warm interest in their welfare with which the people and Government of the Union had hitherto gone hand in hand through the whole progress of their revolution. To insult them by a refusal of their overture, and then invite them to a similar assembly to be called by ourselves, was an expedient which never presented itself to the mind. I would have sent ministers to the meeting had it been merely to give them such advice as they might have desired, even with reference to *their own* interests, not involving ours. I would have sent them had it been merely to explain and set forth to them our reasons for *declining* any proposal of specific measures to which they might desire our concurrence, but which we might deem incompatible with our interests or our duties. In the intercourse between nations temper is a missionary perhaps more powerful than talent. Nothing was ever lost by kind treatment. Nothing can be gained by sullen repulses and aspiring pretensions.

But objects of the highest importance, not only to the future welfare of the whole human race, but bearing directly upon the special interests of this Union, *will* engage the deliberations of the congress of Panama whether we are represented there or not. Others, if we are represented, may be offered by our plenipotentiaries for consideration having in view both these great results-our own interests and the improvement of the condition of man upon earth. It may be that in the lapse of many centuries no other opportunity so favorable will be presented to the Government of the United States to subserve the benevolent purposes of Divine Providence; to dispense the promised blessings of the Redeemer of Mankind; to promote the prevalence in future ages of peace on earth and good will to man, as will now be

placed in their power by participating in the deliberations of this congress.

Among the topics enumerated in official papers published by the Republic of Colombia, and adverted to in the correspondence now communicated to the House, as intended to be presented for discussion at Panama, there is scarcely one in which the *result* of the meeting will not deeply affect the interests of the United States. Even those in which the belligerent States alone will take an active part will have a powerful effect upon the state of our relations with the American, and probably with the principal European, States. Were it merely that we might be correctly and speedily informed of the proceedings of the congress and of the progress and issue of their negotiations, I should hold it advisable that we should have an accredited agency with them, placed in such confidential relations with the other members as would insure the authenticity and the safe and early transmission of its reports. Of the same enumerated topics are the preparation of a manifesto setting forth to the world the justice of their cause and the relations they desire to hold with other Christian powers, and to form a convention of navigation and commerce applicable both to the confederated States and to their allies.

It will be within the recollection of the House that immediately after the close of the war of our independence a measure closely analogous to this congress of Panama was adopted by the Congress of our Confederation, and for purposes of precisely the same character. Three commissioners with plenipotentiary powers were appointed to negotiate treaties of amity, navigation, and commerce with all the principal powers of Europe. They met and resided for that purpose about one year at Paris, and the only result of their negotiations at that time was the first treaty between the United States and Prussia-memorable in the diplomatic annals of the world, and precious as a monument of the principles, in relation to commerce and

maritime warfare, with which our country entered upon her career as a member of the great family of independent nations. This treaty, prepared in conformity with the instructions of the American plenipotentiaries, consecrated three fundamental principles of the foreign intercourse which the Congress of that period were desirous of establishing: First, equal reciprocity and the mutual stipulation of the privileges of the most favored nation in the commercial exchanges of peace; secondly, the abolition of private war upon the ocean, and thirdly, restrictions favorable to neutral commerce upon belligerent practices with regard to contraband of war and blockades. A painful, it may be said a calamitous, experience of more than forty years has demonstrated the deep importance of these same principles to the peace and prosperity of this nation and to the welfare of all maritime States, and has illustrated the profound wisdom with which they were assumed as cardinal points of the policy of the Union.

At that time in the infancy of their political existence, under the influence of those principles of liberty and of right so congenial to the cause in which they had just fought and triumphed, they were able but to obtain the sanction of one great and philosophical, though absolute, sovereign in Europe to their liberal and enlightened principles. They could obtain no more. Since then a political hurricane has gone over three-fourths of the civilized portions of the earth, the desolation of which it may with confidence be expected is passing away, leaving at least the American atmosphere purified and refreshed. And now at this propitious moment the new-born nations of this hemisphere, assembling by their representatives at the Isthmus between its two continents to settle the principles of their future international intercourse with other nations and with us, ask in this great exigency for our advice upon those very fundamental maxims which we from our cradle

at first proclaimed and partially succeeded to introduce into the code of national law.

Without recurring to that total prostration of all neutral and commercial rights which marked the progress of the late European wars, and which finally involved the United States in them, and adverting only to our political relations with these American nations, it is observable that while in all other respects those relations have been uniformly and without exception of the most friendly and mutually satisfactory character, the only causes of difference and dissension between us and them which ever have arisen originated in those never-failing fountains of discord and irritation-discriminations of commercial favor to other nations, licentious privateers, and paper blockades. I can not without doing injustice to the Republics of Buenos Ayres and Colombia forbear to acknowledge the candid and conciliatory spirit with which they have repeatedly yielded to our friendly representations and remonstrances on these subjects-in repealing discriminative laws which operated to our disadvantage and in revoking the commissions of their privateers, to which Colombia has added the magnanimity of making reparation for unlawful captures by some of her cruisers and of assenting in the midst of war to treaty stipulations favorable to neutral navigation. But the recurrence of these occasions of complaint has rendered the renewal of the discussions which result in the removal of them necessary, while in the meantime injuries are sustained by merchants and other individuals of the United States which can not be repaired, and the remedy lingers in overtaking the pernicious operation of the mischief. The settlement of general principles pervading with equal efficacy all the American States can alone put an end to these evils, and can alone be accomplished at the proposed assembly.

If it be true that the noblest treaty of peace ever mentioned in history is that by which the Carthaginians

were bound to abolish the practice of sacrificing their own children *because it was stipulated in favor of human nature*. I can not exaggerate to myself the unfading glory with which these United States will go forth in the memory of future ages if by their friendly counsel, by their moral influence, by the power of argument and persuasion alone they can prevail upon the American nations at Panama to stipulate by general agreement among themselves, and so far as any of them may be concerned, the perpetual abolition of private war upon the ocean. And if we can not yet flatter ourselves that this may be accomplished, as advances toward it the establishment of the principle that the friendly flag shall cover the cargo, the curtailment of contraband of war, and the proscription of fictitious paper blockades-engagements which we may reasonably hope will not prove impracticable-will, if successfully inculcated, redound proportionally to our honor and drain the fountain of many a future sanguinary war.

The late President of the United States, in his message to Congress of the 2d December, 1823, while announcing the negotiation then pending with Russia, relating to the northwest coast of this continent, observed that the occasion of the discussions to which that incident had given rise had been taken for asserting as a principle in which the rights and interests of the United States were involved that the American continents, by the free and independent condition which they had assumed and maintained, were thenceforward not to be considered as subjects for future colonization by any European power. The principle had first been assumed in that negotiation with Russia. It rested upon a course of reasoning equally simple and conclusive. With the exception of the existing European colonies, which it was in nowise intended to disturb, the two continents consisted of several sovereign and independent nations, whose territories covered their whole surface. By this their independent condition the United States enjoyed the right of

commercial intercourse with every part of their possessions. To attempt the establishment of a colony in those possessions would be to usurp to the exclusion of others a commercial intercourse which was the common possession of all. It could not be done without encroaching upon existing rights of the United States. The Government of Russia has never disputed these positions nor manifested the slightest dissatisfaction at their having been taken. Most of the new American Republics have declared their entire assent to them, and they now propose, among the subjects of consultation at Panama, to take into consideration the means of making effectual the assertion of that principle, as well as the means of resisting interference from abroad with the domestic concerns of the American Governments.

In alluding to these means it would obviously be premature at this time to anticipate that which is offered merely as matter for consultation, or to pronounce upon those measures which have been or may be suggested. The purpose of this Government is to concur in none which would import hostility to Europe or justly excite resentment in any of her States. Should it be deemed advisable to contract any conventional engagement on this topic, our views would extend no further than to a mutual pledge of the parties to the compact to maintain the principle in application to its own territory, and to permit no colonial lodgments or establishment of European jurisdiction upon its own soil; and with respect to the obtrusive interference from abroad-if its future character may be inferred from that which has been and perhaps still is exercised in more than one of the new States-a joint declaration of its character and exposure of it to the world may be probably all that the occasion would require. Whether the United States should or should not be parties to such a declaration may justly form a part of the deliberation. That there is an evil to be remedied heeds little insight into the secret history of late years to know, and that this remedy may best be concerted

at the Panama meeting deserves at least the experiment of consideration. A concert of measures having reference to the more effectual abolition of the African slave trade and the consideration of the light in which the political condition of the island of Hayti is to be regarded are also among the subjects mentioned by the minister from the Republic of Colombia as believed to be suitable for deliberation at the congress. The failure of the negotiations with that Republic undertaken during the late administration, for the suppression of that trade, in compliance with a resolution of the House of Representatives, indicates the expediency of listening with respectful attention to propositions which may contribute to the accomplishment of the great end which was the purpose of that resolution, while the result of those negotiations will serve as admonition to abstain from pledging this Government to any arrangement which might be expected to fail of obtaining the advice and consent of the Senate by a constitutional majority to its ratification.

Whether the political condition of the island of Hayti shall be brought at all into discussion at the meeting may be a question for preliminary advisement. There are in the political constitution of Government of that people circumstances which have hitherto forbidden the acknowledgment of them by the Government of the United States as sovereign and independent. Additional reasons for withholding that acknowledgment have recently been seen in their acceptance of a nominal sovereignty by the *grant* of a foreign prince under conditions equivalent to the concession by them of exclusive commercial advantages to one nation, adapted altogether to the state of colonial vassalage and retaining little of independence but the name. Our plenipotentiaries will be instructed to present these views to the assembly at Panama, and should they not be concurred in to decline acceding to any arrangement which may be proposed upon different principles.

The condition of the islands of Cuba and Porto Rico is of deeper import and more immediate bearing upon the present interests and future prospects of our Union. The correspondence herewith transmitted will show how earnestly it has engaged the attention of this Government. The invasion of both those islands by the united forces of Mexico and Colombia is avowedly among the objects to be matured by the belligerent States at Panama. The convulsions to which, from the peculiar composition of their population, they would be liable in the event of such an invasion, and the danger therefrom resulting of their falling ultimately into the hands of some European power other than Spain, will not admit of our looking at the consequences to which the congress at Panama may lead with indifference. It is unnecessary to enlarge upon this topic or to say more than that all our efforts in reference to this interest will be to preserve the existing state of things, the tranquillity of the islands, and the peace and security of their inhabitants.

And lastly, the congress of Panama is believed to present a fair occasion for urging upon all the new nations of the south the just and liberal principles of religious liberty; not by any interference whatever in their internal concerns, but by claiming for our citizens whose occupations or interests may call them to occasional residence in their territories the inestimable privilege of worshipping their Creator according to the dictates of their own consciences. This privilege, sanctioned by the customary law of nations and secured by treaty stipulations in numerous national compacts, secured even to our own citizens in the treaties with Colombia and with the Federation of Central America, is yet to be obtained in the other South American States and Mexico. Existing prejudices are still struggling against it, which may, perhaps, be more successfully combated at this general meeting than at the separate seats of Government of each Republic.

I can scarcely deem it otherwise than superfluous to observe that the assembly will be in its nature diplomatic and not legislative; that nothing can be transacted there obligatory upon any one of the States to be represented at the meeting, unless with the express concurrence of its own representatives, nor even then, but subject to the ratification of its constitutional authority at home. The faith of the United States to foreign powers can not otherwise be pledged. I shall, indeed, in the first instance, consider the assembly as merely *consultative*; and although the plenipotentiaries of the United States will be empowered to receive and refer to the consideration of their Government any proposition from the other parties to the meeting, they will be authorized to conclude nothing unless subject to the definitive sanction of this Government in all its constitutional forms. It has therefore seemed to me unnecessary to insist that every object to be discussed at the meeting should be specified with the precision of a judicial sentence or enumerated with the exactness of a mathematical demonstration. The purpose of the meeting itself is to deliberate upon the great and common *interests* of several new and neighbouring nations. If the measure is new and without precedent, so is the situation of the parties to it. That the purposes of the meeting are somewhat indefinite, far from being an objection to it is among the cogent reasons for its adoption. It is not the establishment of principles of intercourse with one, but with seven or eight nations at once. That before they have had the means of exchanging ideas and communicating with one another in common upon these topics they should have definitively settled and arranged them in concert is to require that the effect should precede the cause; it is to exact as a preliminary to the meeting that for the accomplishment of which the meeting itself is designed.

Among the inquiries which were thought entitled to consideration before the determination was taken to accept

the invitation was that whether the measure might not have a tendency to change the policy, hitherto invariably pursued by the United States, of avoiding all entangling alliances and all unnecessary foreign connections.

Mindful of the advice given by the father of our country in his Farewell Address, that the great rule of conduct for us in regard to foreign nations is, in extending our commercial relations, to have with them as little political connection as possible, and faithfully adhering to the spirit of that admonition, I can not overlook the reflection that the counsel of Washington in that instance, like all the counsels of wisdom, was founded upon the circumstances in which our country and the world around us were situated at the time when it was given; that the reasons assigned by him for his advice were that Europe had a set of primary interests which to us had none or a very remote relation; that hence she must be engaged in frequent controversies, the, causes of which were essentially foreign to our concerns; that our *detached* and *distant* situation invited and enabled us to pursue a different course; that by our union and rapid growth, with an efficient Government, the period was not far distant when we might defy material injury from external annoyance, when we might take such an attitude as would cause our neutrality to be respected, and, with reference to belligerent nations, might choose peace or war, as our interests, guided by justice, should counsel.

Compare our situation and the circumstances of that time with those of the present day, and what, from the very words of Washington then, would be his counsels to his countrymen now? Europe has still her set of primary interests, with which we have little or a remote relation. Our distant and detached situation with reference to Europe remains the same. But we were then the only independent nation of this hemisphere, and we were surrounded by European colonies, with the greater part of which we had no more intercourse than with the inhabitants of another planet.

Those colonies have now been transformed into eight independent nations, extending to our very borders, seven of them Republics like ourselves, with whom we have an immensely growing commercial, and *must* have and have already important political, connections; with reference to whom our situation is neither distant nor detached; whose political principles and systems of government, congenial with our own, must and will have an action and counteraction upon us and ours to which we can not be indifferent if we would.

The rapidity of our growth, and the consequent increase of our strength, has more than realized the anticipations of this admirable political legacy. Thirty years have nearly elapsed since it was written, and in the interval our population, our wealth, our territorial extension, our power-physical and moral-have nearly trebled. Reasoning upon this state of things from the sound and judicious principles of Washington, must we not say that the period which he predicted as then not far off has arrived; that *America* has a set of primary interests which have none or a remote relation to Europe; that the interference of Europe, therefore, in those concerns should be spontaneously withheld by her upon the same principles that we have never interfered with hers, and that if she should interfere, as she may, by measures which may have a great and dangerous recoil upon ourselves, we might be called in defense of our own altars and firesides to take an attitude which would cause our neutrality to be respected, and choose peace or war, as our interest, guided by justice, should counsel.

The acceptance of this invitation, therefore, far from conflicting with the counsel or the policy of Washington, is directly deducible from and conformable to it. Nor is it less conformable to the views of my immediate predecessor as declared in his annual message to Congress of the 2d December, 1823, to which I have already adverted, and to

an important passage of which I invite the attention of the House:

The citizens of the United States (said he) cherish sentiments the most friendly in favor of the liberty and happiness of their fellow-men on that (the European) side of the Atlantic. In the wars of the European powers in matters relating to themselves we have never taken any part, nor does it comport with our policy so to do. It is only when our rights are invaded or seriously menaced that we resent injuries or make preparation for our defense. With the movements in this hemisphere we are of necessity more immediately connected, and by causes which must be obvious to all enlightened and impartial observers. The political system of the allied powers is essentially different in this respect from that of America. This difference proceeds from that which exists in their respective Governments. And to the defense of our own, which has been achieved by the loss of so much blood and treasure, and matured by the wisdom of their most enlightened citizens, and under which we have enjoyed unexampled felicity, this whole nation is devoted. We owe it, therefore, to candor and to the amicable relations subsisting between the United States and those powers to declare that we should consider any attempt on their part to extend their system to any portion of this hemisphere as dangerous to our peace and safety. With the existing colonies or dependencies of any European power we have not interfered and shall not interfere; but with the Governments who have declared their independence and maintained it, and whose independence we have on great consideration and on just principles acknowledged, we could not view any interposition for the purposes of oppressing them or controlling in any other manner their destiny by any European power in any other light than as the manifestation of an

unfriendly disposition toward the United States. In the war between those new Governments and Spain we declared our neutrality at the time of their recognition, and to this we have adhered and shall continue to adhere, provided no change shall occur which in the judgment of the competent authorities of this Government shall make a corresponding change on the part of the United States indispensable to their security.

To the question which may be asked, whether this meeting and the principles which may be adjusted and settled by it as rules of intercourse between the American nations may not give umbrage to the holy league of European powers or offense to Spain, it is deemed a sufficient answer that our attendance at Panama can give *no just cause* of umbrage or offense to either, and that the United States will stipulate nothing there which can give such cause. Here the right of inquiry into our purposes and measures must stop. The holy league of Europe itself was formed without inquiring of the United States whether it would or would not give umbrage to them. The fear of giving umbrage to the holy league of Europe was urged as a motive for denying to the American nations the acknowledgment of their independence. That it would be viewed by Spain as hostility to her was not only urged, but directly declared by herself. The Congress and administration of that day consulted their rights and duties, and not their fears. Fully determined to give no heedless displeasure to any foreign power, the United States can estimate the probability of their giving it only by the right which any foreign state could have to take it from their measures. Neither the representation of the United States at Panama nor any measure to which their assent may be yielded there will give to the holy league or any of its members, nor to Spain, the right to take offense; for the rest the United States must still, as heretofore, take counsel from their duties rather than their fears.

Such are the objects in which it is expected that the plenipotentiaries of the United States, when commissioned to attend the meeting at the Isthmus, will take part, and such are the motives and purposes with which the invitation of the three Republics was accepted. It was, however, as the House will perceive from the correspondence, accepted only upon condition that the nomination of commissioners for the mission should receive the advice and consent of the Senate.

The concurrence of the House to the measure by the appropriations necessary for carrying it into effect is alike subject to its free determination and indispensable to the fulfillment of the intention.

That the congress at Panama will accomplish all, or even any, of the transcendent benefits to the human race which warmed the conceptions of its first proposer it were perhaps indulging too sanguine a forecast of events to promise. It is in its nature a measure speculative and experimental. The blessing of Heaven may turn it to the account of human improvement; accidents unforeseen and mischances not to be anticipated may baffle all its high purposes and disappoint its fairest expectations. But the design is great, is benevolent, is humane.

It looks to the melioration of the condition of man. It is congenial with that spirit which prompted the declaration of our independence, which inspired the preamble of our first treaty with France, which dictated our first treaty with Prussia and the instructions under which it was negotiated, which filled the hearts and fired the souls of the immortal founders of our Revolution.

With this unrestricted exposition of the motives by which I have been governed in this transaction, as well as of the objects to be discussed and of the ends, if possible, to be attained by our representation at the proposed congress, I

submit the propriety of an appropriation to the candid consideration and enlightened patriotism of the Legislature.

John Quincy Adams.

Washington,
March 16, 1826.

To the Senate of the United States:

Some additional documents having relation to the objects of the mission to the congress at Panama, and received since the communication of those heretofore sent, are now transmitted to the Senate.

John Quincy Adams.

***To the House of Representatives of the
United States:***

In compliance with the resolution of the House of Representatives of the 10th instant, requesting information in possession of the Government relating to certain resolves of the Congress of the Confederation of the 21st of October, 1780, and the 21st March, 1783, concerning allowances to the officers of the Revolutionary army, and to the manner of carrying into effect those resolves, and other particulars appertaining thereto, I transmit reports from the Secretaries of State, of the Treasury, and of War, with documents, comprising the information desired by the House.

John Quincy Adams.

MARCH 22, 1826.

Washington,
March 24, 1826.

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 14th ultimo, requesting statements of the amount of compensation allowed to the paymaster and quartermaster of the Marine Corps for the two years preceding the 1st of January, 1826, and of other particulars relating to the same Corps, I communicate a report from the Secretary of the Navy, with documents, containing the information desired by the resolution.

John Quincy Adams.

Washington,
March 24, 1826.

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 16th ultimo, requesting statements of the net amount of revenue derived from imports and tonnage received by the Treasury from the ports within the bay of Delaware, the bay of Chesapeake, the harbor of New York, and at Boston from the 1st of January, 1790, to the last of December, 1825, and of the amount of expenditures paid from the Treasury for forts, light-houses, beacons, and other public works erected to aid commerce or for the purposes of defense within the said bays and harbors during the said time, I transmit herewith a report from the Secretary of the Treasury, with several documents, containing the information desired by the resolution.

John Quincy Adams.

Washington,
March 29, 1826.

To the House of Representatives of the United States:

In compliance with a resolution of the House of the 227th instant, requesting a copy of such parts of the answer of the Secretary of State to Mr. Poinsett's letter to Mr. Clay, dated Mexico, 28th September, 1825, No. 22, as relates to the pledge of the United States therein mentioned; and also requesting me to inform the House whether the United States have in any manner made any pledge to the Governments of Mexico and South America that the United States would not permit the interference of any foreign power with the independence or form of government of these nations, and, if so, when, in what manner, and to what

effect; and also to communicate to the House a copy of the communication from our minister at Mexico in which he informed the Government of the United States that the Mexican Government called upon this Government to fulfill the memorable pledge of the President of the United States in his message to Congress of December, 1823, I transmit to the House a report from the Secretary of State, with the documents containing the information desired by the resolution.

John Quincy Adams.

Washington,
March 30, 1826.

To the Senate and House of Representatives of the United States:

By the second article of the general convention of peace, amity, navigation, and commerce between the United States and the Republic of Colombia, concluded at Bogota on 3d of October, 1824, it was stipulated that the parties engaged mutually not to grant any particular favor to other nations in respect of commerce and navigation which should not immediately become common to the other party, who should enjoy the same freely if the concession was freely made, or on allowing the same compensation if the concession was conditional. And in the third article of the same convention it was agreed that the citizens of the United States might frequent all the coasts and countries of the Republic of Colombia, and reside and trade there in all sorts of produce, manufactures, and merchandise, and should pay no other or greater duties, charges, or fees whatsoever than the most favored nation should be obliged to pay, and should enjoy all the rights, privileges, and exemptions in navigation and commerce which the most favored nations should enjoy, submitting themselves,

nevertheless, to the laws, decrees, and usages there established, and to which were submitted the subjects and citizens of the most favored nations; with a reciprocal stipulation in favor of the citizens of the Republic of Colombia in the United States. Subsequently to the conclusion of this convention a treaty was negotiated between the Republic of Colombia and Great Britain, by which it was stipulated that no other or higher duties on account of tonnage, light, or harbor dues should be imposed in the ports of Colombia on British vessels than those payable in the same ports by Colombian vessels, and that the same duties should be paid on the importation into the territories of Colombia of any article the growth, produce, or manufacture of His Britannic Majesty's dominions, whether such importations should be in Colombian or in British vessels, and that the same duties should be paid and the same discount (drawbacks) and bounties allowed on the exportation of any articles the growth, produce, or manufacture of Colombia to His Britannic Majesty's dominions, whether such exportations were in Colombian or in British vessels.

The minister of the United States to the Republic of Colombia having claimed, by virtue of the second and third articles of the convention between the two Republics, that the benefit of these subsequent stipulations should be alike extended to the citizens of the United States upon the condition of reciprocity provided for by the convention, the application of those engagements was readily acceded to by the Colombian Government, and a decree was issued by the executive authority of that Republic on the 30th of January last, a copy and translation of which are herewith communicated, securing to the citizens of the United States in the Republic of Colombia the same advantages in regard to commerce and navigation which had been conceded to British subjects in the Colombian treaty with Great Britain.

It remains for the Government of the United States to secure to the citizens of the Republic of Colombia the reciprocal advantages to which they are entitled by the terms of the convention, to commence from the 30th of January last, for the accomplishment of which I invite the favor-able consideration of the Legislature.

John Quincy Adams.

Washington,
March 31, 1826.

To the House of Representatives of the United States:

In compliance with the resolution of the House of the 21st instant, requesting information whether any, and what, measures have been taken to improve the navigation over the sand bars in the Ohio River according to the provisions of the act of the 24th of May, 1824, to improve the navigation of the Ohio and Mississippi rivers, and also whether the experiments mentioned in the proviso to the first section of the said act have been made, and, if so, what success has attended them, I transmit herewith a report from the Secretary of War, with documents, containing the information desired by the resolution.

John Quincy Adams.

Washington,
March 31, 1826.

To the Senate of the United States:

I communicate to the Senate herewith a supplementary article to the treaty with the chiefs and headmen of the Creek Nation, in behalf of that nation, which was transmitted to the Senate on the 31st of January last, and which I submit, together with and as a part of that treaty, for

the constitutional advice of the Senate with regard to its ratification. A report of the Secretary of War accompanies the article, setting forth the reasons for which it has been concluded.

John Quincy Adams.

Washington,
April 1, 1826.

To the House of Representatives of the United States:

In compliance with the resolution of the House of the 13th ultimo, requesting a statement of all the expenditures incident or relating to internal improvement for the years 1824 and 1825, I transmit reports from the Secretaries of the Treasury and of War, with documents, containing the statement desired.

John Quincy Adams.

Washington,
April 1, 1826.

To the House of Representatives of the United States:

In compliance with a resolution of the House of the 7th ultimo, requesting information relative to the execution of an act of Congress of the 7th May, 1822, to authorize and empower the corporation of the city of Washington, in the district of Columbia, to drain the low grounds on and near the public reservations, and to improve and ornament certain parts of such reservations, I transmit herewith a report from the commissioners appointed by the corporation of the city to carry into effect the provisions of the said act, together with sundry documents, exhibiting the information desired by the resolution.

John Quincy Adams.

Washington,
April 5, 1826.

To the House of Representatives of the United States:

In compliance with a resolution of the House of the 30th ultimo, I transmit to the House a report [\[005\]](#) from the Secretary of State, with the documents desired by the resolution; and also a copy of the letter from the Secretary of State to Mr. Poinsett acknowledging the receipt of his dispatch No. 22, accidentally overlooked in the answer to the resolution of the House of the 27th ultimo.

John Quincy Adams.

Washington,
April 11, 1826.

To the Senate of the United States:

On the 16th of January last I sent to the Senate a nomination of Daniel Bissell to be colonel of the Second Regiment of Artillery, and on the 3d of February I received from the Secretary of the Senate an attested copy of their proceedings in relation to that nomination, laid before me by their order, and closing with a resolution in these words:

Resolved. That in the opinion of the Senate Daniel Bissell is entitled to the place of colonel in the Army of the United States, taking rank as such from the 15th of August, 1812, with the brevet of brigadier-general from the 9th of March, 1814, and that the President of the United States may arrange him accordingly.

In the discharge of my own duties I am under the necessity of stating respectfully to the Senate-

First. That I can not concur in these opinions.

Secondly. That the resolution of the Senate, having on its face no reference either to the nomination or to the office for which it was made, leaves me doubtful whether it was intended by the Senate as their decision upon the nomination or not. If intended as their decision, it imports that the Senate do not advise and consent to the appointment of Daniel Bissell as colonel in the Second Regiment of Artillery. If intended as a mere expression of their opinions, superseding in their judgment the necessity of their immediate decision upon the nomination, it leaves the Senate still in possession of the nomination and free to act upon it when informed of my inability to carry those opinions into effect.

In this uncertainty I have thought it most respectful to the Senate to refer the subject again to them for their consideration. The delay in the transmission of this communication is attributable to the earnest desire which I have entertained of acceding to the opinions and complying with the wishes of the Senate, and to the long and repeated reconsideration of my own impressions with the view to make them, if possible, conform to theirs. A still higher duty now constrains me to invite their definitive decision upon the nomination.

John Quincy Adams.

Washington,
April 15, 1826.

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 11th instant, I transmit herewith a report [\[006\]](#) of the Secretary of State, and documents, containing the information desired by the resolution.

John Quincy Adams.

Washington,
April 25, 1826.

To the Senate and House of Representatives of the United States:

I now transmit to both Houses of Congress copies of a treaty with the Creek Nation of Indians, concluded on the 24th day of January last, with a supplementary article, signed on the 31st of last month, which have been, with the advice and consent of the Senate, duly ratified. I send at the same time copies of the treaty superseded by them, signed at the Indian Springs on the 12th of February, 1825. The treaty and supplementary article now ratified will require the aid of the Legislature for carrying them into effect. And I subjoin a letter from the Secretary of War, proposing an additional appropriation for the purpose of facilitating the removal of that portion of the Creek Nation which may be disposed to remove west of the Mississippi, recommending the whole subject to the favorable consideration of Congress.

John Quincy Adams.

Washington,
April 25, 1826.

To the House of Representatives of the United States:

In compliance with a resolution of the House of the 4th of January last, I now transmit reports from the Secretaries of State, of the Treasury, and of War, and from the Postmaster-General, with the documents containing the list of appointments of members of Congress and other information relating thereto desired by the resolution.

John Quincy Adams.

Washington,
April 28, 1826.

To the Senate of the United States:

I transmit herewith to the Senate, for their advice concerning its ratification, a general convention of friendship, commerce, and navigation between the United States and His Majesty the King of Denmark, signed by the Secretary of State and the Danish minister on the 26th instant. A copy of the convention and a note from the Secretary of State, together with Mr. Pedersen's answer, respecting the claims of the citizens of the United States upon the Danish Government, are likewise communicated.

John Quincy Adams.

Washington,
April 29, 1826.

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 26th instant, I transmit herewith a report from the Secretary of the Treasury, with a copy of the opinion of the Attorney-General^[007] referred to in the resolution.

John Quincy Adams.

Washington,
May 9, 1826.

To the Senate of the United States: In compliance with a resolution of the Senate of the 28th ultimo, I transmit

herewith a report from the Secretary of War, with a copy of the proceedings of the recent court-martial for the trial of Colonel Talbot Chambers, and other documents requested by the resolution or relating to the subject of it.

John Quincy Adams.

Washington,
May 15, 1826.

To the Senate of the United States: In compliance with a resolution of the Senate of the 23d of March last, requesting information concerning the official conduct of the collector and other revenue officers of the port of Philadelphia, I transmit herewith a report from the Secretary of the Treasury, with documents, containing the information desired by the resolution.

John Quincy Adams.

Washington,
May 16, 1826.

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 9th instant, I communicate herewith a report [\[007a\]](#) from the Secretary of the Treasury, with the documents desired by the resolution.

John Quincy Adams.

Washington,
May 17, 1826.

To the Senate and House of Representatives of the United States:

I communicate to both Houses of Congress copies of treaties with Indian tribes which have been, by and with the advice and consent of the Senate, duly ratified during the present session of Congress:

(1) With the Great and Little Osage tribes, concluded June 2, 1825; (2) Kansas, June 3, 1825; (3) Poncar, June 9, 1825; (4) Teton, Yancton, and Yanctonies, June 22, 1825; (5) Sioune and Ogallala, July 5 and 12, 1825; (6) Chayenne, July 6, 1825; (7) Hunkpapas, July 16, 1825; (8) Ricara, July 18, 1825; (9) Mandan, July 30, 1825; (10) Belantse-Etoa, or Minnetaree, July 30, 1825; (11) Crow, August 4, 1825; (12) Great and Little Osage, August 10, 1825; (13) Kansas, August 16, 1825; (14) Sioux, Chippewa, Sac and Fox, Menomenee, Ioway, Sioux, Winnebago, and a portion of the Ottawa, Chippewa, and Pottawatomie tribes, August 19, 1825; (15) Ottoe and Missouri, September 26, 1825; (16) Pawnee, September 30, 1825; (17) Maha, October 6, 1825; (18) Shawnee, November 7, 1825.

John Quincy Adams.

Washington,
May 19, 1826.

To the House of Representatives of the United States:

In compliance with a resolution of the House of the 16th instant, I transmit a report [\[008\]](#) from the Secretary of State, containing the information thereby requested.

John Quincy Adams.

Washington,

May 20, 1826.

To the Senate of the United States:

In compliance with a resolution of the Senate of the 5th of March, 1824, requesting copies of the several instructions to the ministers of the United States to the Government of France and of the correspondence between the said ministers and Government having reference to the spoliations committed by that power on the commerce of the United States anterior to the 30th of September, 1800, or so much thereof as can be communicated without prejudice to the public interest; also how far, if at all, the claim of indemnity from the Government of France for the spoliations aforesaid was affected by the convention entered into between the United States and France on the said 30th of September, 1800, I transmit herewith a report from the Secretary of State, with the documents desired by the resolution.

John Quincy Adams.

EXECUTIVE ORDER.

Adjutant-General's Office,

Washington,
July 11, 1826

General Orders.

The General in Chief has received from the Department of War the following orders:

The President with deep regret announces to the Army that it has pleased the Disposer of All Human Events, in whose hands are the issues of life, to remove from the scene of earthly existence our illustrious and venerated fellow-citizen, Thomas Jefferson.

This dispensation of Divine Providence, afflicting to us, but the consummation of glory to him, occurred on the 4th of the present month--- on the fiftieth anniversary of that Independence the Declaration of which, emanating from his mind, at once proclaimed the birth of a free nation and offered motives of hope and consolation to the whole family of man. Sharing in the grief which every heart must feel for so heavy and afflicting a public loss, and desirous to express his high sense of the vast debt of gratitude which is due to the virtues, talents, and ever-memorable services of the illustrious deceased, the President directs that funeral honors be paid to him at all the military stations, and that the officers of the Army wear crape on the left arm, by way of mourning, for six months.

Major-General Brown will give the necessary orders for carrying into effect the foregoing directions.

J. Barbour.

It has become the painful duty of the Secretary of War to announce to the Army the death of another distinguished and venerated citizen. John Adams departed this life on the 4th of this month. Like his compatriot Jefferson, he aided in drawing and ably supporting the Declaration of Independence. With a prophetic eye he looked through the impending difficulties of the Revolution and foretold with what demonstrations of joy the anniversary of the birth of American freedom would be hailed. He was permitted to behold the verification of his prophecy, and died, as did Jefferson, on the day of the jubilee.

A coincidence of circumstances so wonderful gives confidence to the belief that the patriotic efforts of these illustrious men were Heaven directed, and furnishes a new seal to the hope that the prosperity of these States is under the special protection of a kind Providence.

The Secretary of War directs that the same funeral honors be paid by the Army to the memory of the deceased as by the order of the 7th (11th?) instant were directed to be paid to Thomas Jefferson, and the same token of mourning be worn.

Major-General Brown is charged with the execution of this order.

J. Barbour.

Never has it fallen to the lot of any commander to announce to an army such an event as now calls forth the mingled grief and astonishment of this Republic; never since history first wrote the record of time has one day thus mingled every triumphant with every tender emotion, and consecrated a nation's joy by blending it with the most sacred of sorrows. Yes, soldiers, in one day, almost in the same hour, have two of the Founders of the Republic, the Patriarchs of Liberty, closed their services to social man, after beholding them crowned with the richest and most unlimited success. United in their end as they had been in their highest aim, their toils completed, their hopes surpassed, their honors full, and the dearest wish of their bosoms gratified in death, they closed their eyes in patriot ecstasy, amidst the gratulations and thanksgivings of a people on all, on every individual, of whom they had conferred the best of all earthly benefits.

Such men heed no trophies; they ask no splendid mausolea. We are their monuments; their mausolea is their country, and her growing prosperity the amaranthine wreath that Time shall place over their dust. Well may the Genius of the Republic mourn. If she turns her eyes in one direction, she beholds the hall where Jefferson wrote the charter of her rights; if in another, she sees the city where Adams kindled the fires of the Revolution. To no period of our history, to no department of our affairs, can she direct her views and not meet the multiplied memorials of her loss and of their glory.

At the grave of such men envy dies, and party animosity blushes while she quenches her fires. If Science and Philosophy lament their enthusiastic votary in the halls of Monticello, Philanthropy and Eloquence weep with no less reason in the retirement of Quincy. And when hereafter the stranger performing his pilgrimage to the land of freedom

shall ask for the monument of Jefferson, his inquiring eye may be directed to the dome of that temple of learning, the university of his native State--- the last labor of his untiring mind, the latest and the favorite gift of a patriot to his country.

Bereaved yet happy America! Mourning yet highly favored country! Too happy if every son whose loss shall demand thy tears can thus soothe thy sorrow by a legacy of fame.

The Army of the United States, devoted to the service of the country, and honoring all who are alike devoted, whether in the Cabihet or the field, will feel an honorable and a melancholy pride in obeying this order. Let the officers, then, wear the badge of mourning, the poor emblem of a sorrow which words can not express, but which freemen must ever feel while contemplating the graves of the venerated Fathers of the Republic.

Tuesday succeeding the arrival of this order at each military station shall be a day of rest.

The National flag shall wave at half-mast.

At early dawn thirteen guns shall be fired, and at intervals of thirty minutes between the rising and setting sun a single cannon will be discharged, and at the close of the day twenty-four rounds.

By command of Major-General Brown:

R. JONES,
Adjutant-General

SECOND ANNUAL MESSAGE.

Washington,
December 5, 1826.

Fellow-Citizens of the Senate and of the House of Representatives:

The assemblage of the representatives of our Union in both Houses of the Congress at this time occurs under circumstances calling for the renewed homage of our grateful acknowledgments to the Giver of All Good. With the exceptions incidental to the most felicitous condition of human existence, we continue to be highly favored in all the elements which contribute to individual comfort and to national prosperity. In the survey of our extensive country we have generally to observe abodes of health and regions of plenty. In our civil and political relations we have peace without and tranquillity within our borders. We are, as a people, increasing with unabated rapidity in population, wealth, and national resources, and whatever differences of opinion exist among us with regard to the mode and the means by which we shall turn the beneficence of Heaven to the improvement of our own condition, there is yet a spirit animating us all which will not suffer the bounties of Providence to be showered upon us in vain, but will receive them with grateful hearts, and apply them with unwearied hands to the advancement of the general good.

Of the subjects recommended to Congress at their last session, some were then definitively acted upon. Others, left unfinished, but partly matured, will recur to your attention without heeding a renewal of notice from me. The purpose of this communication will be to present to your view the general aspect of our public affairs at this moment and the measures which have been taken to carry into effect the

intentions of the Legislature as signified by the laws then and heretofore enacted.

In our intercourse with the other nations of the earth we have still the happiness of enjoying peace and a general good understanding, qualified, however, in several important instances by collisions of interest and by unsatisfied claims of justice, to the settlement of which the constitutional interposition of the legislative authority may become ultimately indispensable.

By the decease of the Emperor Alexander, of Russia, which occurred contemporaneously with the commencement of the last session of Congress, the United States have been deprived of a long-tried, steady, and faithful friend. Born to the inheritance of absolute power and trained in the school of adversity, from which no power on earth, however absolute, is exempt, that monarch from his youth had been taught to feel the force and value of public opinion and to be sensible that the interests of his own Government would best be promoted by a frank and friendly intercourse with this Republic, as those of his people would be advanced by a liberal commercial intercourse with our country. A candid and confidential interchange of sentiments between him and the Government of the United States upon the affairs of Southern America took place at a period not long preceding his demise, and contributed to fix that course of policy which left to the other Governments of Europe no alternative but that of sooner or later recognizing the independence of our southern neighbors, of which the example had by the United States already been set. The ordinary diplomatic communications between his successor, the Emperor Nicholas, and the United States have suffered some interruption by the illness, departure, and subsequent decease of his minister residing here, who enjoyed, as he merited, the entire confidence of his new sovereign, as he had eminently responded to that of his predecessor. But we

have had the most satisfactory assurances that the sentiments of the reigning Emperor toward the United States are altogether conformable to those which had so long and constantly animated his imperial brother, and we have reason to hope that they will serve to cement that harmony and good understanding between the two nations which, founded in congenial interests, can not but result in the advancement of the welfare and prosperity of both.

Our relations of commerce and navigation with France are, by the operation of the convention of 24th of June, 1822, with that nation, in a state of gradual and progressive improvement. Convinced by all our experience, no less than by the principles of fair and liberal reciprocity which the United States have constantly tendered to all the nations of the earth as the rule of commercial intercourse which they would universally prefer, that fair and equal competition is most conducive to the interests of both parties, the United States in the negotiation of that convention earnestly contended for a mutual renunciation of discriminating duties and charges in the ports of the two countries. Unable to obtain the immediate recognition of this principle in its full extent, after reducing the duties of discrimination so far as was found attainable it was agreed that at the expiration of two years from the 1st of October, 1822, when the convention was to go into effect, unless a notice of six months on either side should be given to the other that the convention itself must terminate, those duties should be reduced one-fourth, and that this reduction should be yearly repeated, until all discrimination should cease, while the convention itself should continue in force. By the effect of this stipulation three-fourths of the discriminating duties which had been levied by each party upon the vessels of the other in its ports have already been removed; and on the 1st of next October, should the convention be still in force, the remaining fourth will be discontinued. French vessels laden with French produce will be received in our ports on the

same terms as our own, and ours in return will enjoy the same advantages in the ports of France.

By these approximations to an equality of duties and of charges not only has the commerce between the two countries prospered, but friendly dispositions have been on both sides encouraged and promoted. They will continue to be cherished and cultivated on the part of the United States. It would have been gratifying to have had it in my power to add that the claims upon the justice of the French Government, involving the property and the comfortable subsistence of many of our fellow-citizens, and which have been so long and so earnestly urged, were in a more promising train of adjustment than at your last meeting; but their condition remains unaltered.

With the Government of the Netherlands the mutual abandonment of discriminating duties had been regulated by legislative acts on both sides. The act of Congress of the 20th of April, 1818, abolished all discriminating duties of impost and tonnage upon the vessels and produce of the Netherlands in the ports of the United States upon the assurance given by the Government of the Netherlands that all such duties operating against the shipping and commerce of the United States in that Kingdom had been abolished. These reciprocal regulations had continued in force several years when the discriminating principle was resumed by the Netherlands in a new and indirect form by a bounty of 10 per cent in the shape of a return of duties to their national vessels, and in which those of the United States are not permitted to participate. By the act of Congress of 7th January, 1824, all discriminating duties in the United States were again suspended, so far as related to the vessels and produce of the Netherlands, so long as the reciprocal exemption should be extended to the vessels and produce of the United States in the Netherlands. But the same act provides that in the event of a restoration of discriminating duties to operate against the shipping and commerce of the

United States in any of the foreign countries referred to therein the suspension of discriminating duties in favor of the navigation of such foreign country should cease and all the provisions of the acts imposing discriminating foreign tonnage and impost duties in the United States should revive and be in full force with regard to that nation.

In the correspondence with the Government of the Netherlands upon this subject they have contended that the favor shown to their own shipping by this bounty upon their tonnage is not to be considered as a discriminating duty; but it can not be denied that it produces all the same effects. Had the mutual abolition been stipulated by treaty, such a bounty upon the national vessels could scarcely have been granted consistently with good faith. Yet as the act of Congress of 7th January, 1824, has not expressly authorized the Executive authority to determine what shall be considered as a revival of discriminating duties by a foreign government to the disadvantage of the United States, and as the retaliatory measure on our part, however just and necessary, may tend rather to that conflict of legislation which we deprecate than to that concert to which we invite all commercial nations, as most conducive to their interest and our own, I have thought it more consistent with the spirit of our institutions to refer the subject again to the paramount authority of the Legislature to decide what measure the emergency may require than abruptly by proclamation to carry into effect the minatory provisions of the act of 1824.

During the last session of Congress treaties of amity, navigation, and commerce were negotiated and signed at this place with the Government of Denmark, in Europe, and with the Federation of Central America, in this hemisphere. These treaties then received the constitutional sanction of the Senate, by the advice and consent to their ratification. They were accordingly ratified on the part of the United States, and during the recess of Congress have been also

ratified by the other respective contracting parties. The ratifications have been exchanged, and they have been published by proclamations, copies of which are herewith communicated to Congress.

These treaties have established between the contracting parties the principles of equality and reciprocity in their broadest and most liberal extent, each party admitting the vessels of the other into its ports, laden with cargoes the produce or manufacture of any quarter of the globe, upon the payment of the same duties of tonnage and impost that are chargeable upon their own. They have further stipulated that the parties shall hereafter grant no favor of navigation or commerce to any other nation which shall not upon the same terms be granted to each other, and that neither party will impose upon articles of merchandise the produce or manufacture of the other any other or higher duties than upon the like articles being the produce or manufacture of any other country. To these principles there is in the convention with Denmark an exception with regard to the colonies of that Kingdom in the arctic seas, but none with regard to her colonies in the West Indies.

In the course of the last summer the term to which our last commercial treaty with Sweden was limited has expired. A continuation of it is in the contemplation of the Swedish Government, and is believed to be desirable on the part of the United States. It has been proposed by the King of Sweden that pending the negotiation of renewal the expired treaty should be mutually considered as still in force, a measure which will require the sanction of Congress to be carried into effect on our part, and which I therefore recommend to your consideration.

With Prussia, Spain, Portugal, and, in general, all the European powers between whom and the United States relations of friendly intercourse have existed their condition has not materially varied since the last session of Congress.

I regret not to be able to say the same of our commercial intercourse with the colonial possessions of Great Britain in America. Negotiations of the highest importance to our common interests have been for several years in discussion between the two Governments, and on the part of the United States have been invariably pursued in the spirit of candor and conciliation. Interests of great magnitude and delicacy had been adjusted by the conventions of 1815 and 1818, while that of 1822, mediated by the late Emperor Alexander, had promised a satisfactory compromise of claims which the Government of the United States, in justice to the rights of a numerous class of their citizens, was bound to sustain. But with regard to the commercial intercourse between the United States and the British colonies in America, it has been hitherto found impracticable to bring the parties to an understanding satisfactory to both. The relative geographical position and the respective products of nature cultivated by human industry had constituted the elements of a commercial intercourse between the United States and British America, insular and continental, important to the inhabitants of both countries; but it had been interdicted by Great Britain upon a principle heretofore practiced upon by the colonizing nations of Europe, of holding the trade of their colonies each in exclusive monopoly to herself. After the termination of the late war this interdiction had been revived, and the British Government declined including this portion of our intercourse with her possessions in the negotiation of the convention of 1815. The trade was then carried on exclusively in British vessels till the act of Congress, concerning navigation, of 1818 and the supplemental act of 1820 met the interdict by a corresponding measure on the part of the United States. These measures, not of retaliation, but of necessary self-defense, were soon succeeded by an act of Parliament opening certain colonial ports to the vessels of the United States coming directly from them, and to the importation from them of certain articles of our

produce burdened with heavy duties, and excluding some of the most valuable articles of our exports. The United States opened their ports to British vessels from the colonies upon terms as exactly corresponding with those of the act of Parliament as in the relative position of the parties could be made, and a negotiation was commenced by mutual consent, with the hope on our part that a reciprocal spirit of accommodation and a common sentiment of the importance of the trade to the interests of the inhabitants of the two countries between whom it must be carried on would ultimately bring the parties to a compromise with which both might be satisfied. With this view the Government of the United States had determined to sacrifice something of that entire reciprocity which in all commercial arrangements with foreign powers they are entitled to demand, and to acquiesce in some inequalities disadvantageous to ourselves rather than to forego the benefit of a final and permanent adjustment of this interest to the satisfaction of Great Britain herself. The negotiation, repeatedly suspended by accidental circumstances, was, however, by mutual agreement and express assent, considered as pending and to be speedily resumed. In the meantime another act of Parliament, so doubtful and ambiguous in its import as to have been misunderstood by the officers in the colonies who were to carry it into execution, opens again certain colonial ports upon new conditions and terms, with a threat to close them against any nation which may not accept those terms as prescribed by the British Government. This act, passed in July, 1825, not communicated to the Government of the United States, not understood by the British officers of the customs in the colonies where it was to be enforced, was nevertheless submitted to the consideration of Congress at their last session. With the knowledge that a negotiation upon the subject had long been in progress and pledges given of its resumption at an early day, it was deemed expedient to await the result of that negotiation rather than to subscribe

implicitly to terms the import of which was not clear and which the British authorities themselves in this hemisphere were not prepared to explain.

Immediately after the close of the last session of Congress one of our most distinguished citizens was dispatched as envoy extraordinary and minister plenipotentiary to Great Britain, furnished with instructions which we could not doubt would lead to a conclusion of this long-controverted interest upon terms acceptable to Great Britain. Upon his arrival, and before he had delivered his letters of credence, he was met by an order of the British council excluding from and after the 1st of December now current the vessels of the United States from all the colonial British ports excepting those immediately bordering on our territories. In answer to his expostulations upon a measure thus unexpected he is informed that according to the ancient maxims of policy of European nations having colonies their trade is an exclusive possession of the mother country; that all participation in it by other nations is a boon or favor not forming a subject of negotiation, but to be regulated by the legislative acts of the power owning the colony; that the British Government therefore declines negotiating concerning it, and that as the United States did not forthwith accept purely and simply the terms offered by the act of Parliament of July, 1825, Great Britain would not now admit the vessels of the United States even upon the terms on which she has opened them to the navigation of other nations.

We have been accustomed to consider the trade which we have enjoyed with the British colonies rather as an interchange of mutual benefits than as a mere favor received; that under every circumstance we have given an ample equivalent. We have seen every other nation holding colonies negotiate with other nations and grant them freely admission to the colonies by treaty, and so far are the other colonizing nations of Europe now from refusing to

negotiate for trade with their colonies that we ourselves have secured access to the colonies of more than one of them by treaty. The refusal, however, of Great Britain to negotiate leaves to the United States no other alternative than that of regulating or interdicting altogether the trade on their part, according as either measure may affect the interests of our own country, and with that exclusive object I would recommend the whole subject to your calm and candid deliberations.

It is hoped that our unavailing exertions to accomplish a cordial good understanding on this interest will not have an unpropitious* effect upon the other great topics of discussion between the two Governments. Our northeastern and northwestern boundaries are still unadjusted. The commissioners under the seventh article of the treaty of Ghent have nearly come to the close of their labors; nor can we renounce the expectation, enfeebled as it is, that they may agree upon their report to the satisfaction or acquiescence of both parties. The commission for liquidating the claims for indemnity for slaves carried away after the close of the war has been sitting, with doubtful prospects of success. Propositions of compromise have, however, passed between the two Governments, the result of which we flatter ourselves may yet prove satisfactory. Our own dispositions and purposes toward Great Britain are all friendly and conciliatory; nor can we abandon but with strong reluctance the belief that they will ultimately meet a return, not of favors, which we neither ask nor desire, but of equal reciprocity and good will.

With the American Governments of this hemisphere we continue to maintain an intercourse altogether friendly, and between their nations and ours that commercial interchange of which mutual benefit is the source and mutual comfort and harmony the result is in a continual state of improvement. The war between Spain and them since the total expulsion of the Spanish military force from their

continental territories has been little more than nominal, and their internal tranquillity, though occasionally menaced by the agitations which civil wars never fail to leave behind them, has not been affected by any serious calamity.

The congress of ministers from several of those nations which assembled at Panama, after a short session there, adjourned to meet again at a more favorable season in the neighbourhood of Mexico. The decease of one of our ministers on his way to the Isthmus, and the impediments of the season, which delayed the departure of the other, deprived us of the advantage of being represented at the first meeting of the congress. There is, however, no reason to believe that any of the transactions of the congress were of a nature to affect injuriously the interests of the United States or to require the interposition of our ministers had they been present. Their absence has, indeed, deprived us of the opportunity of possessing precise and authentic information of the treaties which were concluded at Panama; and the whole result has confirmed me in the conviction of the expediency to the United States of being represented at the congress. The surviving member of the mission, appointed during your last session, has accordingly proceeded to his destination, and a successor to his distinguished and lamented associate will be nominated to the Senate. A treaty of amity, navigation, and commerce has in the course of the last summer been concluded by our minister plenipotentiary at Mexico with the united states of that Confederacy, which will also be laid before the Senate for their advice with regard to its ratification.

In adverting to the present condition of our fiscal concerns and to the prospects of our revenue the first remark that calls our attention is that they are less exuberantly prosperous than they were at the corresponding period of the last year. The severe shock so extensively sustained by the commercial and manufacturing interests in Great Britain has not been without a perceptible recoil upon

ourselves. A reduced importation from abroad is necessarily succeeded by a reduced return to the Treasury at home. The net revenue of the present year will not equal that of the last, and the receipts of that which is to come will fall short of those in the current year. The diminution, however, is in part attributable to the flourishing condition of some of our domestic manufactures, and so far is compensated by an equivalent more profitable to the nation. It is also highly gratifying to perceive that the deficiency in the revenue, while it scarcely exceeds the anticipations of the last year's estimate from the Treasury, has not interrupted the application of more than eleven millions during the present year to the discharge of the principal and interest of the debt, nor the reduction of upward of seven millions of the capital of the debt itself. The balance in the Treasury on the 1st of January last was \$5,201,650.43; the receipts from that time to the 30th of September last were \$19,585,932.50; the receipts of the current quarter, estimated at \$6,000,000. yield, with the sums already received, a revenue of about twenty-five millions and a half for the year; the expenditures for the three first quarters of the year have amounted to \$18,714,226.66; the expenditures of the current quarter are expected, including the two millions of the principal of the debt to be paid, to balance the receipts; so that the expenses of the year, amounting to upward of a million less than its income, will leave a proportionally increased balance in the Treasury on the 1st of January, 1827, over that of the 1st of January last; instead of \$5,200,000 there will be \$6,400,000.

The amount of duties secured on merchandise imported from the commencement of the year till September 30 is estimated at \$21,250,000, and the amount that will probably accrue during the present quarter is estimated at \$4,250,000, making for the whole year \$25,500,000, from which the drawbacks being deducted will leave a clear revenue from the customs receivable in the year 1827 of about

\$20,400,000, which, with the sums to be received from the proceeds of public lands, the bank dividends, and other incidental receipts, will form an aggregate of about \$23,000,000, a sum falling short of the whole expenses of the present year little more than the portion of those expenditures applied to the discharge of the public debt beyond the annual appropriation of \$10,000,000 by the act of the 3d March, 1817. At the passage of that act the public debt amounted to \$123,500,000. On the 1st of January next it will be short of \$74,000,000. In the lapse of these ten years \$50,000,000 of public debt, with the annual charge of upward of \$3,000,000 of interest upon them, have been extinguished. At the passage of that act, of the annual appropriation of ten millions seven were absorbed in the payment of interest, and not more than three millions went to reduce the capital of the debt. Of the same ten millions, at this time scarcely four are applicable to the interest, and upward of six are effective in melting down the capital. Yet our experience has proved that a revenue consisting so largely of imposts and tonnage ebbs and flows to an extraordinary extent, with all the fluctuations incident to the general commerce of the world. It is within our recollection that even in the compass of the same last ten years the receipts of the Treasury were not adequate to the expenditures of the year, and that in two successive years it was found necessary to resort to loans to meet the engagements of the nation. The returning tides of the succeeding years replenished the public coffers until they have again begun to feel the vicissitude of a decline. To produce these alternations of fullness and exhaustion the relative operation of abundant or unfruitful seasons, the regulations of foreign governments, political revolutions, the prosperous or decaying condition of manufactures, commercial speculations, and many other causes, not always to be traced, variously combine. We have found the alternate swells and diminutions embracing periods of from two to three years. The last period of depression to us was

from 1819 to 1822. The corresponding revival was from 1823 to the commencement of the present year. Still, we have no cause to apprehend a depression comparable to that of the former period, or even to anticipate a deficiency which will intrench upon the ability to apply the annual ten millions to the reduction of the debt. It is well for us, however, to be admonished of the necessity of abiding by the maxims of the most vigilant economy, and of resorting to all honorable and useful expedients for pursuing with steady and inflexible perseverance the total discharge of the debt.

Besides the seven millions of the loans of 1813 which will have been discharged in the course of the present year, there are nine millions which by the terms of the contracts would have been and are now redeemable. Thirteen millions more of the loan of 1814 will become redeemable from and after the expiration of the present month, and nine other millions from and after the close of the ensuing year. They constitute a mass of \$31,000,000, all bearing an interest of 6 per cent, more than twenty millions of which will be immediately redeemable, and the rest within little more than a year. Leaving of this amount fifteen millions to continue at the interest of 6 per cent, but to be paid off as far as shall be found practicable in the years 1827 and 1828, there is scarcely a doubt that the remaining sixteen millions might within a few months be discharged by a loan at not exceeding 5 per cent, redeemable in the years 1829 and 1830. By this operation a sum of nearly half a million of dollars may be saved to the nation, and the discharge of the whole thirty-one millions within the four years may be greatly facilitated if not wholly accomplished.

By an act of Congress of 3d March, 1835,* a loan for the purpose now referred to, or a subscription to stock, was authorized, at an interest not exceeding 4-1/2 per cent. But at that time so large a portion of the floating capital of the country was absorbed in commercial speculations and so

little was left for investment in the stocks that the measure was but partially successful. At the last session of Congress the condition of the funds was still unpropitious to the measure; but the change so soon afterwards occurred that, had the authority existed to redeem the nine millions now redeemable by an exchange of stocks or a loan at 5 per cent, it is morally certain that it might have been effected, and with it a yearly saving of \$90,000.

With regard to the collection of the revenue of imposts, certain occurrences have within the last year been disclosed in one or two of our principal ports, which engaged the attention of Congress at their last session and may hereafter require further consideration. Until within a very few years the execution of the laws for raising the revenue, like that of all our other laws, has been insured more by the moral sense of the community than by the rigors of a jealous precaution or by penal sanctions. Confiding in the exemplary punctuality and unsullied integrity of our importing merchants, a gradual relaxation from the provisions of the collection laws, a close adherence to which would have caused inconvenience and expense to them, had long become habitual, and indulgences had been extended universally because they had never been abused. It may be worthy of your serious consideration whether some further legislative provision may not be necessary to come in aid of this state of unguarded security.

From the reports herewith communicated of the Secretaries of War and of the Navy, with the subsidiary documents annexed to them, will be discovered the present condition and administration of our military establishment on the land and on the sea. The organization of the Army having undergone no change since its reduction to the present peace establishment in 1821, it remains only to observe that it is yet found adequate to all the purposes for which a permanent armed force in time of peace can be heeded or useful. It may be proper to add that, from a

difference of opinion between the late President of the United States and the Senate with regard to the construction of the act of Congress of 2d March, 1821, to reduce and fix the military peace establishment of the United States, it remains hitherto so far without execution that no colonel has been appointed to command one of the regiments of artillery. A supplementary or explanatory act of the Legislature appears to be the only expedient practicable for removing the difficulty of this appointment.

In a period of profound peace the conduct of the mere military establishment forms but a very inconsiderable portion of the duties devolving upon the administration of the Department of War. It will be seen by the returns from the subordinate departments of the Army that every branch of the service is marked with order, regularity, and discipline; that from the commanding general through all the gradations of superintendence the officers feel themselves to have been citizens before they were soldiers, and that the glory of a republican army must consist in the spirit of freedom, by which it is animated, and of patriotism, by which it is impelled. It may be confidently stated that the moral character of the Army is in a state of continual improvement, and that all the arrangements for the disposal of its parts have a constant reference to that end.

But to the War Department are attributed other duties, having, indeed, relation to a future possible condition of war, but being purely defensive, and in their tendency contributing rather to the security and permanency of peace-the erection of the fortifications provided for by Congress, and adapted to secure our shores from hostile invasion; the distribution of the fund of public gratitude and justice to the pensioners of the Revolutionary war; the maintenance of our relations of peace and of protection with the Indian tribes, and the internal improvements and surveys for the location of roads and canals, which during the last three sessions of Congress have engaged so much of

their attention, and may engross so large a share of their future benefactions to our country.

By the act of the 30th of April, 1824, suggested and approved by my predecessor, the sum of \$30,000 was appropriated for the purpose of causing to be made the necessary surveys, plans, and estimates of the routes of such roads and canals as the President of the United States might deem of national importance in a commercial or military point of view, or necessary for the transportation of the public mail. The surveys, plans, and estimates for each, when completed, will be laid before Congress.

In execution of this act a board of engineers was immediately instituted, and have been since most assiduously and constantly occupied in carrying it into effect. The first object to which their labors were directed, by order of the late President, was the examination of the country between the tide waters of the Potomac, the Ohio, and Lake Erie, to ascertain the practicability of a communication between them, to designate the most suitable route for the same, and to form plans and estimates in detail of the expense of execution.

On the 3d of February, 1825, they made their first report, which was immediately communicated to Congress, and in which they declared that having maturely considered the circumstances observed by them personally, and carefully studied the results of such of the preliminary surveys as were then completed, they were decidedly of opinion that the communication was practicable.

At the last session of Congress, before the board of engineers were enabled to make up their second report containing a general plan and preparatory estimate for the work, the Committee of the House of Representatives upon Roads and Canals closed the session with a report expressing the hope that the plan and estimate of the board

of engineers might at this time be prepared, and that the subject be referred to the early and favorable consideration of Congress at their present session. That expected report of the board of engineers is prepared, and will forthwith be laid before you.

Under the resolution of Congress authorizing the Secretary of War to have prepared a complete system of cavalry tactics, and a system of exercise and instruction of field artillery, for the use of the militia of the United States, to be reported to Congress at the present session, a board of distinguished officers of the Army and of the militia has been convened, whose report will be submitted to you with that of the Secretary of War. The occasion was thought favorable for consulting the same board, aided by the results of a correspondence with the governors of the several States and Territories and other citizens of intelligence and experience, upon the acknowledged defective condition of our militia system, and of the improvements of which it is susceptible. The report of the board upon this subject is also submitted for your consideration.

In the estimates of appropriations for the ensuing year upward of \$5,000,000 will be submitted for the expenditures to be paid from the Department of War. Less than two-fifths of this will be applicable to the maintenance and support of the Army. A million and a half, in the form of pensions, goes as a scarcely adequate tribute to the services and sacrifices of a former age, and a more than equal sum invested in fortifications, or for the preparations of internal improvement, provides for the quiet, the comfort, and happier existence of the ages to come. The appropriations to indemnify those unfortunate remnants of another race unable alike to share in the enjoyments and to exist in the presence of civilization, though swelling in recent years to a magnitude burdensome to the Treasury, are generally not without their equivalents in profitable value,

or serve to discharge the Union from engagements more burdensome than debt.

In like manner the estimate of appropriations for the Navy Department will present an aggregate sum of upward of \$3,000,000. About one-half of these, however, covers the current expenditures of the Navy in actual service, and one-half constitutes a fund of national property, the pledge of our future glory and defense. It was scarcely one short year after the close of the late war, and when the burden of its expenses and charges was weighing heaviest upon the country, that Congress, by the act of 29th April, 1816, appropriated \$1,000,000 annually for eight years to the *gradual increase of the Navy*. At a subsequent period this annual appropriation was reduced to half a million for six years, of which the present year is the last. A yet more recent appropriation the last two years, for building ten sloops of war, has nearly restored the original appropriation of 1816 of a million for every year. The result is before us all. We have twelve line-of-battle ships, twenty frigates, and sloops of war in proportion, which, with a few months of preparation, may present a line of floating fortifications along the whole range of our coast ready to meet any invader who might attempt to set foot upon our shores. Combining with a system of fortifications upon the shores themselves, commenced about the same time under the auspices of my immediate predecessor, and hitherto systematically pursued, it has placed in our possession the most effective sinews of war and has left us at once an example and a lesson from which our own duties may be inferred. The gradual increase of the Navy was the principle of which the act of 29th April, 1816, was the first development. It was the introduction of a system to act upon the character and history of our country for an indefinite series of ages. It was a declaration of that Congress to their constituents and to posterity that it was the destiny and the duty of these confederated States to

become in regular process of time and by no petty advances a great naval power. That which they proposed to accomplish in eight years is rather to be considered as the measure of their means than the limitation of their design. They looked forward for a term of years sufficient for the accomplishment of a definite portion of their purpose, and they left to their successors to fill up the canvas of which they had traced the large and prophetic outline. The ships of the line and frigates which they had in contemplation will be shortly completed. The time which they had allotted for the accomplishment of the work has more than elapsed. It remains for your consideration how their successors may contribute their portion of toil and of treasure for the benefit of the succeeding age in the gradual increase of our Navy. There is perhaps no part of the exercise of the constitutional powers of the Federal Government which has given more general satisfaction to the people of the Union than this. The system has not been thus vigorously introduced and hitherto sustained to be now departed from or abandoned. In continuing to provide for the gradual increase of the Navy it may not be necessary or expedient to add for the present any more to the number of our ships; but should you deem it advisable to continue the yearly appropriation of half a million to the same objects, it may be profitably expended in providing a supply of timber to be seasoned and other materials for future use in the construction of docks or in laying the foundations of a school for naval education, as to the wisdom of Congress either of those measures may appear to claim the preference.

Of the small portions of this Navy engaged in actual service during the peace, squadrons have continued to be maintained in the Pacific Ocean, in the West India seas, and in the Mediterranean, to which has been added a small armament to cruise on the eastern coast of South America. In all they have afforded protection to our commerce, have contributed to make our country advantageously known to

foreign nations, have honorably employed multitudes of our seamen in the service of their country, and have inured numbers of youths of the rising generation to lives of manly hardihood and of nautical experience and skill. The piracies with which the West India seas were for several years infested have been totally suppressed, but in the Mediterranean they have increased in a manner afflictive to other nations, and but for the continued presence of our squadron would probably have been distressing to our own. The war which has unfortunately broken out between the Republic of Buenos Ayres and the Brazilian Government has given rise to very great irregularities among the naval officers of the latter, by whom principles in relation to blockades and to neutral navigation have been brought forward to which we can not subscribe and which our own commanders have found it necessary to resist. From the friendly disposition toward the United States constantly manifested by the Emperor of Brazil, and the very useful and friendly commercial intercourse between the United States and his dominions, we have reason to believe that the just reparation demanded for the injuries sustained by several of our citizens from some of his officers will not be withheld. Abstracts from the recent dispatches of the commanders of our several squadrons are communicated with the report of the Secretary of the Navy to Congress.

A report from the Postmaster-General is likewise communicated, presenting in a highly satisfactory manner the result of a vigorous, efficient, and economical administration of that Department. The revenue of the office, even of the year including the latter half of 1824 and the first half of 1825, had exceeded its expenditures by a sum of more than \$45,000. That of the succeeding year has been still more productive. The increase of the receipts in the year preceding the 1st of July last over that of the year before exceeds \$136,000, and the excess of the receipts over the expenditures of the year has swollen from \$45,000

to nearly \$80,000. During the same period contracts for additional transportation of the mail in stages for about 260,000 miles have been made, and for 70,000 miles annually on horseback. Seven hundred and fourteen new post-offices have been established within the year, and the increase of revenue within the last three years, as well as the augmentation of the transportation by mail, is more than equal to the whole amount of receipts and of mail conveyance at the commencement of the present century, when the seat of the General Government was removed to this place. When we reflect that the objects effected by the transportation of the mail are among the choicest comforts and enjoyments of social life, it is pleasing to observe that the dissemination of them to every corner of our country has outstripped in their increase even the rapid march of our population.

By the treaties with France and Spain, respectively ceding Louisiana and the Floridas to the United States, provision was made for the security of land titles derived from the Governments of those nations. Some progress has been made under the authority of various acts of Congress in the ascertainment and establishment of those titles, but claims to a very large extent remain unadjusted. The public faith no less than the just rights of individuals and the interest of the community itself appears to require further provision for the speedy settlement of those claims, which I therefore recommend to the care and attention of the Legislature.

In conformity with the provisions of the act of 20th May last, to provide for erecting a penitentiary in the district of Columbia, and for other purposes, three commissioners were appointed to select a site for the erection of a penitentiary for the district, and also a site in the county of Alexandria for a county jail, both of which objects have been effected. The building of the penitentiary has been commenced, and is in such a degree of forwardness as to

promise that it will be completed before the meeting of the next Congress. This consideration points to the expediency of maturing at the present session a system for the regulation and government of the penitentiary, and of defining the class of offenses which shall be punishable by confinement in this edifice.

In closing this communication I trust that it will not be deemed inappropriate to the occasion and purposes upon which we are here assembled to indulge a momentary retrospect, combining in a single glance the period of our origin as a national confederation with that of our present existence, at the precise interval of half a century from each other. Since your last meeting at this place the fiftieth anniversary of the day when our independence was declared has been celebrated throughout our land, and on that day, while every heart was bounding with joy and every voice was tuned to gratulation, amid the blessings of freedom and independence which the sires of a former age had handed down to their children, two of the principal actors in that solemn scene-the hand that penned the ever-memorable Declaration and the voice that sustained it in debate-were by one summons, at the distance of 700 miles from each other, called before the Judge of All to account for their deeds done upon earth. They departed cheered by the benedictions of their country, to whom they left the inheritance of their fame and the memory of their bright example. If we turn our thoughts to the condition of their country, in the contrast of the first and last day of that half century, how resplendent and sublime is the transition from gloom to glory! Then, glancing through the same lapse of time, in the condition of the individuals we see the first day marked with the fullness and vigor of youth, in the pledge of their lives, their fortunes, and their sacred honor to the cause of freedom and of mankind; and on the last, extended on the bed of death, with but sense and sensibility left to breathe a last aspiration to Heaven of blessing upon their

country, may we not humbly hope that to them too it was a pledge of transition from gloom to glory, and that while their mortal vestments were sinking into the clod of the valley their emancipated spirits were ascending to the bosom of their God!

John Quincy Adams.

SPECIAL MESSAGES.

Washington,
December 7, 1826.

To the Senate and House of Representatives of the United States:

I now transmit a report from the Secretary of War, with that of the Board of Engineers of Internal Improvement, concerning the proposed Chesapeake and Ohio Canal.

John Quincy Adams.

Washington,
December 8, 1826.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report from the Secretary of War, with sundry documents, containing the information requested by a resolution of the House of the 8th of May last, relating to the lead mines belonging to the United States in Illinois and Missouri.

John Quincy Adams.

Washington,
December 8, 1826.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report from the Secretary of War, with several documents, containing information required by a resolution of the House of the 20th of May last, respecting certain proposed donations of land by Indian tribes to any agent or commissioner of the United States.

John Quincy Adams.

Washington,
December 12, 1826.

To the Senate of the United States:

I transmit herewith to the Senate, for their advice with regard to their ratification, the following treaties with Indian tribes:

1. A treaty made and concluded at the Fond du Lac of Lake Superior, between Lewis Cass and Thomas L. McKenney, commissioners on the part of the United States, and the Chippewa tribe of Indians, on the 5th of August, 1826.

2. A treaty made and concluded near the mouth of the Mississinewa, upon the Wabash, in the State of Indiana, between Lewis Cass, James B. Ray, and John Tipton, commissioners on the part of the United States, and the chiefs and warriors of the Potawatamie tribe of Indians, on the 16th of October, 1826.

3. A treaty made and concluded hear the mouth of the Mississinewa, upon the Wabash, in the State of Indiana, between Lewis Cass, James B. Ray, and John Tipton, commissioners on the part of the United States, and the chiefs and warriors of the Miami tribe of Indians, on the 23d of October, 1826.

John Quincy Adams.

Washington,
December 18, 1826.

To the Senate and House of Representatives of the United States:

I transmit to Congress extracts of a letter, received since the commencement of their session, from the minister of the United States at London, having relation to the late discussions with the Government of Great Britain concerning the trade between the United States and the British colonies in America.

John Quincy Adams.

Washington,
December 20, 1826.

To the Senate of the United States:

In the message to both Houses of Congress at the commencement of their present session it was intimated that the commission for liquidating the claims of our fellow-citizens to indemnity for slaves and other property carried away after the close of the late war with Great Britain in contravention to the first article of the treaty of Ghent had been sitting in this city with doubtful prospects of success, but that propositions had recently passed

between the two Governments which it was hoped would lead to a satisfactory adjustment of that controversy.

I now transmit to the Senate, for their constitutional consideration and advice, a convention signed at London by the plenipotentiaries of the two Governments on the 13th of the last month, relating to this object. A copy of the convention is at the same time sent, together with a copy of the instructions under which it was negotiated and the correspondence relating to it. To avoid all delay these documents are now transmitted, consisting chiefly of original papers, the return of which is requested.

John Quincy Adams.

Washington,
December 22, 1826.

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 12th instant, requesting information of the measures taken to carry into effect the act of Congress of 3d March, 1825, directing a road to be made from Little Rock to Cantonment Gibson, in the Territory of Arkansas, I transmit a report from the Secretary of War, with a letter from the Quartermaster-General, containing the information desired by the resolution.

John Quincy Adams.

Washington,
December 22, 1826.

To the House of Representatives of the United States:

I communicate to the House of Representatives a report from the Secretary of State, with a copy of the three

articles^[009] (marked A) requested by the resolution of the House of the 19th instant. The third of those articles relating to a subject upon which the negotiation between the two Governments is yet open, the communication of all the other documents relating to it is reserved to a future period, when it may be closed.

John Quincy Adams.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report from the Secretary of State, with sundry documents, containing the information requested by two resolutions of the House of the 15th instant, relating to the proceedings of the congress of ministers which assembled last summer at Panama.

The occasion is taken to communicate at the same time two other dispatches, from the minister of the United States to the Mexican Confederation, one of which should have been communicated at the last session of Congress but that it was then accidentally mislaid, and the other having relation to the same subject.

John Quincy Adams.
DECEMBER 26, 1826.

Washington,
January 10, 1827

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 6th instant, I transmit herewith a report from the Secretary of State, together with copies of

the correspondence with the Government of the Netherlands, relating to discriminating duties.

John Quincy Adams.

Washington,
January 10, 1827

To the Senate of the United States:

In compliance with a resolution of the Senate of the 20th of May last, requesting a detailed statement of the expenditures for the construction and repair of the Cumberland road, I now transmit a report from the Secretary of the Treasury, with the statement requested by the resolution.

John Quincy Adams.

Washington,
January 10, 1827

To the Senate and House of Representatives of the United States:

I transmit to both Houses of Congress a report from the Secretary of the Navy, together with that of the engineer by whom, conformably to a joint resolution of the two Houses of the 22d May last, an examination and survey has been made of a site for a dry dock at the navy-yard at Portsmouth, N. H.; Charlestown, Mass.; Brooklyn, N. Y., and Gosport, Va.

John Quincy Adams.

Washington,
January 15, 1827

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 20th of May last, I transmit herewith a report from the Secretary of State, touching the impressment of seamen from on board American vessels on the high seas or elsewhere by the commanders of British or other foreign vessels or ships of war since 18th of February, 1815, together with such correspondence on the subject as comes within the purview of the resolution.

John Quincy Adams.

Washington,
January 15, 1827

To the Senate of the United States:

In compliance with a resolution of the Senate of the 21st of last month, I now transmit a letter from the Secretary of War, with a report from the Chief Engineer and a statement of the Third Auditor, shewing the amount disbursed of the appropriation made by the act of 24th May, 1824, to improve the navigation of the Ohio and Mississippi rivers, and the state and progress of the work contemplated by the appropriation.

John Quincy Adams.

Washington,
January 15, 1827

To the Senate and House of Representatives of the United States:

I communicate to Congress a letter from the Secretary of War, together with a report of the Chief Engineer, and certain acts of the legislature of the State of New York

proposing to the Government of the United States the purchase of the fortifications erected at the expense of the State on Staten Island, with the ordnance and other apparatus belonging to or connected with the same. These papers were prepared at the close of the last session of Congress, at too late a period to be then acted upon.

John Quincy Adams.

Washington,
January 16, 1827

To the Senate and House of Representatives of the United States:

I communicate to both Houses of Congress copies of a convention between the United States and Great Britain, signed on the 13th of November last at London by the respective plenipotentiaries of the two Governments, for the final settlement and liquidation of certain claims of indemnity of citizens of the United States which had arisen under the first article of the treaty of Ghent. It having been stipulated by this convention that the exchange of the ratifications of the same should be made at London, the usual proclamation of it here can only be issued when that event shall have taken place, the notice of which can scarcely be expected before the close of the present session of Congress. But it has been duly ratified on the part of the United States, and by the report of the Secretary of State and the accompanying certificate herewith also communicated it will be seen that the first half of the stipulated payment has been made by the minister of His Britannic Majesty residing here, and has been deposited in the office of the Bank of the United States at this place to await the disposal of Congress.

I recommend to their consideration the expediency of such legislative measures as they may deem proper for the

distribution of the sum already paid, and of that hereafter to be received, among the claimants who may be found entitled to the indemnity.

John Quincy Adams.

Washington,
January 17, 1827

To the Senate of the United States:

In compliance with a resolution of the Senate of the 10th of May last, I transmit a report from the Secretary of the Treasury, with a letter from the Director of the Mint, shewing the result of the assay of foreign coins and the information otherwise relating thereto desired by the resolution.

John Quincy Adams.

Washington,
January 29, 1827

To the Senate of the United States:

In compliance with the resolution of the Senate of the 23d instant, I transmit herewith a report [\[010\]](#) from the Secretary of State, with the accompanying documents.

John Quincy Adams.

Washington,
January 29, 1827

To the Senate of the United States:

The report from the Commissioner of the General Land Office and the accompanying documents herewith

transmitted are laid before the Senate in compliance with their resolution of the 4th of April last, relating to the public lands of the United States in the States of Missouri and Illinois which are unfit for cultivation.

John Quincy Adams.

Washington,
February 2, 1827

To the Senate of the United States:

In compliance with a resolution of the Senate of the 25th ultimo, relative to the execution of the treaty of the 18th of October, 1820, of Doaks Stand with the Choctaw tribe of Indians, I transmit a report from the Secretary of War, with a statement from the Office of Indian Affairs, comprising so far as it is possessed the information desired by the resolution.

John Quincy Adams.

Washington,
February 3, 1827

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the United States of the 9th ultimo, relating to the appointments of chargés d'affaires and to the commissions and salaries of the ministers and secretary to the mission to Panama, I transmit herewith a report from the Secretary of State, with accompanying documents.

John Quincy Adams.

Washington,

February 5, 1827

To the House of Representatives of the United States:

The report from the Secretary of War and accompanying documents herewith transmitted have been prepared in compliance with a resolution of the House of Representatives of the 20th of May last, requesting a statement of expenditure and other particulars relating to the procurement and properties of the patent rifle.

John Quincy Adams.

Washington,
February 5, 1827

To the Senate and House of Representatives of the United States:

I submit to the consideration of Congress a letter from the agent of the United States with the Creek Indians, who invoke the protection of the Government of the United States in defense of the rights and territory secured to that nation by the treaty concluded at Washington, and ratified on the part of the United States on the 22d of April last.

The complaint set forth in this letter that surveyors from Georgia have been employed in surveying lands within the Indian Territory, as secured by that treaty, is authenticated by the information unofficially received from other quarters, and there is reason to believe that one or more of the surveyors have been arrested in their progress by the Indians. Their forbearance, and reliance upon the good faith of the United States, will, it is hoped, avert scenes of violence and blood which there is otherwise too much cause to apprehend will result from these proceedings.

By the fifth section of the act of Congress of the 30th of March, 1802, to regulate trade and intercourse with the

Indian tribes and to preserve peace on the frontiers, it is provided that if any citizen of or other person resident in the United States shall make a settlement on any lands belonging or secured or granted by treaty with the United States to any Indian tribe, or shall survey, or attempt to survey, such lands, or designate any of the boundaries by marking trees or otherwise, such offender shall forfeit a sum not exceeding \$1,000 and suffer imprisonment not exceeding twelve months.

By the sixteenth and seventeenth sections of the same statute two distinct processes are prescribed, by either or both of which the above enactment may be carried into execution. By the first it is declared to be lawful for the military force of the United States to apprehend every person found in the Indian country over and beyond the boundary line between the United States and the Indian tribes in violation of any of the provisions or regulations of the act, and immediately to convey them, in the nearest convenient and safe route, to the civil authority of the United States in some of the three next adjoining States or districts, to be proceeded against in due course of law.

By the second it is directed that if any person charged with the violation of any of the provisions or regulations of the act shall be found within any of the United States or either of their territorial districts such offender may be there apprehended and brought to trial in the same manner as if such crime or offense had been committed within such State or district; and that it shall be the duty of the military force of the United States, when called upon by the civil magistrate or any proper officer or other person duly authorized for that purpose and having a lawful warrant, to aid and assist such magistrate, officer, or other person so authorized in arresting such offender and committing him to safe custody for trial according to law.

The first of these processes is adapted to the arrest of the trespasser upon Indian territories on the spot and in the act of committing the offense; but as it applies the action of the Government of the United States to places where the civil process of the law has no authorized course, it is committed entirely to the functions of the military force to arrest the person of the offender, and after bringing him within the reach of the jurisdiction of the courts there to deliver him into custody for trial. The second makes the violator of the law amenable only after his offense has been consummated, and when he has returned within the civil jurisdiction of the Union. This process, in the first instance, is merely of a civil character, but may in like manner be enforced by calling in, if necessary, the aid of the military force.

Entertaining no doubt that in the present case the resort to either of these modes of process, or to both, was within the discretion of the Executive authority, and penetrated with the duty of maintaining the rights of the Indians as secured both by the treaty and the law, I concluded, after full deliberation, to have recourse on this occasion, in the first instance, only to the civil process. Instructions have accordingly been given by the Secretary of War to the attorney and marshal of the United States in the district of Georgia to commence prosecutions against the surveyors complained of as having violated the law, while orders have at the same time been forwarded to the agent of the United States at once to assure the Indians that their rights founded upon the treaty and the law are recognized by this Government and will be faithfully protected, and earnestly to exhort them, by the forbearance of every act of hostility on their part, to preserve unimpaired that right to protection secured to them by the sacred pledge of the good faith of this nation. Copies of these instructions and orders are herewith transmitted to Congress.

In abstaining at this stage of the proceedings from the application of any military force I have been governed by

considerations which will, I trust, meet the concurrence of the Legislature. Among them one of paramount importance has been that these surveys have been attempted, and partly effected, under color of legal authority from the State of Georgia; that the surveyors are, therefore, not to be viewed in the light of individual and solitary transgressors, but as the agents of a sovereign State, acting in obedience to authority which they believed to be binding upon them. Intimations had been given that should they meet with interruption they would at all hazards be sustained by the military force of the State, in which event, if the military force of the Union should have been employed to enforce its violated law, a conflict *must* have ensued, which would itself have inflicted a wound upon the Union and have presented the aspect of one of these confederated States at war with the rest. Anxious, above all, to avert this state of things, yet at the same time impressed with the deepest conviction of my own duty to take care that the laws shall be executed and the faith of the nation preserved, I have used of the means intrusted to the Executive for that purpose only those which without resorting to military force may vindicate the sanctity of the law by the ordinary agency of the judicial tribunals.

It ought not, however, to be disguised that the act of the legislature of Georgia, under the construction given to it by the governor of that State, and the surveys made or attempted by his authority beyond the boundary secured by the treaty of Washington of April last to the Creek Indians, are in direct violation of the supreme law of this land, set forth in a treaty which has received all the sanctions provided by the Constitution which we have been sworn to support and maintain.

Happily distributed as the sovereign powers of the people of this Union have been between their General and State Governments, their history has already too often presented collisions between these divided authorities with regard to

the extent of their respective powers. No instance, however, has hitherto occurred in which this collision has been urged into a conflict of actual force. No other case is known to have happened in which the application of military force by the Government of the Union has been prescribed for the enforcement of a law the violation of which has within any single State been prescribed by a legislative act of the State. In the present instance it is my duty to say that if the legislative and executive authorities of the State of Georgia should persevere in acts of encroachment upon the territories secured by a solemn treaty to the Indians, and the laws of the Union remain unaltered, a superadded obligation even higher than that of human authority will compel the Executive of the United States to enforce the laws and fulfill the duties of the nation by all the force committed for that purpose to his charge. That the arm of military force will be resorted to only in the event of the failure of all other expedients provided by the laws, a pledge has been given by the forbearance to employ it at this time. It is submitted to the wisdom of Congress to determine whether any further act of legislation may be necessary or expedient to meet the emergency which these transactions may produce.

John Quincy Adams.

Washington,
February 8, 1827

To the Senate of the United States:

I transmit to the Senate, for their advice with regard to its ratification, a treaty between the United States and the Mexican Confederation, signed by the plenipotentiaries of

the respective Governments on the 10th of July last. It will be seen by its terms that if ratified by both parties the ratifications are to be exchanged at this city on or before the 10th day of next month. The ratification on the part of the Government of Mexico has not yet been received, though it has probably before this been effected. To avoid all unnecessary delay the treaty is now communicated to the Senate, that it may receive all the deliberation which, in their wisdom, it may require, without pressing upon their time at a near approach to the close of their session. Should they advise and consent to its ratification, that measure will still be withheld until the ratification by the Mexican Government shall have been ascertained. A copy of the treaty is likewise transmitted, together with the documents appertaining to the negotiation.

John Quincy Adams.

Washington,
February 8, 1827

To the Senate and House of Representatives of the United States:

I communicate to Congress copies of a letter from the governor of the State of Georgia, received since my message of the 5th instant, and of inclosures received with it, further confirmative of the facts stated in that message.

[\[011\]](#)

John Quincy Adams.

Washington,
February 16, 1827

To the Senate of the United States:

I transmit to the Senate a report from the Secretary of the Treasury, with statements prepared at the Register's and General Land Office, in compliance with a resolution of the Senate of the 10th of May last, in relation to the purchase and sales of the public lands since the declaration of independence.

John Quincy Adams.

Washington,
February 19, 1827

To the Senate and House of Representatives of the United States:

I transmit to both Houses of Congress copies of the following treaties, which have been ratified by and with the consent of the Senate:

- i. A treaty with the Chippewa tribe of Indians, signed at the Fond du Lac of Lake Superior on the 5th of August, 1826.
2. A treaty with the Potawatamie tribe of Indians, signed on the 16th of October, 1826, near the mouth of the Mississinawa, upon the Wabash, in the State of Indiana.
3. A treaty with the Miami tribe of Indians, signed at the same place on the 23d of October, 1826.

John Quincy Adams.

Washington,
February 24, 1827

To the Senate of the United States:

I transmit to the Senate, for their consideration, a conveyance by treaty from the Seneca tribe of Indians to

Robert Troup, Thomas L. Ogden, and Benjamin W. Rogers, in the presence of Oliver Forward, commissioner of the United States for holding the said treaty, and of Nathaniel Gorham, superintendent in behalf of the State of Massachusetts. A letter from the grantees of this conveyance and a report of the Superintendent of Indian Affairs to the Secretary of War, relating to this instrument, are also transmitted; and with regard to the approval or ratification of the treaty itself, it is submitted to the Senate for their advice and consent.

John Quincy Adams.

Washington,
February 28, 1827

To the House of Representatives of the United States:

I transmit to the House of Representatives a report from the Secretary of War, with sundry documents, containing statements requested by a resolution of the House of Representatives of the 9th of January, relating to the Artillery School of Practice at Fortress Monroe.

John Quincy Adams.

Washington,
March 2, 1827

To the Senate of the United States:

I transmit to the Senate a report from the Secretary of the Treasury, with sundry documents, containing the information requested by a resolution of the Senate of the 20th of April last, relating to the security taken of the late survey or-general of Illinois, Missouri, and Arkansas, and of the late receiver of public moneys in the western district of Missouri, and to the sums for which they were respectively

defaulters; also the sums due by each of the late directors of the Bank of Missouri to the United States, and to the measures taken for obtaining or enforcing payment of the same.

John Quincy Adams.

Washington,
March 2, 1827

To the Senate and House of Representatives of the United States:

I transmit to both Houses of Congress copies of communications received yesterday by the Secretary of War from the governor of Georgia and from Lieutenant Vinton.

[\[012\]](#)

John Quincy Adams.

PROCLAMATIONS.

By the President of the United States.

A PROCLAMATION.

Whereas by the sixth section of an act of Congress entitled "An act to regulate the commercial intercourse between the United States and certain British colonial ports," which was approved on the 1st day of March, A. D. 1823, it is enacted "that this act, unless repealed, altered, or amended by Congress, shall be and continue in force so long as the above-enumerated British colonial ports shall be open to the admission of the vessels of the United States, conformably to the provisions of the British act of Parliament of the 24th of June last, being the forty-fourth chapter of the acts of the third year of George IV; but if at any time the trade and intercourse between the United States and all or any of the above enumerated British colonial ports authorized by the said act of Parliament should be prohibited by a British order in council or by act of Parliament, then, from the day of the date of such order in council or act of Parliament, or from the time that the same shall commence to be in force, proclamation to that effect having been made by the President of the United States, each and every provision of this act, so far as the same shall apply to the intercourse between the United States and the above-enumerated British colonial ports in British vessels, shall cease to operate in their favor, and each and every provision of the 'Act concerning navigation,' approved on the 18th of April, 1818, and of the act supplementary thereto, approved on the 15th of May, 1820, shall revive and be in full force;" and

Whereas by an act of the British Parliament which passed on the 5th day of July, A. D. 1825, entitled "An act to repeal the several laws relating to the customs," the said act of

Parliament of the 24th of June, 1822, was repealed; and by another act of the British Parliament, passed on the 5th day of July, A. D. 1825, in the sixth year of the reign of George IV, entitled "An act to regulate the trade of the British possessions abroad;" and by an order of His Britannic Majesty in council, bearing date the 27th of July, 1826, the trade and intercourse authorized by the aforesaid act of Parliament of the 24th of June, 1822, between the United States and the greater part of the said British colonial ports therein enumerated, have been prohibited upon and from the 1st day of December last past, and the contingency has thereby arisen on which the President of the United States was authorized by the sixth section aforesaid of the act of Congress of the 1st March, 1823, to issue a proclamation to the effect therein mentioned:

Now, therefore, I, John Quincy Adams, President of the United States of America, do hereby declare and proclaim that the trade and intercourse authorized by the said act of Parliament of the 24th of June, 1822, between the United States and the British colonial ports enumerated in the aforesaid act of Congress of the 1st of March, 1823, have been and are, upon and from the 1st day of December, 1826, by the aforesaid two several acts of Parliament of the 5th of July, 1825, and by the aforesaid British order in council of the 27th day of July, 1826, prohibited.

Given under my hand, at the city of Washington, this 17th day of March, A. D. 1827, and the fifty-first year of the Independence of the United States.

John Quincy Adams.

By the President:
H. Clay,
Secretary of State.

By the President of the United States.

A PROCLAMATION.

Whereas by an act of the Congress of the United States of the 7th of January, 1824, entitled "An act concerning discriminating duties of tonnage and impost," it is provided that upon satisfactory evidence being given to the President of the United States by the government of any foreign nation that no discriminating duties of tonnage or impost are imposed or levied within the ports of the said nation upon vessels wholly belonging to citizens of the United States or upon merchandise the produce or manufacture thereof imported in the same, the President is thereby authorized to issue his proclamation declaring that the foreign discriminating duties of tonnage and impost within the United States are and shall be suspended and discontinued so far as respects the vessels of the said nation and the merchandise of its produce or manufacture imported into the United States in the same, the said suspension to take effect from the time of such notification being given to the President of the United States and to continue so long as the reciprocal exemption of vessels belonging to citizens of the United States and merchandise as aforesaid therein laden shall be continued, and no longer; and

Whereas satisfactory evidence was given to the President of the United States on the 30th day of May last by Count Lucchesi, consul-general of His Holiness the Pope, that all foreign and discriminating duties of tonnage and impost within the dominions of His Holiness, so far as respected the vessels of the United States and the merchandise of their produce or manufacture imported in the same, were suspended and discontinued:

Now, therefore, I, John Quincy Adams, President of the United States, conformably to the fourth section of the act of Congress aforesaid, do hereby proclaim and declare that the foreign discriminating duties of tonnage and impost within the United States are and shall be suspended and discontinued so far as respects the vessels of the subjects of His Holiness the Pope and the merchandise of the produce or manufacture of his dominions imported into the United States' in the same, the said suspension to take effect from the 30th of May aforesaid and to continue so long as the reciprocal exemption of vessels belonging to citizens of the United States and merchandise as aforesaid therein laden shall be continued, and no longer.

Given under my hand, at the city of Washington, this 7th day of June, A. D. 1827, and of the Independence of the United States the fifty-first.

John Quincy Adams.

By the President:
H. Clay,
Secretary of State.

By the President of the United States.

A PROCLAMATION.

Whereas Willis Anderson, of the County of Alexandria, in the district of Columbia, is charged with having recently murdered Gerrard Arnold, late of the said county; and

Whereas it is represented to me that the said Willis Anderson has absconded and secretes himself, so that he can not be apprehended and brought to justice for the offense of which he is so charged; and

Whereas the apprehension and trial of the said Willis Anderson is an example due to justice and humanity, and would be every way salutary in its influence:

Now, therefore, I have thought fit to issue this my proclamation, hereby exhorting the citizens of the United States, and particularly those of this district, and requiring all officers, according to their respective stations, to use their utmost endeavors to apprehend and bring the said Willis Anderson to justice for the atrocious crime with which he stands charged as aforesaid; and I do moreover offer a reward of \$250 for the apprehension of the said Willis Anderson and his delivery to an officer or officers of justice in the county aforesaid, so that he may be brought to trial for the murder aforesaid and be otherwise dealt with according to law.

In testimony whereof I have hereunto signed my name and caused the seal of the United States to be affixed to these presents.

(SEAL.)

Done at Washington, this 10th day of September, A. D.
1827, and of the Independence of the United States the
fifty-second.

J. Q. Adams.

By the President:
H. Clay,
Secretary of State.

THIRD ANNUAL MESSAGE.

Washington,
December 4, 1827

Fellow-Citizens of the Senate and of the House of Representatives:

A revolution of the seasons has nearly been completed since the representatives of the people and States of this Union were last assembled at this place to deliberate and to act upon the common important interests of their constituents. In that interval the never-slumbering eye of a wise and beneficent Providence has continued its guardian care over the welfare of our beloved country; the blessing of health has continued generally to prevail throughout the land; the blessing of peace with our brethren of the human race has been enjoyed without interruption; internal quiet has left our fellow-citizens in the full enjoyment of all their rights and in the free exercise of all their faculties, to pursue the impulse of their nature and the obligation of their duty in the improvement of their own condition; the productions of the soil, the exchanges of commerce, the vivifying labors of human industry, have combined to mingle in our cup a portion of enjoyment as large and liberal as the indulgence of Heaven has perhaps ever granted to the imperfect state of man upon earth; and as the purest of human felicity consists in its participation with others, it is no small addition to the sum of our national happiness at this time that peace and prosperity prevail to a degree seldom experienced over the whole habitable globe, presenting, though as yet with painful exceptions, a foretaste of that blessed period of promise when the lion shall lie down with the lamb and wars shall be no more. To preserve, to improve, and to

perpetuate the sources and to direct in their most effective channels the streams which contribute to the public weal is the purpose for which Government was instituted. Objects of deep importance to the welfare of the Union are constantly recurring to demand the attention of the Federal Legislature, and they call with accumulated interest at the first meeting of the two Houses after their periodical renovation. To present to their consideration from time to time subjects in which the interests of the nation are most deeply involved, and for the regulation of which the legislative will is alone competent, is a duty prescribed by the Constitution, to the performance of which the first meeting of the new Congress is a period eminently appropriate, and which it is now my purpose to discharge.

Our relations of friendship with the other nations of the earth, political and commercial, have been preserved unimpaired, and the opportunities to improve them have been cultivated with anxious and unremitting attention. A negotiation upon subjects of high and delicate interest with the Government of Great Britain has terminated in the adjustment of some of the questions at issue upon satisfactory terms and the postponement of others for future discussion and agreement. The purposes of the convention concluded at St. Petersburg on the 12th day of July, 1822, under the mediation of the late Emperor Alexander, have been carried into effect by a subsequent convention, concluded at London on the 13th of November, 1826, the ratifications of which were exchanged at that place on the 6th day of February last. A copy of the proclamation issued on the 19th day of March last, publishing this convention, is herewith communicated to Congress. The sum of \$1,204,960, therein stipulated to be paid to the claimants of indemnity under the first article of the treaty of Ghent, has been duly received, and the commission instituted, conformably to the act of Congress of the 2d of March last, for the distribution of the indemnity to the persons entitled

to receive it are now in session and approaching the consummation of their labors. This final disposal of one of the most painful topics of collision between the United States and Great Britain not only affords an occasion of gratulation to ourselves, but has had the happiest effect in promoting a friendly disposition and in softening asperities upon other objects of discussion; nor ought it to pass without the tribute of a frank and cordial acknowledgment of the magnanimity with which an honorable nation, by the reparation of their own wrongs, achieves a triumph more glorious than any field of blood can ever bestow.

The conventions of 3d July, 1815, and of 20th October, 1818, will expire by their own limitation on the 20th of October, 1828. These have regulated the direct commercial intercourse between the United States and Great Britain upon terms of the most perfect reciprocity; and they effected a temporary compromise of the respective rights and claims to territory westward of the Rocky Mountains. These arrangements have been continued for an indefinite period of time after the expiration of the above-mentioned conventions, leaving each party the liberty of terminating them by giving twelve months' notice to the other. The radical principle of all commercial intercourse between independent nations is the mutual interest of both parties. It is the vital spirit of trade itself; nor can it be reconciled to the nature of man or to the primary laws of human society that any traffic should long be willingly pursued of which all the advantages are on one side and all the burdens on the other. Treaties of commerce have been found by experience to be among the most effective instruments for promoting peace and harmony between nations whose interests, exclusively considered on either side, are brought into frequent collisions by competition. In framing such treaties it is the duty of each party not simply to urge with unyielding pertinacity that which suits its own interest, but to concede liberally to that which is adapted to the interest

of the other. To accomplish this, little more is generally required than a simple observance of the rule of reciprocity, and were it possible for the statesmen of one nation by stratagem and management to obtain from the weakness or ignorance of another an overreaching treaty, such a compact would prove an incentive to war rather than a bond of peace. Our conventions with Great Britain are founded upon the principles of reciprocity. The commercial intercourse between the two countries is greater in magnitude and amount than between any two other nations on the globe. It is for all purposes of benefit or advantage to both as precious, and in all probability far more extensive, than if the parties were still constituent parts of one and the same nation. Treaties between such States, regulating the intercourse of peace between them and adjusting interests of such transcendent importance to both, which have been found in a long experience of years mutually advantageous, should not be lightly canceled or discontinued. Two conventions for continuing in force those above mentioned have been concluded between the plenipotentiaries of the two Governments on the 6th of August last, and will be forthwith laid before the Senate for the exercise of their constitutional authority concerning them.

In the execution of the treaties of peace of November, 1782, and September, 1783, between the United States and Great Britain, and which terminated the war of our independence, a line of boundary was drawn as the demarcation of territory between the two countries, extending over near 20 degrees of latitude, and ranging over seas, lakes, and mountains, then very imperfectly explored and scarcely opened to the geographical knowledge of the age. In the progress of discovery and settlement by both parties since that time several questions of boundary between their respective territories have arisen, which have been found of exceedingly difficult adjustment. At the close of the last war with Great Britain four of these questions

pressed themselves upon the consideration of the negotiators of the treaty of Ghent, but without the means of concluding a definitive arrangement concerning them. They were referred to three separate commissions consisting of two commissioners, one appointed by each party, to examine and decide upon their respective claims. In the event of a disagreement between the commissioners it was provided that they should make reports to their several Governments, and that the reports should finally be referred to the decision of a sovereign the common friend of both. Of these commissions two have already terminated their sessions and investigations, one by entire and the other by partial agreement. The commissioners of the fifth article of the treaty of Ghent have finally disagreed, and made their conflicting reports to their own Governments. But from these reports a great difficulty has occurred in making up a question to be decided by the arbitrator. This purpose has, however, been effected by a fourth convention, concluded at London by the plenipotentiaries of the two Governments on the 29th of September last. It will be submitted, together with the others, to the consideration of the Senate.

While these questions have been pending incidents have occurred of conflicting pretensions and of dangerous character upon the territory itself in dispute between the two nations. By a common understanding between the Governments it was agreed that no exercise of exclusive jurisdiction by either party while the negotiation was pending should change the state of the question of right to be definitively settled. Such collision has, nevertheless, recently taken place by occurrences the precise character of which has not yet been ascertained. A communication from the governor of the State of Maine, with accompanying documents, and a correspondence between the Secretary of State and the minister of Great Britain on this subject are now communicated. Measures have been taken to ascertain the state of the facts more correctly by the employment of a

special agent to visit the spot where the alleged outrages have occurred, the result of whose inquiries, when received, will be transmitted to Congress.

While so many of the subjects of high interest to the friendly relations between the two countries have been so far adjusted, it is matter of regret that their views respecting the commercial intercourse between the United States and the British colonial possessions have not equally approximated to a friendly agreement.

At the commencement of the last session of Congress they were informed of the sudden and unexpected exclusion by the British Government of access in vessels of the United States to all their colonial ports, except those immediately bordering upon our own territories. In the amicable discussions which have succeeded the adoption of this measure, which, as it affected harshly the interests of the United States, became a subject of expostulation on our part, the principles upon which its justification has been placed have been of a diversified character. It has been at once ascribed to a mere recurrence to the old, long-established principle of colonial monopoly and at the same time to a feeling of resentment because the offers of an act of Parliament opening the colonial ports upon certain conditions had not been grasped at with sufficient eagerness by an instantaneous conformity to them. At a subsequent period it has been intimated that the new exclusion was in resentment because a prior act of Parliament, of 1822, opening certain colonial ports, under heavy and burdensome restrictions, to vessels of the United States, had not been reciprocated by an admission of British vessels from the colonies, and their cargoes, without any restriction or discrimination whatever. But be the motive for the interdiction what it may, the British Government have manifested no disposition, either by negotiation or by corresponding legislative enactments, to recede from it, and we have been given distinctly to understand that neither of

the bills which were under the consideration of Congress at their last session would have been deemed sufficient in their concessions to have been rewarded by any relaxation from the British interdict. It is one of the inconveniences inseparably connected with the attempt to adjust by reciprocal legislation interests of this nature that neither party can know what would be satisfactory to the other, and that after enacting a statute for the avowed and sincere purpose of conciliation it will generally be found utterly inadequate to the expectations of the other party, and will terminate in mutual disappointment.

The session of Congress having terminated without any act upon the subject, a proclamation was issued on the 17th of March last, conformably to the provisions of the sixth section of the act of 1st March, 1823, declaring the fact that the trade and intercourse authorized by the British act of Parliament of 24th June, 1822, between the United States and the British enumerated colonial ports had been by the subsequent acts of Parliament of 5th July, 1825, and the order of council of 27th July, 1826, prohibited. The effect of this proclamation, by the terms of the act under which it was issued, has been that each and every provision of the act concerning navigation of 18th April, 1818, and of the act supplementary thereto of 15th May, 1820, revived and is in full force. Such, then, is the present condition of the trade that, useful as it is to both parties, it can, with a single momentary exception, be carried on directly by the vessels of neither. That exception itself is found in a proclamation of the governor of the island of St. Christopher and of the Virgin Islands, inviting for three months from the 28th of August last the importation of the articles of the produce of the United States which constitute their export portion of this trade in the vessels of all nations. That period having already expired, the state of mutual interdiction has again taken place. The British Government have not only declined negotiation upon this subject, but by the principle they have

assumed with reference to it have precluded even the means of negotiation. It becomes not the self-respect of the United States either to solicit gratuitous favors or to accept as the grant of a favor that for which an ample equivalent is exacted. It remains to be determined by the respective Governments whether the trade shall be opened by acts of reciprocal legislation. It is, in the meantime, satisfactory to know that apart from the inconveniences resulting from a disturbance of the usual channels of trade no loss has been sustained by the commerce, the navigation, or the revenue of the United States, and none of magnitude is to be apprehended from this existing state of mutual interdict.

With the other maritime and commercial nations of Europe our intercourse continues with little variation. Since the cessation by the convention of 24th June, 1822, of all discriminating duties upon the vessels of the United States and of France in either country our trade with that nation has increased and is increasing. A disposition on the part of France has been manifested to renew that negotiation, and in acceding to the proposal we have expressed the wish that it might be extended to other subjects upon which a good understanding between the parties would be beneficial to the interests of both. The origin of the political relations between the United States and France is coeval with the first years of our independence. The memory of it is interwoven with that of our arduous struggle for national existence. Weakened as it has occasionally been since that time, it can by us never be forgotten, and we should hail with exultation the moment which should indicate a recollection equally friendly in spirit on the part of France. A fresh effort has recently been made by the minister of the United States residing at Paris to obtain a consideration of the just claims of citizens of the United States to the reparation of wrongs long since committed, many of them frankly acknowledged and all of them entitled upon every principle of justice to a candid examination. The proposal

last made to the French Government has been to refer the subject which has formed an obstacle to this consideration to the determination of a sovereign the common friend of both. To this offer no definitive answer has yet been received, but the gallant and honorable spirit which has at all times been the pride and glory of France will not ultimately permit the demands of innocent sufferers to be extinguished in the mere consciousness of the power to reject them.

A new treaty of amity, navigation, and commerce has been concluded with the Kingdom of Sweden, which will be submitted to the Senate for their advice with regard to its ratification. At a more recent date a minister plenipotentiary from the Hanseatic Republics of Hamburg, Lubeck, and Bremen has been received, charged with a special mission for the negotiation of a treaty of amity and commerce between that ancient and renowned league and the United States. This negotiation has accordingly been commenced, and is now in progress, the result of which will, if successful, be also submitted to the Senate for their consideration.

Since the accession of the Emperor Nicholas to the imperial throne of all the Russias the friendly dispositions toward the United States so constantly manifested by his predecessor have continued unabated, and have been recently testified by the appointment of a minister plenipotentiary to reside at this place. From the interest taken by this Sovereign in behalf of the suffering Greeks and from the spirit with which others of the great European powers are cooperating with him the friends of freedom and of humanity may indulge the hope that they will obtain relief from that most unequal of conflicts which they have so long and so gallantly sustained; that they will enjoy the blessing of self-government, which by their sufferings in the cause of liberty they have richly earned, and that their independence will be secured by those liberal institutions of

which their country furnished the earliest examples in the history of mankind, and which have consecrated to immortal remembrance the very soil for which they are now again profusely pouring forth their blood. The sympathies which the people and Government of the United States have so warmly indulged with their cause have been acknowledged by their Government in a letter of thanks, which I have received from their illustrious President, a translation of which is now communicated to Congress, the representatives of that nation to whom this tribute of gratitude was intended to be paid, and to whom it was justly due.

In the American hemisphere the cause of freedom and independence has continued to prevail, and if signalized by none of those splendid triumphs which had crowned with glory some of the preceding years it has only been from the banishment of all external force against which the struggle had been maintained. The shout of victory has been superseded by the expulsion of the enemy over whom it could have been achieved. Our friendly wishes and cordial good will, which have constantly followed the southern nations of America in all the vicissitudes of their war of independence, are succeeded by a solicitude equally ardent and cordial that by the wisdom and purity of their institutions they may secure to themselves the choicest blessings of social order and the best rewards of virtuous liberty. Disclaiming alike all right and all intention of interfering in those concerns which it is the prerogative of their independence to regulate as to them shall seem fit, we hail with joy every indication of their prosperity, of their harmony, of their persevering and inflexible homage to those principles of freedom and of equal rights which are alone suited to the genius and temper of the American nations. It has been, therefore, with some concern that we have observed indications of intestine divisions in some of the Republics of the south, and appearances of less union

with one another than we believe to be the interest of all. Among the results of this state of things has been that the treaties concluded at Panama do not appear to have been ratified by the contracting parties, and that the meeting of the congress at Tacubaya has been indefinitely postponed. In accepting the invitations to be represented at this congress, while a manifestation was intended on the part of the United States of the most friendly disposition toward the southern Republics by whom it had been proposed, it was hoped that it would furnish an opportunity for bringing all the nations of this hemisphere to the common acknowledgment and adoption of the principles in the regulation of their internal relations which would have secured a lasting peace and harmony between them and have promoted the cause of mutual benevolence throughout the globe. But as obstacles appear to have arisen to the reassembling of the congress, one of the two ministers commissioned on the part of the United States has returned to the bosom of his country, while the minister charged with the ordinary mission to Mexico remains authorized to attend at the conferences of the congress whenever they may be resumed.

A hope was for a short time entertained that a treaty of peace actually signed between the Governments of Buenos Ayres and of Brazil would supersede all further occasion for those collisions between belligerent pretensions and neutral rights which are so commonly the result of maritime war, and which have unfortunately disturbed the harmony of the relations between the United States and the Brazilian Governments. At their last session Congress were informed that some of the naval officers of that Empire had advanced and practiced upon principles in relation to blockades and to neutral navigation which we could not sanction, and which our commanders found it necessary to resist. It appears that they have not been sustained by the Government of Brazil itself. Some of the vessels captured under the assumed

authority of these erroneous principles have been restored, and we trust that our just expectations will be realized that adequate indemnity will be made to all the citizens of the United States who have suffered by the unwarranted captures which the Brazilian tribunals themselves have pronounced unlawful.

In the diplomatic discussions at Rio de Janeiro of these wrongs sustained by citizens of the United States and of others which seemed as if emanating immediately from that Government itself the chargé d'affaires of the United States, under an impression that his representations in behalf of the rights and interests of his countrymen were totally disregarded and useless, deemed it his duty, without waiting for instructions, to terminate his official functions, to demand his passports, and return to the United States. This movement, dictated by an honest zeal for the honor and interests of his country-motives which operated exclusively on the mind of the officer who resorted to it-has not been disapproved by me. The Brazilian Government, however, complained of it as a measure for which no adequate intentional cause had been given by them, and upon an explicit assurance through their chargé d'affaires residing here that a successor to the late representative of the United States hear that Government, the appointment of whom they desired, should be received and treated with the respect due to his character, and that indemnity should be promptly made for all injuries inflicted on citizens of the United States or their property contrary to the laws of nations, a temporary commission as charge d'affaires to that country has been issued, which it is hoped will entirely restore the ordinary diplomatic intercourse between the two Governments and the friendly relations between their respective nations.

Turning from the momentous concerns of our Union in its intercourse with foreign nations to those of the deepest interest in the administration of our internal affairs, we find

the revenues of the present year corresponding as nearly as might be expected with the anticipations of the last, and presenting an aspect still more favorable in the promise of the next. The balance in the Treasury on January 1 last was \$6,358,686.18. The receipts from that day to the 30th of September last, as far as the returns of them yet received can show, amount to \$16,886,581.32. The receipts of the present quarter, estimated at \$4,515,000, added to the above form an aggregate of \$21,400,000 of receipts. The expenditures of the year may perhaps amount to \$22,300,000, presenting a small excess over the receipts. But of these twenty-two millions, upward of six have been applied to the discharge of the principal of the public debt, the whole amount of which, approaching seventy-four millions on the 1st of January last, will on the first day of the next year fall short of sixty-seven millions and a half. The balance in the Treasury on the 1st of January next it is expected will exceed \$5,450,000, a sum exceeding that of the 1st of January, 1825, though falling short of that exhibited on the 1st of January last.

It was foreseen that the revenue of the present year would not equal that of the last, which had itself been less than that of the next preceding year. But the hope has been realized which was entertained, that these deficiencies would in nowise interrupt the steady operation of the discharge of the public debt by the annual ten millions devoted to that object by the act of 3d March, 1817.

The amount of duties secured on merchandise imported from the commencement of the year until the 30th of September last is \$21,226,000, and the probable amount of that which will be secured during the remainder of the year is \$5,774,000, forming a sum total of \$27,000,000. With the allowances for drawbacks and contingent deficiencies which may occur, though not specifically foreseen, we may safely estimate the receipts of the ensuing year at

\$22,300,000-a revenue for the next equal to the expenditure of the present year.

The deep solicitude felt by our citizens of all classes throughout the Union for the total discharge of the public debt will apologize for the earnestness with which I deem it my duty to urge this topic upon the consideration of Congress-of recommending to them again the observance of the strictest economy in the application of the public funds. The depression upon the receipts of the revenue which had commenced with the year 1826 continued with increased severity during the two first quarters of the present year. The returning tide began to flow with the third quarter, and, so far as we can judge from experience, may be expected to continue through the course of the ensuing year. In the meantime an alleviation from the burden of the public debt will in the three years have been effected to the amount of nearly sixteen millions, and the charge of annual interest will have been reduced upward of one million. But among the maxims of political economy which the stewards of the public moneys should never suffer without urgent necessity to be transcended is that of keeping the expenditures of the year within the limits of its receipts. The appropriations of the two last years, including the yearly ten millions of the sinking fund, have each equaled the promised revenue of the ensuing year. While we foresee with confidence that the public coffers will be replenished from the receipts as fast as they will be drained by the expenditures, equal in amount to those of the current year, it should not be forgotten that they could ill suffer the exhaustion of larger disbursements.

The condition of the Army and of all the branches of the public service under the superintendence of the Secretary of War will be seen by the report from that officer and the documents with which it is accompanied.

During the last summer a detachment of the Army has been usefully and successfully called to perform their

appropriate duties. At the moment when the commissioners appointed for carrying into execution certain provisions of the treaty of August 19, 1825, with various tribes of the Northwestern Indians were about to arrive at the appointed place of meeting the unprovoked murder of several citizens and other acts of unequivocal hostility committed by a party of the Winnebago tribe, one of those associated in the treaty, followed by indications of a menacing character among other tribes of the same region, rendered necessary an immediate display of the defensive and protective force of the Union in that quarter. It was accordingly exhibited by the immediate and concerted movements of the governors of the State of Illinois and of the Territory of Michigan, and competent levies of militia, under their authority, with a corps of 700 men of United States troops, under the command of General Atkinson, who, at the call of Governor Cass, immediately repaired to the scene of danger from their station at St. Louis. Their presence dispelled the alarms of our fellow-citizens on those borders, and overawed the hostile purposes of the Indians. The perpetrators of the murders were surrendered to the authority and operation of our laws, and every appearance of purposed hostility from those Indian tribes has subsided.

Although the present organization of the Army and the administration of its various branches of service are, upon the whole, satisfactory, they are yet susceptible of much improvement in particulars, some of which have been heretofore submitted to the consideration of Congress, and others are now first presented in the report of the Secretary of War.

The expediency of providing for additional numbers of officers in the two corps of engineers will in some degree depend upon the number and extent of the objects of national importance upon which Congress may think it proper that surveys should be made conformably to the act of the 30th of April, 1824. 'Of the surveys which before the

last session of Congress had been made under the authority of that act, reports were made-

1. Of the Board of Internal Improvement, on the Chesapeake and Ohio Canal.

2. On the continuation of the national road from Cumberland to the tide waters within the district of Columbia.

3. On the continuation of the national road from Canton to Zanesville.

4. On the location of the national road from Zanesville to Columbus.

5. On the continuation of the same to the seat of government in Missouri.

6. On a post-road from Baltimore to Philadelphia.

7. Of a survey of Kennebec River (in part).

8. On a national road from Washington to Buffalo.

9. On the survey of Saugatuck Harbor and River.

10. On a canal from Lake Pontchartrain to the Mississippi River.

11. On surveys at Edgartown, Newburyport, and Hyannis Harbor.

12. On survey of La Plaisance Bay, in the Territory of Michigan.

And reports are now prepared and will be submitted to Congress-

On surveys of the peninsula of Florida, to ascertain the practicability of a canal to connect the waters of the Atlantic with the Gulf of Mexico across that peninsula; and also of

the country between the bays of Mobile and of Pensacola, with the view of connecting them together by a canal.

On surveys of a route for a canal to connect the waters of James and Great Kenhawa rivers.

On the survey of the Swash, in Pamlico Sound, and that of Cape Fear, below the town of Wilmington, in North Carolina.

On the survey of the Muscle Shoals, in the Tennessee River, and for a route for a contemplated communication between the Hiwassee and Coosa rivers, in the State of Alabama.

Other reports of surveys upon objects pointed out by the several acts of Congress of the last and preceding sessions are in the progress of preparation, and most of them may be completed before the close of this session. All the officers of both corps of engineers, with several other persons duly qualified, have been constantly employed upon these services from the passage of the act of 30th April, 1824, to this time. Were no other advantage to accrue to the country from their labors than the fund of topographical knowledge which they have collected and communicated, that alone would have been a profit to the Union more than adequate to all the expenditures which have been devoted to the object; but the appropriations for the repair and continuation of the Cumberland road, for the construction of various other roads, for the removal of obstructions from the rivers and harbors, for the erection of light-houses, beacons, piers, and buoys, and for the completion of canals undertaken by individual associations, but heeding the assistance of means and resources more comprehensive than individual enterprise can command, may be considered rather as treasures laid up from the contributions of the present age for the benefit of posterity than as unrequited applications of the accruing revenues of the nation. To such

objects of permanent improvement to the condition of the country, of real addition to the wealth as well as to the comfort of the people by whose authority and resources they have been effected, from three to four millions of the annual income of the nation have, by laws enacted at the three most recent sessions of Congress, been applied, without intrenching upon the necessities of the Treasury, without adding a dollar to the taxes or debts of the community, without suspending even the steady and regular discharge of the debts contracted in former days, which within the same three years have been diminished by the amount of nearly \$16,000,000.

The same observations are in a great degree applicable to the appropriations made for fortifications upon the coasts and harbors of the United States, for the maintenance of the Military Academy at West Point, and for the various objects under the superintendence of the Department of the Navy. The report from the Secretary of the Navy and those from the subordinate branches of both the military departments exhibit to Congress in minute detail the present condition of the public establishments dependent upon them, the execution of the acts of Congress relating to them, and the views of the officers engaged in the several branches of the service concerning the improvements which may tend to their perfection. The fortification of the coasts and the gradual increase and improvement of the Navy are parts of a great system of national defense which has been upward of ten years in progress, and which for a series of years to come will continue to claim the constant and persevering protection and superintendence of the legislative authority. Among the measures which have emanated from these principles the act of the last session of Congress for the gradual improvement of the Navy holds a conspicuous place. The collection of timber for the future construction of vessels of war, the preservation and reproduction of the species of timber peculiarly adapted to that purpose, the

construction of dry docks for the use of the Navy, the erection of a marine railway for the repair of the public ships, and the improvement of the navy-yards for the preservation of the public property deposited in them have all received from the Executive the attention required by that act, and will continue to receive it, steadily proceeding toward the execution of all its purposes. The establishment of a naval academy, furnishing the means of theoretic instruction to the youths who devote their lives to the service of their country upon the ocean, still solicits the sanction of the Legislature. Practical seamanship and the art of navigation may be acquired on the cruises of the squadrons which from time to time are dispatched to distant seas, but a competent knowledge even of the art of shipbuilding, the higher mathematics, and astronomy; the literature which can place our officers on a level of polished education with the officers of other maritime nations; the knowledge of the laws, municipal and national, which in their intercourse with foreign states and their governments are continually called into operation, and, above all, that acquaintance with the principles of honor and justice, with the higher obligations of morals and of general laws, human and divine, which constitutes the great distinction between the warrior-patriot and the licensed robber and pirate-these can be systematically taught and eminently acquired only in a permanent school, stationed upon the shore and provided with the teachers, the instruments, and the books conversant with and adapted to the communication of the principles of these respective sciences to the youthful and inquiring mind.

The report from the Postmaster-General exhibits the condition of that Department as highly satisfactory for the present and still more promising for the future. Its receipts for the year ending the 1st of July last amounted to \$1,473,551, and exceeded its expenditures by upward of \$100,000. It can not be an oversanguine estimate to predict

that in less than ten years, of which one-half have elapsed, the receipts will have been more than doubled. In the meantime a reduced expenditure upon established routes has kept pace with increased facilities of public accommodation and additional services have been obtained at reduced rates of compensation. Within the last year the transportation of the mail in stages has been greatly augmented. The number of post-offices has been increased to 7,000, and it may be anticipated that while the facilities of intercourse between fellow-citizens in person or by correspondence will soon be carried to the door of every villager in the Union, a yearly surplus of revenue will accrue which may be applied as the wisdom of Congress under the exercise of their constitutional powers may devise for the further establishment and improvement of the public roads, or by adding still further to the facilities in the transportation of the mails. Of the indications of the prosperous condition of our country, none can be more pleasing than those presented by the multiplying relations of personal and intimate intercourse between the citizens of the Union dwelling at the remotest distances from each other.

Among the subjects which have heretofore occupied the earnest solicitude and attention of Congress is the management and disposal of that portion of the property of the nation which consists of the public lands. The acquisition of them, made at the expense of the whole Union, not only in treasure but in blood, marks a right of property in them equally extensive. By the report and statements from the General Land Office now communicated it appears that under the present Government of the United States a sum little short of \$33,000,000 has been paid from the common Treasury for that portion of this property which has been purchased from France and Spain, and for the extinction of the aboriginal titles. The amount of lands acquired is near 260,000,000 acres, of which on the

1st of January, 1826, about 139,000,000 acres had been surveyed, and little more than 19,000,000 acres had been sold. The amount paid into the Treasury by the purchasers of the public lands sold is not yet equal to the sums paid for the whole, but leaves a small balance to be refunded. The proceeds of the sales of the lands have long been pledged to the creditors of the nation, a pledge from which we have reason to hope that they will in a very few years be redeemed.

The system upon which this great national interest has been managed was the result of long, anxious, and persevering deliberation. Matured and modified by the progress of our population and the lessons of experience, it has been hitherto eminently successful. More than nine-tenths of the lands still remain the common property of the Union, the appropriation and disposal of which are sacred trusts in the hands of Congress. Of the lands sold, a considerable part were conveyed under extended credits, which in the vicissitudes and fluctuations in the value of lands and of their produce became oppressively burdensome to the purchasers. It can never be the interest or the policy of the nation to wring from its own citizens the reasonable profits of their industry and enterprise by holding them to the rigorous import of disastrous engagements. In March, 1821, a debt of \$22,000,000, due by purchasers of the public lands, had accumulated, which they were unable to pay. An act of Congress of the 2d March, 1821, came to their relief, and has been succeeded by others, the latest being the act of the 4th of May, 1826, the indulgent provisions of which expired on the 4th July last. The effect of these laws has been to reduce the debt from the purchasers to a remaining balance of about \$4,300,000 due, more than three-fifths of which are for lands within the State of Alabama. I recommend to Congress the revival and continuance for a further term of the beneficent accommodations to the public debtors of that

statute, and submit to their consideration, in the same spirit of equity, the remission, under proper discriminations, of the forfeitures of partial payments on account of purchases of the public lands, so far as to allow of their application to other payments.

There are various other subjects of deep interest to the whole Union which have heretofore been recommended to the consideration of Congress, as well by my predecessors as, under the impression of the duties devolving upon me, by myself. Among these are the debt, rather of justice than gratitude, to the surviving warriors of the Revolutionary war; the extension of the judicial administration of the Federal Government to those extensive and important members of the Union which, having risen into existence since the organization of the present judiciary establishment, now constitute at least one-third of its territory, power, and population; the formation of a more effective and uniform system for the government of the militia, and the amelioration in some form or modification of the diversified and often oppressive codes relating to insolvency. Amidst the multiplicity of topics of great national concernment which may recommend themselves to the calm and patriotic deliberations of the Legislature, it may suffice to say that on these and all other measures which may receive their sanction my hearty cooperation will be given, conformably to the duties enjoined upon me and under the sense of all the obligations prescribed by the Constitution.

John Quincy Adams.

SPECIAL MESSAGES.

Washington,
December 6, 1827.

To the Senate of the United States:

In compliance with a resolution of the Senate of the 19th of February last, requesting a statement of all the expenses annually incurred in carrying into effect the act of March 2, 1819, for prohibiting the slave trade, including the cost of keeping the ships of war on the coast of Africa and all the incidental expenses growing out of the operation of that act, I transmit a report from the Secretary of the Navy, with the statement, so far as it can be made, required by the resolution.

John Quincy Adams.

Washington,
December 11, 1827.

To the Senate of the United States:

I transmit to the Senate-

1. A convention between the United States and Great Britain for the continuance in force of the convention of 3d July, 1815, after the 20th October, 1828, the term at which it would otherwise expire.
2. A convention between the same parties for continuing in force after the 20th October, 1828, the provisions of the

third article of the convention of 20th October, 1818, in relation to the territories westward of the Rocky Mountains.

3. A convention between the same parties for the reference to a friendly sovereign of the points of difference between them relating to the northeastern boundary of the United States.

The first and second of these conventions were signed by the plenipotentiaries of the respective parties at London on the 6th day of August and the third on the 29th day of September last.

Copies of them are also communicated, together with the correspondence and documents illustrative of their negotiation.

I request the advice of the Senate with regard to the ratification of each of them.

John Quincy Adams.

Washington,
December 11, 1827

To the Senate of the United States:

I transmit to the Senate, for their advice with regard to its ratification, a treaty of commerce and navigation between the United States and the Kingdom of Sweden and Norway, signed at Stockholm by the plenipotentiaries of the two Governments on the 4th day of July last.

A copy of the treaty, with a translation, and the instructions and correspondence relating to the negotiation are also communicated.

John Quincy Adams.

Washington,
December 12, 1827

To the Senate and House of Representatives of the United States:

I transmit herewith to Congress copies of a report of the surveyor-general of lands northwest of Ohio, with a plat of the northern boundary line of the State of Indiana, surveyed in conformity to the act of Congress to authorize the President of the United States to ascertain and designate the northern boundary of the State of Indiana, passed the 2d of March, 1827.

John Quincy Adams.

Washington,
December 24, 1827

To the Senate of the United States:

In compliance with a resolution of the Senate of the 14th instant, requesting a communication of the instructions to the American minister at London for the negotiation of the convention of the 13th of November, 1826, with Great Britain, for indemnity to the claimants under the first article of the treaty of Ghent, together with the letters of the minister accompanying and explaining the said convention, I transmit herewith a report from the Secretary of State, together with the documents desired.

John Quincy Adams.

Washington,
January 4, 1828

To the Senate of the United States:

In compliance with a resolution of the Senate of the 19th of last month, I communicate herewith a report from the Secretary of State, with copies of the correspondence with the British Government relating to the establishment of light-houses, light-vessels, buoys, and other improvements to the navigation within their jurisdiction, opposite to the coast of Florida, referred to in the resolution,

John Quincy Adams.

Washington,
January 7, 1828.

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 17th of last month, I transmit to the House a report from the Secretary of State and the correspondence with the Government of Great Britain relative to the free navigation of the river St. Lawrence.

John Quincy Adams.

Washington,
January 9, 1828.

To the Senate of the United States:

In compliance with a resolution of the Senate of the 7th instant, I transmit herewith Mitchell's map and the map marked A, [\[013\]](#) as requested by the resolution, desiring that when the Senate shall have no further use for them they may be returned.

John Quincy Adams.

Washington,

January 15, 1828.

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 2d instant, requesting information respecting the recovery of debts and property in the Mexican States from persons absconding from the United States, and also respecting the boundary between the State of Louisiana and the Province of Texas, I now transmit a report from the Secretary of State on the subject-matter of the resolution.

John Quincy Adams.

Washington,
January 22, 1828.

To the Senate of the United States:

I transmit to the Senate, for their consideration and advice, articles of agreement signed at the Creek Agency on the 15th of November last by Thomas L. McKenney and John Crowell in behalf of the United States and by the Little Prince and other chiefs and headmen of the Creek Nation, with a supplementary article concluded by the said John Crowell with the chiefs and headmen of the nation in general council convened on the 3d instant, embracing a cession by the Creek Nation of all the remnant of their lands within the State of Georgia. Documents connected with the negotiation of the treaty and the instructions under which it was effected are also communicated to the Senate.

John Quincy Adams.

Washington,
January 22, 1828.

To the Senate and House of Representatives of the United States:

By the report of the Secretary of War and the documents from that Department exhibited to Congress at the commencement of their present session they were advised of the measures taken for carrying into execution the act of 4th May, 1826, to authorize the President of the United States to run and mark a line dividing the Territory of Florida from the State of Georgia, and of their unsuccessful result. I now transmit to Congress copies of communications received from the governor of Georgia relating to that subject.

John Quincy Adams.

Washington,
January 23, 1828.

To the Senate of the United States:

A resolution of the Senate of the 9th instant requested information relative to the trade between the United States and the colonies of France. A report from the Secretary of State, with a translation of the ordinance of the King of France of the 5th of February, 1826, is herewith transmitted, containing the information desired by the resolution.

John Quincy Adams.

Washington,
January 28, 1828.

To the Senate of the United States:

I transmit to the Senate-

1. A treaty concluded at the Butte des Morts, on Fox River, in the Territory of Michigan, on 11th of August, 1827, between Lewis Cass and Thomas L. McKenney, commissioners of the United States, and the chiefs and headmen of the Chippewa, Menomonie, and Winnebago tribes of Indians.

2. A treaty concluded at St. Joseph, in the Territory of Michigan, on the 19th of September, 1827, between Lewis Cass, commissioner of the United States, and the chiefs and warriors of the Potawatamie tribe of Indians.

Upon which treaties I request the advice of the Senate. The instructions and other documents relating to the negotiation of them are here-with communicated.

John Quincy Adams.

Washington,
January 29.

To the House of Representatives of the United States:

A report from the Secretary of State, with copies of a recent correspondence between the chargé d'affaires from Brazil and him on the subjects of discussion between this Government and that of Brazil,[\[014\]](#) is transmitted to the House of Representatives, in compliance with a resolution of the House of the 2d instant.

John Quincy Adams.

Washington,
February 6, 1828.

To the Senate and House of Representatives of the United States:

I communicate herewith to Congress copies of a treaty of commerce and navigation between the United States and His Majesty the King of Sweden and Norway, concluded at Stockholm on the 4th of July, 1827, and the ratifications of which were exchanged on the 18th ultimo at this city.

John Quincy Adams.

Washington,
February 14, 1828

To the Senate of the United States:

In compliance with a resolution of the Senate of the nth instant, requesting copies of the instructions to Andrew Ellicott, commissioner for running the line between the United States and Spain, and of any journal or report of the commissioners, I communicate herewith a report from the Secretary of State, with the documents requested, so far as they are found in the files of that Department.

John Quincy Adams.

Washington,
February 21, 1828

To the Senate and House of Representatives of the United States:

In transmitting to Congress copies of a communication received from the governor of Pennsylvania, with certain resolutions of the legislature of that Commonwealth, relating to the Cumberland road, I deem it my duty to recommend to the consideration of Congress an adequate provision for the permanent preservation and repair of that great national work.

John Quincy Adams.

Washington,
March 3, 1828.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report from the Secretary of State, with documents, containing the instructions of the Government of the United States to Thomas Pinckney under which was negotiated the treaty of San Lorenzo el Real, and relating to the boundary line between the United States and the dominions, at that time, of Spain as requested by a resolution of the House of the 18th ultimo.

John Quincy Adams.

Washington,
March 3, 1828.

To the Senate of the United States:

In compliance with a resolution of the Senate of the 3d of January last, requesting the communication of information in my possession relative to alleged aggression on the rights of citizens of the United States by persons claiming authority under the government of the Province of New Brunswick, I communicate a report from the Secretary of State, with a copy of that of the special agent mentioned in my message at the commencement of the present session of Congress as having been sent to visit the spot where the cause of complaint had occurred to ascertain the state of the facts, and the result of whose inquiries I then promised to communicate to Congress when it should be received.

The Senate are requested to receive this communication as the fulfillment of that engagement; and in making it I deem it proper to notice with just acknowledgment the

liberality with which the minister of His Britannic Majesty residing here and the government of the Province of New Brunswick have furnished the agent of the United States with every facility for the attainment of the information which it was the object of his mission to procure.

Considering the exercise of exclusive territorial jurisdiction upon the grounds in controversy by the government of New Brunswick in the arrest and imprisonment of John Baker as incompatible with the mutual understanding existing between the Governments of the United States and of Great Britain on this subject, a demand has been addressed to the provincial authorities through the minister of Great Britain for the release of that individual from prison, and of indemnity to him for his detention'. In doing this it has not been intended to maintain the regularity of his own proceedings or of those with whom he was associated, to which they were not authorized by any sovereign authority of this country.

The documents appended to the report of the agent being original papers belonging to the files of the Department of State, a return of them is requested when the Senate shall have no further use for them.

John Quincy Adams.

Washington,
March 7, 1828.

To the Senate of the United States:

The resolution of the Senate of the 28th ultimo, requesting me to cause to be laid before the Senate all papers which might be in the Department of War relating to the treaty concluded at the Butte des Morts, on Fox River, between Lewis Cass and Thomas L. McKenney, commissioners on the part of the United States, and the

Chippewa, Menomonie, and Winnebago tribes of Indians, having been referred to the Secretary of War, the report of that officer thereon is herewith inclosed. The papers therein referred to were all transmitted to the Senate with the treaty. Before that event, however, a petition and several other papers had been addressed directly to me, in behalf of certain Indians originally and in part still residing within the State of New York, objecting to the ratification of the treaty, as affecting injuriously their rights and interests. The treaty was itself withheld from the Senate until it was understood at the War Department and by me that by the consent of the persons representing the New York Indians their objections were withdrawn, as by one of them, the Reverend Eleazer Williams, I was personally assured. Those papers, however, addressed directly to me, and which have not been upon the files of the War Department, are now transmitted to the Senate.

John Quincy Adams.

Washington,
March 14, 1828.

To the Senate of the United States:

I transmit to the Senate, for their consideration and advice, a treaty concluded at the Wyandot village, near the Wabash, in the State of Indiana, between John Tipton, commissioner on the part of the United States, and the chiefs, headmen, and warriors of the Eel River or Thorntown party of Miami Indians, on the nth day of February last.

A letter from the commissioner to the Secretary of War, with a copy of the journal of the proceedings which led to the conclusion of the treaty, are communicated with it to the Senate.

John Quincy Adams.

Washington,
March 15, 1828.

To the House of Representatives of the United States:

In compliance with a resolution of the House of the 21st ultimo, requesting me to lay before the House correspondence not heretofore communicated between the Government of the United States and that of Great Britain on the subject of the claims of the two Governments to the territory westward of the Rocky Mountains, I transmit herewith a report of the Secretary of State, with the documents requested by the resolution.

John Quincy Adams.

Washington,
March 21, 1828.

To the Senate and House of Representatives of the United States:

I transmit to Congress copies of a treaty concluded on the 15th day of November, 1827, by commissioners of the United States and the chiefs and headmen of the Creek Nation of Indians, which was duly ratified on the 4th instant.

John Quincy Adams.

Washington,
March 22, 1828.

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 3d instant, touching the formation of a new government by the Cherokee tribe of Indians within the States of North Carolina, Georgia, Tennessee, and Alabama, and requesting copies of certain correspondence relating thereto, I transmit to the House of Representatives a report from the Secretary of War, together with the documents desired by the resolution.

John Quincy Adams.

Washington,
March 25, 1828.

To the House of Representatives of the United States:

I transmit herewith a report from the Secretary of State, prepared in compliance with the resolution of the House of Representatives of the 25th of February last, requesting copies of instructions and correspondence relating to the settlement of the boundary lines of the United States, or any one of them, under the Government of the Confederate States and by the definitive treaty of peace of 3d September, 1783, with Great Britain.

John Quincy Adams.

Washington,
April 8, 1828

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 22d ultimo, on the subject of the treaty with the Creek Nation of Indians of the 15th November last, I transmit herewith a report from the Secretary of War, with the documents, containing the information desired by the resolution.

John Quincy Adams.

Washington,
April 15, 1828.

To the House of Representatives of the United States:

In compliance with the resolution of the House of the 9th instant, requesting copies of the charges preferred against the agent of the United States for the Creek tribe of Indians since the 1st of January, 1826, and of proceedings had thereon, I transmit herewith a report from the Secretary of War, with documents, containing the information desired by the resolution.

John Quincy Adams.

Washington,
April 17, 1828.

To the Senate and House of Representatives of the United States:

In conformity with the practice of all my predecessors, I have during my service in the office of President transmitted to the two Houses of Congress from time to time, by the same private secretary, such messages as a proper discharge of my constitutional duty appeared to me to require. On Tuesday last he was charged with the delivery of a message to each House. Having presented that which was intended for the House of Representatives, whilst he was passing, within the Capitol, from their Hall to the Chamber of the Senate, for the purpose of delivering the other message, he was waylaid and assaulted in the Rotunda by a person, in the presence of a member of the House, who interposed and separated the parties.

I have thought it my duty to communicate this occurrence to Congress, to whose wisdom it belongs to consider whether it is of a nature requiring from them any animadversion, and also whether any further laws or regulations are necessary to insure security in the official intercourse between the President and Congress, and to prevent disorders within the Capitol itself.

In the deliberations of Congress upon this subject it is neither expected nor desired that any consequence shall be attached to the private relation in which my secretary stands to me.

John Quincy Adams.

Washington,
April 21, 1828.

To the Senate of the United States:

I transmit to the Senate, for their consideration and advice, a treaty of limits between the United States of America and the United Mexican States, concluded by the plenipotentiaries of the two Governments on the 12th of January last. A copy of the treaty and the protocols of conference between the plenipotentiaries during the negotiation are inclosed with it.

John Quincy Adams.

Washington,
April 22, 1828.

To the House of Representatives of the United States:

A copy of the opinion of the Attorney-General, dated 17th May, 1826, upon the construction of the award of the Emperor of Russia under the treaty of Ghent and upon

certain questions propounded to him in relation thereto, subjoined to a report from the Secretary of State, are herewith communicated to the House, in compliance with their resolution of the 17th instant.

John Quincy Adams.

Washington,
April 24, 1828.

To the Senate of the United States:

I transmit to the Senate, for the exercise of their constitutional authority thereon, a treaty of amity, commerce, and navigation between the United States of America and the United Mexican States, signed by their respective plenipotentiaries on the 14th of February last, with a copy of the treaty and the protocols of conference during and subsequent to the negotiation.

John Quincy Adams.

Washington,
April 28, 1828.

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 9th instant, requesting a communication of the correspondence between this Government and that of Great Britain on the subject of the trade between the United States and the British colonial possessions in the West Indies and North America, not heretofore communicated, I transmit to the House a report from the Secretary of State, with the correspondence desired.

John Quincy Adams.

Washington,
April 30, 1828.

To the Senate and House of Representatives of the United States:

In the month of December last 121 African negroes were landed at Key West from a Spanish slave-trading vessel stranded within the jurisdiction of the United States while pursued by an armed schooner in His Britannic Majesty's service. The collector of the customs at Key West took possession of these persons, who were afterwards delivered over to the marshal of the Territory of East Florida, by whom they were conveyed to St. Augustine, where they still remain.

Believing that the circumstances under which they have been cast upon the compassion of the country are not embraced by the provisions of the act of Congress of 3d March, 1819, or of the other acts prohibiting the slave trade, I submit to the consideration of Congress the expediency of a supplementary act directing and authorizing such measures as may be necessary for removing them from the territory of the United States and for fulfilling toward them the obligations of humanity.

John Quincy Adams.

Washington,
May 1, 1828. To the Senate of the United States:

In compliance with a resolution of the Senate of the 17th ultimo, relating to the removal of the Indian agency from Fort Wayne, in the State of Indiana, I transmit a report from the Secretary of War, with the documents and information requested by the resolution.

John Quincy Adams.

Washington,
May 5, 1828.

To the Senate of the United States:

In compliance with a resolution of the Senate of the 30th ultimo, requesting information concerning any regulation of the Government of Brazil relative to the reduction of certain duties, I transmit herewith a report from the Secretary of State, exhibiting the information received at that Department on the subject.

John Quincy Adams.

Washington,
May 5, 1828.

To the Senate of the United States:

I communicate to the Senate, for their consideration and advice, a treaty of commerce and navigation between the United States and His Majesty the King of Prussia, signed on the 1st instant at this place by the Secretary of State and the chargé d'affaires of Prussia residing here. A copy of the treaty is also transmitted.

John Quincy Adams.

Washington,
May 9, 1828.

To the House of Representatives of the United States:

The report of the Secretary of War herewith transmitted, with the documents annexed, contains the information requested by a resolution of the 3d of April last, relating to

the payments made to the citizens of Georgia under the fourth article of the treaty with the Creek Nation of 8th February, 1821, and to the disallowances of certain claims exhibited under that treaty, and to the reasons for rejecting the same.

John Quincy Adams.

Washington,
May 12, 1828.

To the Senate of the United States:

I transmit to the Senate, for their consideration and advice, the articles of a convention concluded at this place on the 6th instant between the Secretary of War and the chiefs and headmen of the Cherokee Nation west of the Mississippi, duly authorized by their nation. A report from the Secretary of War, with certain documents, and a map illustrative of the convention are submitted with it to the Senate.

John Quincy Adams.

Washington,
May 16, 1828.

To the Senate and House of Representatives of the United States:

By a communication received from the chargé d'affaires of Prussia, a translation of which is herewith transmitted, it appears that in the ports of that Kingdom all discriminating duties so far as they affected the vessels of the United States and their cargoes have been abolished since the 15th of April, 1826. I recommend to the consideration of Congress a legislative provision whereby the reciprocal application of the same principle may be extended to Prussian vessels and

their cargoes which may have arrived in the ports of the United States from and after that day.

John Quincy Adams.

Washington,
May 19, 1828.

To the Senate and House of Representatives of the United States:

I transmit to Congress copies of three conventions concluded between the United States of America and His Majesty the King of the United Kingdom of Great Britain and Ireland, the ratifications of which were exchanged at London on the 2d of last month:

1. A convention concluded 6th August, 1827, for continuing in force the provisions of the convention of 3d July, 1815.
2. A convention concluded 6th August, 1827, for continuing in force the provisions of the third article of the convention of 20th October, 1818.
3. A convention concluded 29th September, 1827, for carrying into effect the provisions of the fifth article of the treaty of Ghent in relation to the northeastern boundary of the United States.

John Quincy Adams.

Washington,
May 21, 1828.

To the House of Representatives of the United States:

I transmit to the House a report^[015] from the Secretary of State, with a copy of the note of the minister of the United States to Spain dated 20th January, 1826, requested by a resolution of the House of the 19th instant.

John Quincy Adams.

Washington,
May 22, 1828.

To the House of Representatives of the United States:

The inclosed report from the Secretary of State is accompanied by copies of the correspondence between this Government and the minister of His Britannic Majesty residing here relating to the arrest and imprisonment of John Baker,^[016] requested by a recent resolution of the House.

John Quincy Adams.

Washington,
May 22, 1828.

To the Senate and House of Representatives of the United States:

I transmit to Congress copies of a treaty between the United States of America and the Eel River or Thornton party of Miami Indians, concluded on the nth of February last at the Wyandot village, near the Wabash, and duly ratified on the 7th instant.

John Quincy Adams.

Washington,
May 23, 1828.

To the Senate of the United States:

In compliance with a resolution of the Senate of the 8th instant, relating to the accounts and official conduct of Thomas A. Smith, receiver of public moneys at Franklin, Mo., I transmit herewith a report from the Secretary of the Treasury, with documents, containing the information desired by the resolution.

John Quincy Adams.

Washington,
May 23, 1828.

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 30th ultimo, I transmit herewith a report from the Secretary of State, with copies of the correspondence^{[\[017\]](#)} with the Brazilian Government, and shewing the measures taken by the Government of the United States in relation to the several topics noticed in the resolution.

John Quincy Adams.

PROCLAMATION.

By the President of the United States of America.

A PROCLAMATION.

Whereas by an act of the Congress of the United States of the 7th of January, 1824, entitled "An act concerning discriminating duties of tonnage and impost," it is provided that upon satisfactory evidence being given to the President of the United States by the government of any foreign nation that no discriminating duties of tonnage or impost are imposed or levied within the ports of the said nation upon vessels belonging wholly to citizens of the United States or upon merchandise the produce or manufacture thereof imported in the same, the President is thereby authorized to issue his proclamation declaring that the foreign discriminating duties of tonnage and impost within the United States are and shall be suspended and discontinued so far as respects the vessels of the said nation and the merchandise of its produce or manufacture imported into the United States in the same, the said suspension to take effect from the time of such notification being given to the President of the United States, and to continue so long as the reciprocal exemption of vessels belonging to citizens of the United States and merchandise as aforesaid thereon laden shall be continued, and no longer; and

Whereas satisfactory evidence has been received by me from His Britannic Majesty, as King of Hanover, through the Right Honorable Charles Richard Vaughan, his envoy extraordinary and minister plenipotentiary, that vessels

wholly belonging to citizens of the United States or merchandise the produce or manufacture thereof imported in such vessels are not nor shall be on their entering any Hanoverian port subject to the payment of higher duties of tonnage or impost than are levied on Hanoverian ships or merchandise the produce or manufacture of the United States imported in such vessels:

Now, therefore, I, John Quincy Adams, President of the United States of America, do hereby declare and proclaim that so much of the several acts imposing duties on the tonnage of ships and vessels and on goods, wares, and merchandise imported into the United States as imposed a discriminating duty of tonnage between the vessels of the Kingdom of Hanover and vessels of the United States and between goods imported into the United States in vessels of the Kingdom of Hanover and vessels of the United States are suspended and discontinued so far as the same respect the produce or manufacture of the said Kingdom of Hanover, the said suspension to take effect this day and to continue henceforward so long as the reciprocal exemption of the vessels of the United States and of the merchandise laden therein as aforesaid shall be continued in the ports of the Kingdom of Hanover.

Given under my hand, at the city of Washington, this 1st day of July, A. D. 1828, and the fifty-second year of the Independence of the United States.

John Quincy Adams.

By the President:

H. Clay,
Secretary of State.

EXECUTIVE ORDER.

Department of War,
February 28, 1828.

The Secretary of War, by direction of the President of the United States, announces to the Army the painful intelligence of the decease (the 24th of February) of Major-General Brown.

To say that he was one of the men who have rendered most important services to his country would fall far short of the tribute due to his character. Uniting with the most unaffected simplicity the highest degree of personal valor and of intellectual energy, he stands preeminent before the world and for after ages in that band of heroic spirits who upon the ocean and the land formed and sustained during the second war with Great Britain the martial reputation of their country. To this high and honorable purpose General Brown may be truly said to have sacrificed his life, for the disease which abridged his days and has terminated his career at a period scarcely beyond the meridian of manhood undoubtedly originated in the hardships of his campaigns on the Canada frontier, and in that glorious wound which, though desperate, could not remove him from the field of battle till it was won.

Quick to perceive, sagacious to anticipate, prompt to decide, and daring in execution, he was born with the qualities which constitute a great commander. His military *coup d'oeil*. his intuitive penetration, his knowledge of men and his capacity to control them were known to all his companions in arms, and commanded their respect; while the gentleness of his disposition, the courtesy of his

deportment, his scrupulous regard to their rights, his constant attention to their wants, and his affectionate attachment to their persons universally won their hearts and bound them to him as a father.

Calm and collected in the presence of the enemy, he was withal tender of human life; in the hour of battle more sparing of the blood of the soldier than his own. In the hour of victory the vanquished enemy found in him a humane and compassionate friend. Not one drop of blood shed in wantonness or cruelty sullies the purity of his fame. Defeat he was never called to endure, but in the crisis of difficulty and danger he displayed untiring patience and fortitude not to be overcome.

Such was the great and accomplished captain whose loss the Army has now, in common with their fellow-citizens of all classes, to deplore. While indulging the kindly impulses of nature and yielding the tribute of a tear upon his grave, let it not be permitted to close upon his bright example as it must upon his mortal remains. Let him be more nobly sepulchered in the hearts of his fellow-soldiers, and his imperishable monument be found in their endeavors to emulate his virtues.

The officers of the Army will wear the badge of mourning for six months on the left arm and hilt of the sword. Guns will be fired at each military post at intervals of thirty minutes from the rising to the setting of the sun on the day succeeding the arrival of this order, during which the National flag will be suspended at half-mast.

James Barbour.

FOURTH ANNUAL MESSAGE.

Washington,
December 2, 1828.

Fellow-Citizens of the Senate and of the House of Representatives:

If the enjoyment in profusion of the bounties of Providence forms a suitable subject of mutual gratulation and grateful acknowledgment, we are admonished at this return of the season when the representatives of the nation are assembled to deliberate upon their concerns to offer up the tribute of fervent and grateful hearts for the never-failing mercies of Him who ruleth over all. He has again favored us with healthful seasons and abundant harvests; He has sustained us in peace with foreign countries and in tranquillity within our borders; He has preserved us in the quiet and undisturbed possession of civil and religious liberty; He has crowned the year with His goodness, imposing on us no other conditions than of improving for our own happiness the blessings bestowed by His hands, and, in the fruition of all His favors, of devoting the faculties with which we have been endowed by Him to His glory and to our own temporal and eternal welfare.

In the relations of our Federal Union with our brethren of the human race the changes which have occurred since the close of your last session have generally tended to the preservation of peace and to the cultivation of harmony. Before your last separation a war had unhappily been kindled between the Empire of Russia, one of those with which our intercourse has been no other than a constant exchange of good offices, and that of the Ottoman Porte, a

nation from which geographical distance, religious opinions and maxims of government on their part little suited to the formation of those bonds of mutual benevolence which result from the benefits of commerce had kept us in a state, perhaps too much prolonged, of coldness and alienation. The extensive, fertile, and populous dominions of the Sultan belong rather to the Asiatic than the European division of the human family. They enter but partially into the system of Europe, nor have their wars with Russia and Austria, the European States upon which they border, for more than a century past disturbed the pacific relations of those States with the other great powers of Europe. Neither France nor Prussia nor Great Britain has ever taken part in them, nor is it to be expected that they will at this time. The declaration of war by Russia has received the approbation or acquiescence of her allies, and we may indulge the hope that its progress and termination will be signalized by the moderation and forbearance no less than by the energy of the Emperor Nicholas, and that it will afford the opportunity for such collateral agency in behalf of the suffering Greeks as will secure to them ultimately the triumph of humanity and of freedom.

The state of our particular relations with France has scarcely varied in the course of the present year. The commercial intercourse between the two countries has continued to increase for the mutual benefit of both. The claims of indemnity to numbers of our fellow-citizens for depredations upon their property, heretofore committed during the revolutionary governments, remain unadjusted, and still form the subject of earnest representation and remonstrance. Recent advices from the minister of the United States at Paris encourage the expectation that the appeal to the justice of the French Government will ere long receive a favorable consideration.

The last friendly expedient has been resorted to for the decision of the controversy with Great Britain relating to

the northeastern boundary of the United States. By an agreement with the British Government, carrying into effect the provisions of the fifth article of the treaty of Ghent, and the convention of 29th September, 1827, His Majesty the King of the Netherlands has by common consent been selected as the umpire between the parties. The proposal to him to accept the designation for the performance of this friendly office will be made at an early day, and the United States, relying upon the justice of their cause, will cheerfully commit the arbitrament of it to a prince equally distinguished for the independence of his spirit, his indefatigable assiduity to the duties of his station, and his inflexible personal probity.

Our commercial relations with Great Britain will deserve the serious consideration of Congress and the exercise of a conciliatory and forbearing spirit in the policy of both Governments. The state of them has been materially changed by the act of Congress, passed at their last session, in alteration of the several acts imposing duties on imports, and by acts of more recent date of the British Parliament. The effect of the interdiction of direct trade, commenced by Great Britain and reciprocated by the United States, has been, as was to be foreseen, only to substitute different channels for an exchange of commodities indispensable to the colonies and profitable to a numerous class of our fellow-citizens. The exports, the revenue, the navigation of the United States have suffered no diminution by our exclusion from direct access to the British colonies. The colonies pay more dearly for the necessaries of life which their Government burdens with the charges of double voyages, freight, insurance, and commission, and the profits of our exports are somewhat impaired and more injuriously transferred from one portion of our citizens to another. The resumption of this old and otherwise exploded system of colonial exclusion has not secured to the shipping interest of Great Britain the relief which, at the expense of the

distant colonies and of the United States, it was expected to afford. Other measures have been resorted to more pointedly bearing upon the navigation of the United States, and which, unless modified by the construction given to the recent acts of Parliament, will be manifestly incompatible with the positive stipulations of the commercial convention existing between the two countries. That convention, however, may be terminated with twelve months' notice, at the option of either party.

A treaty of amity, navigation, and commerce between the United States and His Majesty the Emperor of Austria, King of Hungary and Bohemia, has been prepared for signature by the Secretary of State and by the Baron de Lederer, intrusted with full powers of the Austrian Government. Independently of the new and friendly relations which may be thus commenced with one of the most eminent and powerful nations of the earth, the occasion has been taken in it, as in other recent treaties concluded by the United States, to extend those principles of liberal intercourse and of fair reciprocity which intertwine with the exchanges of commerce the principles of justice and the feelings of mutual benevolence. This system, first proclaimed to the world in the first commercial treaty ever concluded by the United States-that of 6th February, 1778, with France-has been invariably the cherished policy of our Union. It is by treaties of commerce alone that it can be made ultimately to prevail as the established system of all civilized nations. With this principle our fathers extended the hand of friendship to every nation of the globe, and to this policy our country has ever since adhered. Whatever of regulation in our laws has ever been adopted unfavorable to the interest of any foreign nation has been essentially defensive and counteracting to similar regulations of theirs operating against us.

Immediately after the close of the War of Independence commissioners were appointed by the Congress of the

Confederation authorized to conclude treaties with every nation of Europe disposed to adopt them. Before the wars of the French Revolution such treaties had been consummated with the United Netherlands, Sweden, and Prussia. During those wars treaties with Great Britain and Spain had been effected, and those with Prussia and France renewed. In all these some concessions to the liberal principles of intercourse proposed by the United States had been obtained; but as in all the negotiations they came occasionally in collision with previous internal regulations or exclusive and excluding compacts of monopoly with which the other parties had been trammelled, the advances made in them toward the freedom of trade were partial and imperfect. Colonial establishments, chartered companies, and shipbuilding influence pervaded and encumbered the legislation of all the great commercial states; and the United States, in offering free trade and equal privilege to all, were compelled to acquiesce in many exceptions with each of the parties to their treaties, accommodated to their existing laws and anterior engagements.

The colonial system by which this whole hemisphere was bound has fallen into ruins, totally abolished by revolutions converting colonies into independent nations throughout the two American continents, excepting a portion of territory chiefly at the northern extremity of our own, and confined to the remnants of dominion retained by Great Britain over the insular archipelago, geographically the appendages of our part of the globe. With all the rest we have free trade, even with the insular colonies of all the European nations, except Great Britain. Her Government also had manifested approaches to the adoption of a free and liberal intercourse between her colonies and other nations, though by a sudden and scarcely explained revulsion the spirit of exclusion has been revived for operation upon the United States alone.

The conclusion of our last treaty of peace with Great Britain was shortly afterwards followed by a commercial

convention, placing the direct intercourse between the two countries upon a footing of more equal reciprocity than had ever before been admitted. The same principle has since been much further extended by treaties with France, Sweden, Denmark, the Hanseatic cities, Prussia, in Europe, and with the Republics of Colombia and of Central America, in this hemisphere. The mutual abolition of discriminating duties and charges upon the navigation and commercial intercourse between the parties is the general maxim which characterizes them all. There is reason to expect that it will at no distant period be adopted by other nations, both of Europe and America, and to hope that by its universal prevalence one of the fruitful sources of wars of commercial competition will be extinguished.

Among the nations upon whose Governments many of our fellow-citizens have had long-pending claims of indemnity for depredations upon their property during a period when the rights of neutral commerce were disregarded was that of Denmark. They were soon after the events occurred the subject of a special mission from the United States, at the close of which the assurance was given by His Danish Majesty that at a period of more tranquillity and of less distress they would be considered, examined, and decided upon in a spirit of determined purpose for the dispensation of justice. I have much pleasure in informing Congress that the fulfillment of this honorable promise is now in progress; that a small portion of the claims has already been settled to the satisfaction of the claimants, and that we have reason to hope that the remainder will shortly be placed in a train of equitable adjustment. This result has always been confidently expected, from the character of personal integrity and of benevolence which the Sovereign of the Danish dominions has through every vicissitude of fortune maintained.

The general aspect of the affairs of our highborn American nations of the south has been rather of

approaching than of settled tranquillity. Internal disturbances have been more frequent among them than their common friends would have desired. Our intercourse with all has continued to be that of friendship and of mutual good will. Treaties of commerce and of boundaries with the United Mexican States have been negotiated, but, from various successive obstacles, not yet brought to a final conclusion.

The civil war which unfortunately still prevails in the Republics of Central America has been unpropitious to the cultivation of our commercial relations with them; and the dissensions and revolutionary changes in the Republics of Colombia and of Peru have been seen with cordial regret by us, who would gladly contribute to the happiness of both. It is with great satisfaction, however, that we have witnessed the recent conclusion of a peace between the Governments of Buenos Ayres and of Brazil, and it is equally gratifying to observe that indemnity has been obtained for some of the injuries which our fellow-citizens had sustained in the latter of those countries. The rest are in a train of negotiation, which we hope may terminate to mutual satisfaction, and that it may be succeeded by a treaty of commerce and navigation, upon liberal principles, propitious to a great and growing commerce, already important to the interests of our country.

The condition and prospects of the revenue are more favorable than our most sanguine expectations had anticipated. The balance in the Treasury on the 1st of January last, exclusive of the moneys received under the convention of 13th of November, 1826, with Great Britain, was \$5,861,972.83. The receipts into the Treasury from the 1st of January to the 30th of September last, so far as they have been ascertained to form the basis of an estimate, amount to \$18,633,580.27, which, with the receipts of the present quarter, estimated at \$5,461,283.40, form an aggregate of receipts during the year of \$24,094,863.67.

The expenditures of the year may probably amount to \$25,637,111.63, and leave in the Treasury on the 1st of January next the sum of \$5,125,638.14.

The receipts of the present year have amounted to near two millions more than was anticipated at the commencement of the last session of Congress.

The amount of duties secured on importations from the 1st of January to the 30th of September was about \$22,997,000, and that of the estimated accruing revenue is five millions, forming an aggregate for the year of near twenty-eight millions. This is one million more than the estimate made last December for the accruing revenue of the present year, which, with allowances for drawbacks and contingent deficiencies, was expected to produce an actual revenue of \$22,300,000. Had these only been realized the expenditures of the year would have been also proportionally reduced, for of these twenty-four millions received upward of nine millions have been applied to the extinction of public debt, bearing an interest of 6 per cent a year, and of course reducing the burden of interest annually payable in future by the amount of more than half a million. The payments on account of interest during the current year exceed \$3,000,000, presenting an aggregate of more than twelve millions applied during the year to the discharge of the public debt, the whole of which remaining due on the 1st of January next will amount only to \$58,362,135.78.

That the revenue of the ensuing year will not fall short of that received in the one now expiring there are indications which can scarcely prove deceptive. In our country an uniform experience of forty years has shown that whatever the tariff of duties upon articles imported from abroad has been, the amount of importations has always borne an average value nearly approaching to that of the exports, though occasionally differing in the balance, sometimes being more and sometimes less. It is, indeed, a general law

of prosperous commerce that the real value of exports should by a small, and only a small, balance exceed that of imports, that balance being a permanent addition to the wealth of the nation. The extent of the prosperous commerce of the nation must be regulated by the amount of its exports, and an important addition to the value of these will draw after it a corresponding increase of importations. It has happened in the vicissitudes of the seasons that the harvests of all Europe have in the late summer and autumn fallen short of their usual average. A relaxation of the interdict upon the importation of grain and flour from abroad has ensued, a propitious market has been opened to the granaries of our country, and a new prospect of reward presented to the labors of the husbandman, which for several years has been denied. This accession to the profits of agriculture in the middle and western portions of our Union is accidental and temporary. It may continue only for a single year. It may be, as has been often experienced in the revolutions of time, but the first of several scanty harvests in succession. We may consider it certain that for the approaching year it has added an item of large amount to the value of our exports and that it will produce a corresponding increase of importations. It may therefore confidently be foreseen that the revenue of 1829 will equal and probably exceed that of 1828, and will afford the means of extinguishing ten millions more of the principal of the public debt.

This new element of prosperity to that part of our agricultural industry which is occupied in producing the first article of human subsistence is of the most cheering character to the feelings of patriotism. Proceeding from a cause which humanity will view with concern, the sufferings of scarcity in distant lands, it yields a consolatory reflection that this scarcity is in no respect attributable to us; that it comes from the dispensation of Him who ordains all in wisdom and goodness, and who permits evil itself

only as an instrument of good; that, far from contributing to this scarcity, our agency will be applied only to the alleviation of its severity, and that in pouring forth from the abundance of our own garners the supplies which will partially restore plenty to those who are in heed we shall ourselves reduce our stores and add to the price of our own bread, so as in some degree to participate in the wants which it will be the good fortune of our country to relieve.

The great interests of an agricultural, commercial, and manufacturing nation are so linked in union together that no permanent cause of prosperity to one of them can operate without extending its influence to the others. All these interests are alike under the protecting power of the legislative authority, and the duties of the representative bodies are to conciliate them in harmony together. So far as the object of taxation is to raise a revenue for discharging the debts and defraying the expenses of the community, its operation should be adapted as much as possible to suit the burden with equal hand upon all in proportion with their ability of bearing it without oppression. But the legislation of one nation is sometimes intentionally made to bear heavily upon the interests of another. That legislation, adapted, as it is meant to be, to the special interests of its own people, will often press most unequally upon the several component interests of its neighbors. Thus the legislation of Great Britain, when, as has recently been avowed, adapted to the depression of a rival nation, will naturally abound with regulations of interdict upon the productions of the soil or industry of the other which come in competition with its own, and will present encouragement, perhaps even bounty, to the raw material of the other State which it can not produce itself, and which is essential for the use of its manufactures, competitors in the markets of the world with those of its commercial rival. Such is the state of the commercial legislation of Great Britain as it bears upon our interests. It excludes with

interdicting duties all importation (except in time of approaching famine) of the great staple of productions of our Middle and Western States; it proscribes with equal rigor the bulkier lumber and live stock of the same portion and also of the Northern and Eastern part of our Union. It refuses even the rice of the South unless aggravated with a charge of duty upon the Northern carrier who brings it to them. But the cotton, indispensable for their looms, they will receive almost duty free to weave it into a fabric for our own wear, to the destruction of our own manufactures, which they are enabled thus to undersell.

Is the self-protecting energy of this nation so helpless that there exists in the political institutions of our country no power to counteract the bias of this foreign legislation; that the growers of grain must submit to this exclusion from the foreign markets of their produce; that the shippers must dismantle their ships, the trade of the North stagnate at the wharves, and the manufacturers starve at their looms, while the whole people shall pay tribute to foreign industry to be clad in a foreign garb; that the Congress of the Union are impotent to restore the balance in favor of native industry destroyed by the statutes of another realm? More just and more generous sentiments will, I trust, prevail. If the tariff adopted at the last session of Congress shall be found by experience to bear oppressively upon the interests of any one section of the Union, it ought to be, and I can not doubt will be, so modified as to alleviate its burden. To the voice of just complaint from any portion of their constituents the representatives of the States and of the people will never turn away their ears. But so long as the duty of the foreign shall operate only as a bounty upon the domestic article; while the planter and the merchant and the shepherd and the husbandman shall be found thriving in their occupations under the duties imposed for the protection of domestic manufactures, they will not repine at the prosperity shared with themselves by their fellow-citizens of other

professions, nor denounce as violations of the Constitution the deliberate acts of Congress to shield from the wrongs of foreign laws the native industry of the Union. While the tariff of the last session of Congress was a subject of legislative deliberation it was foretold by some of its opposers that one of its necessary consequences would be to impair the revenue. It is yet too soon to pronounce with confidence that this prediction was erroneous. The obstruction of one avenue of trade not unfrequently opens an issue to another. The consequence of the tariff will be to increase the exportation and to diminish the importation of some specific articles; but by the general law of trade the increase of exportation of one article will be followed by an increased importation of others, the duties upon which will supply the deficiencies which the diminished importation would otherwise occasion. The effect of taxation upon revenue can seldom be foreseen with certainty. It must abide the test of experience. As yet no symptom? of diminution are perceptible in the receipts of the Treasury. As yet little addition of cost has even been experienced upon the articles burdened with heavier duties by the last tariff. The domestic manufacturer supplies the same or a kindred article at a diminished price, and the consumer pays the same tribute to the labor of his own countryman which he must otherwise have paid to foreign industry and toil.

The tariff of the last session was in its details not acceptable to the great interests of any portion of the Union, not even to the interest which it was specially intended to subserve. Its object was to balance the burdens upon native industry imposed by the operation of foreign laws, but not to aggravate the burdens of one section of the Union by the relief afforded to another. To the great principle sanctioned by that act-one of those upon which the Constitution itself was formed-I hope and trust the authorities of the Union will adhere. But if any of the duties imposed by the act only relieve the manufacturer by aggravating the burden of the

planter, let a careful revisal of its provisions, enlightened by the practical experience of its effects, be directed to retain those which impart protection to native industry and remove or supply the place of those which only alleviate one great national interest by the depression of another.

The United States of America and the people of every State of which they are composed are each of them sovereign powers. The legislative authority of the whole is exercised by Congress under authority granted them in the common Constitution. The legislative power of each State is exercised by assemblies deriving their authority from the constitution of the State. Each is sovereign within its own province. The distribution of power between them presupposes that these authorities will move in harmony with each other. The members of the State and General Governments are all under oath to support both, and allegiance is due to the one and to the other. The case of a conflict between these two powers has not been supposed, nor has any provision been made for it in our institutions; as a virtuous nation of ancient times existed more than five centuries without a law for the punishment of parricide.

More than once, however, in the progress of our history have the people and the legislatures of one or more States, in moments of excitement, been instigated to this conflict; and the means of effecting this impulse have been allegations that the acts of Congress to be resisted were *unconstitutional*. The people of no one State have ever delegated to their legislature the power of pronouncing an act of Congress unconstitutional, but they have delegated to them powers by the exercise of which the execution of the laws of Congress within the State may be resisted. If we suppose the case of such conflicting legislation sustained by the corresponding executive and judicial authorities, patriotism and philanthropy turn their eyes from the condition in which the parties would be placed, and from that of the people of both, which must be its victims.

The reports from the Secretary of War and the various subordinate offices of the resort of that Department present an exposition of the public administration of affairs connected with them through the course of the current year. The present state of the Army and the distribution of the force of which it is composed will be seen from the report of the Major-General. Several alterations in the disposal of the troops have been found expedient in the course of the year, and the discipline of the Army, though not entirely free from exception, has been generally good.

The attention of Congress is particularly invited to that part of the report of the Secretary of War which concerns the existing system of our relations with the Indian tribes. At the establishment of the Federal Government under the present Constitution of the United States the principle was adopted of considering them as foreign and independent powers and also as proprietors of lands. They were, moreover, considered as savages, whom it was our policy and our duty to use our influence in converting to Christianity and in bringing within the pale of civilization.

As independent powers, we negotiated with them by treaties; as proprietors, we purchased of them all the lands which we could prevail upon them to sell; as brethren of the human race, rude and ignorant, we endeavored to bring them to the knowledge of religion and of letters. The ultimate design was to incorporate in our own institutions that portion of them which could be converted to the state of civilization. In the practice of European States, before our Revolution, they had been considered *as children* to be governed; as tenants at discretion, to be dispossessed as occasion might require; as hunters to be indemnified by trifling concessions for removal from the grounds from which their game was extirpated. In changing the system it would seem as if a full contemplation of the consequences of the change had not been taken. We have been far more successful in the acquisition of their lands than in imparting

to them the principles or inspiring them with the spirit of civilization. But in appropriating to ourselves their hunting grounds we have brought upon ourselves the obligation of providing them with subsistence; and when we have had the rare good fortune of teaching them the arts of civilization and the doctrines of Christianity we have unexpectedly found them forming in the midst of ourselves communities claiming to be independent of ours and rivals of sovereignty within the territories of the members of our Union. This state of things requires that a remedy should be provided—a remedy which, while it shall do justice to those unfortunate children of nature, may secure to the members of our confederation their rights of sovereignty and of soil. As the outline of a project to that effect, the views presented in the report of the Secretary of War are recommended to the consideration of Congress.

The report from the Engineer Department presents a comprehensive view of the progress which has been made in the great systems promotive of the public interest, commenced and organized under authority of Congress, and the effects of which have already contributed to the security, as they will hereafter largely contribute to the honor and dignity, of the nation.

The first of these great systems is that of fortifications, commenced immediately after the close of our last war, under the salutary experience which the events of that war had impressed upon our countrymen of its necessity. Introduced under the auspices of my immediate predecessor, it has been continued with the persevering and liberal encouragement of the Legislature, and, combined with corresponding exertions for the gradual increase and improvement of the Navy, prepares for our extensive country a condition of defense adapted to any critical emergency which the varying course of events may bring forth. Our advances in these concerted systems have for the last ten years been steady and progressive, and in a few

years more will be so completed as to leave no cause for apprehension that our seacoast will ever again offer a theater of hostile invasion.

The next of these cardinal measures of policy is the preliminary to great and lasting works of public improvement in the surveys of roads, examination for the course of canals, and labors for the removal of the obstructions of rivers and harbors, first commenced by the act of Congress of 30th of April, 1824.

The report exhibits in one table the funds appropriated at the last and preceding sessions of Congress for all these fortifications, surveys, and works of public improvement, the manner in which these funds have been applied, the amount expended upon the several works under construction, and the further sums which may be necessary to complete them; in a second, the works projected by the Board of Engineers which have not been commenced, and the estimate of their cost; in a third, the report of the annual Board of Visitors at the Military Academy at West Point.

For thirteen fortifications erecting on various points of our Atlantic coast, from Rhode Island to Louisiana, the aggregate expenditure of the year has fallen little short of \$1,000,000. For the preparation of five additional reports of reconnaissances and surveys since the last session of Congress, for the civil constructions upon thirty-seven different public works commenced, eight others for which specific appropriations have been made by acts of Congress, and twenty other incipient surveys under the authority given by the act of 30th April, 1824, about one million more of dollars has been drawn from the Treasury.

To these \$2,000,000 is to be added the appropriation of \$250,000 to commence the erection of a breakwater near the mouth of the Delaware River, the subscriptions to the Delaware and Chesapeake, the Louisville and Portland, the

Dismal Swamp, and the Chesapeake and Ohio canals, the large donations of lands to the States of Ohio, Indiana, Illinois, and Alabama for objects of improvements within those States, and the sums appropriated for light-houses, buoys, and piers on the coast; and a full view will be taken of the munificence of the nation in the application of its resources to the improvement of its own condition.

Of these great national undertakings the Academy at West Point is among the most important in itself and the most comprehensive in its consequences. In that institution a part of the revenue of the nation is applied to defray the expense of educating a competent portion of her youth chiefly to the knowledge and the duties of military life. It is the living armory of the nation. While the other works of improvement enumerated in the reports now presented to the attention of Congress are destined to ameliorate the face of nature, to multiply the facilities of communication between the different parts of the Union, to assist the labors, increase the comforts, and enhance the enjoyments of individuals, the instruction acquired at West Point enlarges the dominion and expands the capacities of the mind. Its beneficial results are already experienced in the composition of the Army, and their influence is felt in the intellectual progress of society. The institution is susceptible still of great improvement from benefactions proposed by several successive Boards of Visitors, to whose earnest and repeated recommendations I cheerfully add my own.

With the usual annual reports from the Secretary of the Navy and the Board of Commissioners will be exhibited to the view of Congress the execution of the laws relating to that department of the public service. The repression of piracy in the West Indian and in the Grecian seas has been effectually maintained, with scarcely any exception. During the war between the Governments of Buenos Ayres and of Brazil frequent collisions between the belligerent acts of power and the rights of neutral commerce occurred.

Licentious blockades, irregularly enlisted or impressed seamen, and the property of honest commerce seized with violence, and even plundered under legal pretenses, are disorders never separable from the conflicts of war upon the ocean. With a portion of them the correspondence of our commanders on the eastern aspect of the South American coast and among the islands of Greece discover how far we have been involved. In these the honor of our country and the rights of our citizens have been asserted and vindicated. The appearance of new squadrons in the Mediterranean and the blockade of the Dardanelles indicate the danger of other obstacles to the freedom of commerce and the necessity of keeping our naval force in those seas. To the suggestions repeated in the report of the Secretary of the Navy, and tending to the permanent improvement of this institution, I invite the favorable consideration of Congress.

A resolution of the House of Representatives requesting that one of our small public vessels should be sent to the Pacific Ocean and South Sea to examine the coasts, islands, harbors, shoals, and reefs in those seas, and to ascertain their true situation and description, has been put in a train of execution. The vessel is nearly ready to depart. The successful accomplishment of the expedition may be greatly facilitated by suitable legislative provisions, and particularly by an appropriation to defray its necessary expense. The addition of a second, and perhaps a third, vessel, with a slight aggravation of the cost, would contribute much to the safety of the citizens embarked on this undertaking, the results of which may be of the deepest interest to our country.

With the report of the Secretary of the Navy will be submitted, in conformity to the act of Congress of 3d March, 1827, for the gradual improvement of the Navy of the United States, statements of the expenditures under that act and of the measures taken for carrying the same into effect. Every section of that statute contains a distinct

provision looking to the great object of the whole-the gradual improvement of the Navy. Under its salutary sanction stores of ship timber have been procured and are in process of seasoning and preservation for the future uses of the Navy. Arrangements have been made for the preservation of the live-oak timber growing on the lands of the United States, and for its reproduction, to supply at future and distant days the waste of that most valuable material for shipbuilding by the great consumption of it yearly for the commercial as well as for the military marine of our country. The construction of the two dry docks at Charlestown and at Norfolk is making satisfactory progress toward a durable establishment. The examinations and inquiries to ascertain the practicability and expediency of a marine railway at Pensacola, though not yet accomplished, have been postponed but to be more effectually made. The navy-yards of the United States have been examined, and plans for their improvement and the preservation of the public property therein at Portsmouth, Charlestown, Philadelphia, Washington, and Gosport, and to which two others are to be added, have been prepared and received my sanction; and no other portion of my public duties has been performed with a more intimate conviction of its importance to the future welfare and security of the Union.

With the report from the Postmaster-General is exhibited a comparative view of the gradual increase of that establishment, from five to five years, since 1792 till this time in the number of post-offices, which has grown from less than 200 to nearly 8,000; in the revenue yielded by them, which from \$67,000 has swollen to upward of a million and a half, and in the number of miles of post-roads, which from 5,642 have multiplied to 114,536. While in the same period of time the population of the Union has about thrice doubled, the rate of increase of these offices is nearly 40, and of the revenue and of traveled miles from 20 to 25 for 1. The increase of revenue within the last five years has

been nearly equal to the whole revenue of the Department in 1812.

The expenditures of the Department during the year which ended on the 1st of July last have exceeded the receipts by a sum of about \$25,000. The excess has been occasioned by the increase of mail conveyances and facilities to the extent of near 800,000 miles. It has been supplied by collections from the postmasters of the arrearages of preceding years. While the correct principle seems to be that the income levied by the Department should defray all its expenses, it has never been the policy of this Government to raise from this establishment any revenue to be applied to any other purposes. The suggestion of the Postmaster-General that the insurance of the safe transmission of moneys by the mail might be assumed by the Department for a moderate and competent remuneration will deserve the consideration of Congress.

A report from the commissioner of the public buildings in this city exhibits the expenditures upon them in the course of the current year. It will be seen that the humane and benevolent intentions of Congress in providing, by the act of 20th May, 1826, for the erection of a penitentiary in this district have been accomplished. The authority of further legislation is now required for the removal to this tenement of the offenders against the laws sentenced to atone by personal confinement for their crimes, and to provide a code for their employment and government while thus confined.

The commissioners appointed, conformably to the act of 2d March, 1827, to provide for the adjustment of claims of persons entitled to indemnification under the first article of the treaty of Ghent, and for the distribution among such claimants of the sum paid by the Government of Great Britain under the convention of 13th of November, 1826, closed their labors on the 30th of August last by awarding to

the claimants the sum of \$1,197,422.18, leaving a balance of \$7,537.82, which was distributed ratably amongst all the claimants to whom awards had been made, according to the directions of the act.

The exhibits appended to the report from the Commissioner of the General Land Office present the actual condition of that common property of the Union. The amount paid into the Treasury from the proceeds of lands during the year 1827 and the first half of 1828 falls little short of \$2,000,000. The propriety of further extending the time for the extinguishment of the debt due to the United States by the purchasers of the public lands, limited by the act of 21st March last to the 4th of July next, will claim the consideration of Congress, to whose vigilance and careful attention the regulation, disposal, and preservation of this great national inheritance has by the people of the United States been intrusted.

Among the important subjects to which the attention of the present Congress has already been invited, and which may occupy their further and deliberate discussion, will be the provision to be made for taking the fifth census or enumeration of the inhabitants of the United States. The Constitution of the United States requires that this enumeration should be made within every term of ten years, and the date from which the last enumeration commenced was the first Monday of August of the year 1820. The laws under which the former enumerations were taken were enacted at the session of Congress immediately preceding the operation; but considerable inconveniences were experienced from the delay of legislation to so late a period. That law, like those of the preceding enumerations, directed that the census should be taken by the marshals of the several districts and Territories of the Union under instructions from the Secretary of State. The preparation and transmission to the marshals of those instructions required more time than was then allowed between the

passage of the law and the day when the enumeration was to commence. The term of six months limited for the returns of the marshals was also found even then too short, and must be more so now, when an additional population of at least 3,000,000 must be presented upon the returns. As they are to be made at the short session of Congress, it would, as well as from other considerations, be more convenient to commence the enumeration from an earlier period of the year than the 1st of August. The most favorable season would be the spring. On a review of the former enumerations it will be found that the plan for taking every census has contained many improvements upon that of its predecessor. The last is still susceptible of much improvement. The Third Census was the first at which any account was taken of the manufactures of the country. It was repeated at the last enumeration, but the returns in both cases were necessarily very imperfect. They must always be so, resting, of course, only upon the communications voluntarily made by individuals interested in some of the manufacturing establishments. Yet they contained much valuable information, and may by some supplementary provision of the law be rendered more effective. The columns of age, commencing from infancy, have hitherto been confined to a few periods, all under the number of 45 years. Important knowledge would be obtained by extending these columns, in intervals of ten years, to the utmost boundaries of human life. The labor of taking them would be a trifling addition to that already prescribed, and the result would exhibit comparative tables of longevity highly interesting to the country. I deem it my duty further to observe that much of the imperfections in the returns of the last and perhaps of preceding enumerations proceeded from the inadequateness of the compensations allowed to the marshals and their assistants in taking them.

In closing this communication it only remains for me to assure the Legislature of my continued earnest wish for the

adoption of measures recommended by me heretofore and yet to be acted on by them, and of the cordial concurrence on my part in every constitutional provision which may receive their sanction during the session tending to the general welfare.

John Quincy Adams.

SPECIAL MESSAGES.

Washington,
December 8, 1828.

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 2d of April last, I transmit a copy of the letter from the Cherokee Council to Colonel Hugh Montgomery, the agent, requested by the resolution, with a report [\[018\]](#) from the Secretary of War.

John Quincy Adams.

Washington,
December 8, 1828.

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 23d of May last, I transmit a report from the Secretary of War, with documents, containing the information requested, relating to the harbors, roads, and other works of internal improvements undertaken and projected since the 30th April, 1824.

John Quincy Adams.

Washington,
December 8, 1828.

To the Senate of the United States:

I communicate to the Senate, for their advice with regard to its ratification, a treaty made and concluded at the missionary establishment upon the St. Joseph of Lake Michigan the 20th day of September last, between Lewis Cass and Pierre Menard, commissioners of the United States, and the Potawatamie tribe of Indians, the journal and report of the commissioners accompanying the treaty.

John Quincy Adams.

Washington,
December 8, 1828.

To the Senate of the United States:

I transmit to the Senate a report from the Secretary of War, with documents, prepared in compliance with their resolution of the 26th of May last, concerning the practicability and probable cost of constructing an artificial harbor, commonly called a "breakwater," at or near the mouth of the Mississippi.

John Quincy Adams.

Washington,
December 9, 1828.

To the Senate of the United States:

The inclosed report from the Secretary of State and subjoined documents are transmitted to the Senate in compliance with their resolution of 25th April last, requesting information concerning the number of free taxable inhabitants *who are not freeholders* in certain States and Territories of the Union.

John Quincy Adams.

Washington,
December 15, 1828.

To the House of Representatives of the United States:

In compliance with the resolution of the House of Representatives of the 8th instant, referring to a negotiation of the British Government, by virtue of a resolution of the House of the 10th of May last, relative to the surrender of fugitive slaves, I transmit herewith a report from the Secretary of State, with copies of instructions and correspondence, containing the desired information.

John Quincy Adams.

Washington,
December 15, 1828.

To the Senate of the United States:

I transmit to the Senate, for their constitutional advice, an additional article, signed on the 4th day of June last, to the convention of friendship, commerce, and navigation between the United States and the Hanseatic Republics of Lubeck, Bremen, and Hamburg concluded at this place on the 20th December, 1827. A copy of the article is likewise inclosed.

John Quincy Adams.

Washington,
December 16, 1828.

To the Senate of the United States:

I transmit to the Senate, for their advice, articles of agreement concluded at Green Bay, in the Territory of

Michigan, on the 20th of August last, between Lewis Cass and Pierre Menard, commissioners on the part of the United States, and the chiefs of the Winnebago tribe and of the united tribes of the Potawatamies, Chippewas, and Ottawas, being a temporary arrangement concerning the occupation of a certain portion of the mining country which has not heretofore been ceded to the United States.

John Quincy Adams.

Washington,
December 22, 1828.

To the House of Representatives of the United States:

I transmit to the House of Representatives a report from the Secretary of War, with documents, reported in compliance with the resolution of the House of the 10th instant, requesting a copy of the instructions given for the government of the agent of the United States superintendent of the lead mines in Missouri and Illinois.

Also a report from the Secretary of War, in compliance with the resolution of the House of the 15th instant, setting forth the reasons upon which it has not been deemed expedient to nominate commissioners to hold a treaty with the Choctaw Nation of Indians for the purchase of a certain tract of land, as authorized by the act of Congress of the 24th of May last.

John Quincy Adams.

Washington,
January 1, 1829.

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 18th ultimo, I communicate to the House a report from the Secretary of War, containing the information required in relation to the intended frauds upon the revenue, which has rendered expedient the stationing additional troops on the Niagara frontier. The other evidence embraced by the resolution, and in possession of the Government, does not, in my judgment, at present render any further employment of a regular armed force for the enforcement of the revenue laws necessary.

John Quincy Adams.

Washington,
January 7, 1829.

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 19th May last, requesting a copy of the correspondence between the minister of the United States at the Court of Madrid and the Government of Spain on the subject of claims of citizens of the United States against the said Government, I transmit herewith a report from the Secretary of State, with the correspondence desired by the resolution.

John Quincy Adams.

Washington,
January 14, 1829.

To the Senate of the United States:

I transmit herewith to the Senate a report from the Secretary of State, with supplemental returns of free taxable inhabitants not freeholders in certain States and Territories

of the United States, which returns have been received since my message to the Senate of the 9th December last.

John Quincy Adams.

Washington,
January 17, 1829.

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 13th instant, I transmit herewith a report [\[019\]](#) from the Secretary of War, with an application from the Creek Indians, through the agent of the United States, and an opinion of counsel in behalf of the Indians, having relation to the subject of the resolution.

John Quincy Adams.

Washington,
January 21, 1829.

To the House of Representatives of the United States:

In compliance with two resolutions of the House of Representatives of the 5th instant, requesting information received not heretofore communicated in relation to the arrest and trial in the British Province of New Brunswick of John Baker, a citizen of the United States, and the correspondence between the Government of the United States and that of Great Britain in relation to the said arrest and to the usurpation of jurisdiction by the British government of New Brunswick within the limits of the State of Maine, I transmit a report from the Secretary of State, with the information and correspondence requested by the House.

John Quincy Adams.

Washington,
January 21, 1829.

To the Senate and House of Representatives of the United States:

I transmit to Congress copies of two treaties with Indian tribes, which have been ratified:

1. Articles of agreement between the United States of America and the Winnebago tribe and the united tribes of Potawatamie, Chippeways; and Ottawa Indians, concluded at Green Bay 25th August, 1828.

2. Treaty between the United States of America and the Potawatamie tribe of Indians, concluded at the missionary establishment upon the St. Joseph of Lake Michigan 20th September, 1828.

Both by Lewis Cass and Pierre Menard, commissioners on the part of the United States, with certain chiefs and warriors of the respective tribes.

John Quincy Adams.

Washington,
January 26, 1829

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 17th instant, requesting copies of the instructions to the commissioners of the United States who made the treaty at the Indian Springs in 1821, I transmit to the House a report from the Secretary of War of the 22d instant, with copies of those instructions.

And in compliance with a resolution of the House of the 20th instant, requesting a communication of the journal of the above-mentioned commissioners, I transmit a report from the Secretary of War of the 24th instant, with copies of the papers, which it is believed will supply the information desired by the resolution, no regular journal having been transmitted by the commissioners to the Department.

John Quincy Adams.

Washington,
January 26, 1829.

To the House of Representatives of the United States:

I transmit herewith a report from the Secretary of State, with voluminous documents prepared and collected in compliance with a resolution of the House of Representatives of the 13th January, 1825, calling for a statement of convictions, executions, and pardons for capital offenses under the authority of the Government of the United States since the adoption of the Constitution.

John Quincy Adams.

Washington,
January 26, 1829.

To the Senate and House of Representatives of the United States:

I transmit to Congress copies of a convention of friendship, commerce, and navigation between the United States and the free Hanseatic Republics of Lubeck, Bremen, and Hamburg, the ratifications of which were exchanged at this place on the 2d day of June last; and also of an additional article to the same convention, signed on the 4th

day of June last, and the ratifications of which were exchanged at this city on the 14th of the present month.

John Quincy Adams.

Washington,
January 29, 1829

The President of the Senate of the United States

SIR: I transmit herewith a letter which I have received from Mr. David, member of the Institute of France, professor of the School of Painting at Paris, and member of the Legion of Honor, the artist who presents to Congress the bust of General Lafayette which has been received with it; and I have to request the favor that after it has been communicated to the Senate it may be transmitted to the Speaker of the House of Representatives for similar communication to that body.

John Quincy Adams.

Washington,
January 29, 1829.

To the Senate of the United States:

I nominate Stephen Clin, of Georgia, to be secretary of the legation of the United States at the Court of Great Britain.

Jesse H. Willis, of Florida, to be collector of the customs for the recently established district of St. Marks and inspector of the revenue for the port of Magnolia, in Florida.

And I nominate for reappointment Callender Irvine, of Pennsylvania, to be Commissary-General of Purchases. It is

proper to apprise the Senate that this office is one of those which by the act of Congress of 15th May, 1820, is limited to the term of four years; that it was held by Mr. Irvine at the time of the passage of that act, but that by some inadvertence he has not hitherto been nominated for reappointment. The fact having but just now been ascertained by me, I deem it my duty to make the nomination. Mr. Irvine has hitherto performed the duties of the office under his original appointment.

John Quincy Adams.

Washington,
January 30, 1829.

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 13th instant, requesting information of the measures taken in execution of the act of 9th May last, making an appropriation for carrying into effect the articles of agreement and cession of 24th April, 1802, between the State of Georgia and the United States, and also in execution of certain provisions of the treaty of May last with the Cherokee Indians, I transmit to the House a report from the Secretary of War, with documents, comprising the desired information.

John Quincy Adams.

Washington,
February 2, 1829.

To the Senate of the United States:

In compliance with a resolution of the Senate of the 20th ultimo, requesting information received since the last session of Congress from the Mexican Government

respecting the recovery of debts in that country due to American citizens, I transmit a report from the Secretary of State, with copies of a letter of instructions to the minister of the United States in Mexico, and of his answer, relating to the subject of the resolution.

John Quincy Adams.

Washington,
February 6, 1829

To the Senate of the United States:

In compliance with a resolution of the Senate of the 9th of December last, requesting a detailed statement of the amount expended by the Federal Government upon works of internal improvement within the limits of the several States, with an estimate of the amount necessary to complete any work begun and not yet completed, I transmit herewith reports from the Secretaries of the Treasury and of War, with documents, containing the information desired by the resolution.

John Quincy Adams.

Washington,
February 6, 1829.

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 4th instant, I transmit herewith a report from the Secretary of War, with that of the commissioner appointed to locate the national road from Zanesville, in Ohio, to the seat of government of the State of Missouri.

John Quincy Adams.

Washington,
February 11, 1829.

To the Senate and House of Representatives of the United States:

By the act of Congress of the 23d of May last, "supplementary to the several acts providing for the settlement and confirmation of private land claims in Florida," provision was made for the final adjudication of such claims by the judges of the superior courts of the districts wherein the lands claimed respectively lie, and by appeal from them to the Supreme Court of the United States; and the attorneys of the United States in the several districts were charged with the duty, in every case where the decision should be against the United States by the judge of the superior court of the district, to make out and transmit to the Attorney-General of the United States a statement containing the facts of the case and the points of law on which the same was decided, and it was made the duty of the Attorney-General in most of those cases to direct an appeal to be made to the Supreme Court of the United States and to appear for the United States and prosecute such appeals. By the same act the President of the United States was authorized to appoint a law agent to superintend the interests of the United States in the premises, and to employ assistant counsel if in his opinion the public interest should require the same.

In the process of carrying into execution this law it was the opinion of the Attorney-General of the United States that a translated complete collection of all the Spanish and French ordinances, etc., affecting the land titles in Florida and the other territories heretofore belonging to France and Spain, would be indispensable to a just decision of those claims by the Supreme Court. At his suggestion the task of preparing this compilation was undertaken by Joseph M.

White, of Florida, who was employed as assistant counsel in behalf of the United States. The collection has accordingly been made and is deposited in manuscript at the Department of State, subject to such order as Congress may see fit to take concerning it. The letter from Mr. White to the Secretary of State, with a descriptive list of the documents collected and thus deposited, is herewith transmitted to Congress.

John Quincy Adams.

Washington,
February 16, 1829.

To the Senate of the United States:

In compliance with the resolution of the Senate of the 5th instant, requesting detailed statements of the expenses incurred and of those which may be necessary for the expedition proposed for exploring the Pacific Ocean and South Seas, and also of the several amounts transferred from the different heads of appropriation for the support of the Navy to this object and the authority by which such transfers have been made, I transmit herewith a report from the Secretary of the Navy, with documents, from which the Senate will perceive that no such transfer has been made, and which contain the other information desired by the resolution.

John Quincy Adams.

Washington,
February 20, 1829.

To the Senate of the United States:

In compliance with the resolution of the Senate of the 10th instant, requesting copies of correspondence and

communications from 20th October, 1816, to 24th November, 1817, received at the Department of State from the American commissioner under the fourth article of the treaty of Ghent, I transmit herewith a report from the Secretary of State, with the copies of papers mentioned in the resolution.

John Quincy Adams.

Washington,
February 20, 1829.

To the Senate of the United States:

I transmit to the Senate a report from the Secretary of the Treasury, with documents, prepared in pursuance of their resolution of the 31st of December last, and showing the amount of expenses incurred in the survey, sale, and management of the public lands for the year 1827.

John Quincy Adams.

Washington,
February 25, 1829.

To the Senate and House of Representatives of the United States:

By the act of Congress of the 3d March, 1826, for the survey of a route for a canal between the Atlantic and the Gulf of Mexico, the President of the United States was authorized to cause to be made an accurate and minute examination of the country south of the St. Marys River, and including the same, with a view to ascertain the most eligible route for a canal admitting the transit of boats to connect the Atlantic with the Gulf of Mexico, and also with a view to ascertain the practicability of a ship channel; that he cause particularly to be examined the route to the

Appalachicola River or Bay, with a view to both the above objects; that he cause the necessary surveys, both by land and along the coast, with estimates of the expense of each, accompanied with proper plans, notes, observations, explanations, and opinions of the Board of Engineers, and that he cause a full report of these proceedings to be made to Congress.

In execution of this law I transmit herewith a report from the Secretary of War, with a copy of that of the Board of Engineers, upon this great and most desirable national work. The time not having allowed a copy to be taken of the map, one copy only of the whole report is transmitted to the Senate, with the request that it may be communicated to the House of Representatives, and that the map may be ultimately returned to the Department of War.

John Quincy Adams.

Washington,
February 26, 1829.

To the Senate of the United States:

In compliance with a resolution of the Senate of the 20th instant, I transmit herewith a report from the Secretary of War, with the inspection reports of Brevet Major-General Gaines for the years 1826 and 1827, relating to the organization of the Army and militia of the United States, with the request that the original documents may be returned to the Department of War at the convenience of the Senate.

John Quincy Adams.

Washington,
February 26, 1829.

To the Senate of the United States:

I transmit herewith to the Senate, for their constitutional advice with regard to its ratification, a treaty of amity, commerce, and navigation between the United States and His Majesty the Emperor of Brazil, signed by the plenipotentiaries of the respective Governments at Rio de Janeiro on the 12th day of December last. A copy of the treaty is likewise inclosed, with copies of the instructions under which it was negotiated and a letter from Mr. Tudor elucidating some of its provisions. It is requested that at the convenience of the Senate the original papers may be returned to the Department of State.

John Quincy Adams.

Washington,
February 28, 1829.

To the Senate and House of Representatives of the United States:

I transmit to Congress copies of two Indian treaties, which have duly ratified:

1. A treaty with the Chippewa, Menominie, and Winnebago Indians, concluded on the 11th of August, 1827, at the Butte des Morts, on Fox River, in the Territory of Michigan, between Lewis Cass and Thomas L. McKenney, commissioners on the part of the United States, and certain chiefs and warriors of the said tribes on their part.

2. A treaty with the Potawatamie tribe of Indians, concluded the 19th of September, 1827, at St. Joseph, in the Territory of Michigan, between Lewis Cass, commissioner on the part of the United States, and the chiefs and warriors of the said tribes, on their part.

John Quincy Adams.

Washington,
February 28, 1829.

To the House of Representatives of the United States:

In compliance with a resolution of the House of Representatives of the 21st instant, requesting any information in my possession as to the practical operation of the recent act of the British Parliament entitled "The customs amendment act," purporting a discrimination of duties upon the importation of cotton from the British North American colonies and showing how far this discrimination may affect existing treaties, I transmit herewith a report from the Secretary of State, with copies of the instructions and correspondence of the minister of the United States at London, containing the information requested.

John Quincy Adams.

Washington,
March 3, 1829.

To the Senate and House of Representatives of the United States:

I transmit herewith to Congress a copy of the instructions prepared by the Secretary of State and furnished to the ministers of the United States appointed to attend at the assembly of American plenipotentiaries first held at Panama and thence transferred to Tacubaya. The occasion upon which they were given has passed away, and there is no present probability of the renewal of the negotiations; but the purposes for which they were intended are still of the deepest interest to our country and to the world, and may hereafter call again for the active efforts and beneficent energies of the Government of the United States. The motives for withholding them from general publication

having ceased, justice to the Government from which they emanated and to the people for whose benefit it was instituted requires that they should be made known. With this view, and from the consideration that the subjects embraced by these instructions must probably engage hereafter the deliberations of our successors, I deem it proper to make this communication to both Houses of Congress. One copy only of the instructions being prepared, I send it to the Senate, requesting that it may be transmitted to the House of Representatives.

John Quincy Adams.

PROCLAMATION.

(From Senate Journal, Twentieth Congress, second session, p. 196.)

Washington,
January 12, 1829

The President of the United States to--, Senator for the State of--:

Certain matters touching the public good requiring that the Senate of the United States should be convened on Wednesday, the 4th day of March next, you are desired to attend at the Senate Chamber, in the city of Washington, on that day, then and there to receive and deliberate on such communications as shall be made to you.

John Quincy Adams.

FOOTNOTES.

[\[001\]](#)

See Vol. I, pp. 352 to 354, inclusive.

[\[002\]](#)

Relating to the proposed congress at Panama.

[\[003\]](#)

Relating to land warrants issued to soldiers of the Revolutionary war, etc.

[\[004\]](#)

Relating to intervention of the Emperor of Russia with Spain for a recognition of the independence of the South American States.

[\[005\]](#)

Relating to the proposed congress of the Spanish American States.

[\[006\]](#)

Relative to governments to be represented at the congress at Panama.

[\[007\]](#) and [\[007a\]](#)

Respecting the right of a foreign minister to retain money advanced by the President as an outfit beyond the sum appropriated by law.

[\[008\]](#)

Relating to the negotiations with Great Britain for a cession of certain keys on the Bahama Banks.

[\[009\]](#)

Referred to in the protocol of the third conference of the American and British plenipotentiaries on February 5, 1824, relating to trade with Great Britain.

[\[010\]](#)

Concerning the assembly of American ministers at Tacubaya, Mexico

[\[011\]](#)

Relating to the conflicting claims of Georgia and the Creek Indians to lands in Georgia.

[\[012\]](#)

Relating to the conflicting claims of Georgia and the Creek Indians to lands in Georgia.

[\[013\]](#)

Relating to the northeastern boundary of the United States.

[\[014\]](#)

Relating to the detention of American vessels by the naval forces of Brazil.

[\[015\]](#)

Relating to the war between Spain and her colonies.

[\[016\]](#)

By the authorities of the Province of New Brunswick.

[\[017\]](#)

Relating to alleged blockade by the naval forces of Brazil, imprisonment of American citizens by Brazil, etc.

[\[018\]](#)

Relating to a survey for a canal through the Cherokee country.

[\[019\]](#)

Relating to claims of Georgia and the Creek Indians under the treaty of 1821, held at Indian Springs.

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